

RESIDENT COMMUNICATION LOG

Name(s): Mohammed Sauban Mussaddique and Nida Fathima	Phone #:	Apt. #: 2317
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LEASE CONTRACT

CERTIFIED LEASE WASHINGTON

PARTIES AND LEASED PREMISES

Owner Arrivé	Address 2116 4th Ave, Seattle, WA 98121	Phone (206) 887-7665
Residential Community Arrive		
Street Address 2116 4th Ave	City Seattle	State Washington
		ZIP 98121
Residents Mohammed Sauban Mussaddique and Nida Fathima		Leased Premises 2317
Street Address 2116 4th Avenue	City Seattle	State Washington
		ZIP 98121

LEASE TERM

Type ☐ Move-In ☒ Renewal	Length 1 year, 5 months and 28 days	Start Date 5/4/2024	End Date 10/31/2025	Date Signed May 4, 2024
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RENT

Payable To Arrivé	Address 2116 4th Ave, Seattle, WA 98121	Phone (206) 887-7665
Office Hours Monday - Sunday 9am-6pm	Due On 1st	Late On 6th
		Fax () -

CHARGES

Reletting Expense	\$6,625.00	Month-to-Month Charge	\$300.00	Lock Change Charge	\$100.00
Failure to Clean Animal Waste Charge	\$25.00	Lease Buy-Out	\$6,375.00	Late Payment	\$100.00
Late Payment of Utilities Charge	\$5.00	Dishonored Payment	\$50.00	Smoke/CO Alarm Tampering Charge	\$100.00

CONCESSIONS*

Concession #1: One-Time, Applied May, 2024 - Renewal Concession: \$1,000	\$1,000.00
*All concessions are subject to the terms and conditions of the Residential Lease Contract.	

MONTHLY PAYMENTS

Base Rent	\$2,550.00
Storage Rent	\$100.00
TOTAL MONTHLY PAYMENT	\$2,650.00

THIS RESIDENTIAL LEASE CONTRACT (this "Agreement") is entered into this **4th** day of **May, 2024**, between Owner of Residential Community ("Owner") and **Mohammed Sauban Mussaddique and Nida Fathima**, jointly and severally (individually and collectively "Residents"). Residents hereby agree to lease the premises at **2116 4th Avenue #2317, Seattle, WA 98121** (the "Leased Premises"), which is located within **Arrive** (the "Residential Community"), for use exclusively as a residential premises and not for any other purpose. Owner's representatives, agents, affiliates, successors, assigns, employees, officers, and directors are hereby incorporated by reference to benefit from any and all waivers, releases, and limitations of liability made by Residents hereunder. To the extent that this Agreement is inconsistent with any applicable laws, regulations, ordinances, or codes, it shall be deemed modified to comply therewith.

- OCCUPANCY OF THE LEASED PREMISES.** The Leased Premises may be occupied solely by Residents. If any person other than the Resident or Occupant occupies the Leased Premises for more than **six (6)** consecutive days or more than **fourteen (14)** total days in any **twelve (12)** month period, such person shall be deemed to reside in the Leased Premises in violation of this Agreement.

All changes in occupancy require Owner's prior written consent. If Owner consents to an occupancy change during the



Initial:



term of this Agreement, a new Residential Lease Contract or an amendment to this Agreement must be executed. Any assignment or subletting without Owner's prior written consent shall be void and may, at Owner's sole discretion, terminate this Agreement. Owner's acceptance of rent from any person, not identified as a Resident or an authorized occupant, shall be deemed to be the payment of rent on behalf of Residents and shall not constitute Owner's consent for said person to occupy or reside in the Leased Premises.

2. **LEASE TERM.** This Agreement will be for a period of **1 year, 5 months and 28 days**, with the initial term commencing on **May 4, 2024** and expiring at **midnight** on **October 31, 2025** ("Initial Term"), unless sooner terminated as provided in this Agreement or as allowed by applicable law. Residents acknowledge that, upon expiration of the Initial Term, this Agreement shall terminate, unless twenty (20) days or more prior to the expiration date of the Initial Term, the parties agree otherwise in writing. If this Agreement is renewed as a month-to-month tenancy, either party must give at least twenty (20) days written notice of termination or intent to move-out before the end of the monthly rental period.

2.1. Month-to-Month Terms. In the event that this Agreement continues month-to-month, Residents shall pay Owner a month-to-month charge of **\$300.00**. This charge is due to Owner every month along with the monthly rent payment, and is subject to increase upon written notice to Residents. For purposes of this Agreement, any unpaid month-to-month charges are deemed additional rent.

3. **SECURITY DEPOSIT.** Residents agree to pay to Owner, as a security deposit, the sum of **\$0.00**, due on or prior to the commencement date of the lease term. Unless modified by an installment payment agreement, included with and attached to this Agreement, this is the total security deposit at the time of execution of this Agreement. The security deposit will be available to Owner in the event Residents become liable for any damage or other losses during the tenancy. If the security deposit does not cover the total amount of damage or other losses suffered by Owner, Residents will be responsible for paying the remaining balance due to Owner. Residents' Security Deposit will be held at: **Bank of America, 400 Lincoln Square 10400 NE 4th St Suite 2302 Bellevue, WA 98004**. In the event Owner sells the Residential Community, Owner will transfer the security deposit to new owner, who will then be responsible for providing Residents with all required statutory notices. Any security deposit will be credited to any amount owing by Residents at the end of the tenancy, including any future rent as allowed by law.

3.1. Deposit Deductions. Owner may recover amounts owed by Residents from the security deposit for any lawful reason including, but not limited to, the following: any damages or loss caused by Residents' default or breach of this Agreement; delinquent or unpaid rent; late fees; electricity, gas, water, sewer, stormwater, or other utility charges; damages to the Leased Premises caused by simple negligence, intentional act, accident or inaction; the replacement cost of fixtures or other items contained in the Leased Premises that are damaged or destroyed; service charges; batteries for smoke detectors or other safety devices; unreturned, damaged or missing keys or entry devices; replacement light bulbs; reletting expenses; delinquent fees or unpaid deposits; the costs of rekeying or disabling unauthorized security systems and alarms; pet charges; government assessments against Owner caused by Residents, Occupants or guests; trash removal; all costs associated with illegally parked vehicles, including removal; returned check fees; removal and storage of items left in the Leased Premises; all costs, including attorneys' fees, related to eviction proceedings or the enforcement of this Agreement; and any other amounts owing from Residents to Owner. If the security deposit does not cover all of Owner's loss, Residents are liable for any unsatisfied amounts.

4. **RENT.** Residents agree to pay to Owner, as rent for the Leased Premises, the sum of **\$2,650.00** per month. Unless modified by addenda, this is the total monthly rent at the time of execution of this Agreement. Rent must be paid in full, in advance and without demand, on or before the **1st** day of each month with no grace period. Payments must be made in the form of **Personal Check, Money Order, Cashier's Check, Online payment - PayYourRent.com**. Rent, and all other payments due to Owner, shall be made payable to **Arrivé, 2116 4th Ave, Seattle, WA 98121, (206) 887-7665**. The usual days and hours when payments may be made personally are: **Monday - Sunday 9am-6pm, 2116 4th Ave, Seattle, WA 98121**. The Residential Community may contain a drop-box for payments and notices, however the drop-box is provided only as a convenience to Residents and does not guarantee delivery to Owner. The sole risk of loss or theft of any payments or notices is assumed by Residents and Residents agree to immediately replace rent payment that is lost or stolen prior to receipt by Owner. Residents are encouraged to make all payments and obtain receipts directly from Owner.

Residents must not withhold or offset rent unless specifically authorized by law. Owner reserves the right to refuse any payment that does not pay the full balance of sums owed or does not include all sums due to Owner. Owner, in its sole discretion, may require at any time, with or without cause, that Residents make payments in the form of **certified check or money order**. Residents acknowledge and agree that failure to pay rent on time will be deemed a violation of this Agreement, and all remedies available to Owner under this Agreement and applicable law for such violation will be authorized. If in any month, rent is not paid before the **6th** day of the month, payment must be in the form of **certified check or money order**. If Owner serves Residents with a notice to pay rent or vacate the premises, which Owner may do on any date after the **1st** day of the month, any payment tendered following service of said notice must be in the form of **certified check or money order**.



4.1. Online Payments. Residents are permitted to make rent payments via an online web-based service. Payment of rent online, while such service is provided by Owner, is for Residents' convenience - the risk of receipt of funds by Owner when such service is used is Residents', and not Owner's, risk. Furthermore, Residents hereby agree not to chargeback any rent payments made by credit card, debit card, EFT, ACH or any other electronic means to Owner. Residents shall pay Owner a sum of **\$0.00** for each chargeback, as a liquidated damage. In the event of a chargeback, Residents may, at Owner's option, be required to pay the rent and applicable late charges by **certified check or money order**. If **three (3)** or more payments submitted by Residents are chargedback in any **two (2)** month period, Residents shall be required to pay all future rent and other charges by **certified check or money order**.

4.2. Concessions. Residents agree that the concessions specified in this Agreement are given to Residents as an incentive and with the understanding that Residents will fulfill all obligations under this Agreement for the full lease term and renewal periods. If Residents fail to pay rent timely each month, pursuant to this Agreement, during the Initial Term or any renewal period, in addition to all other remedies authorized by state law or this Agreement, Residents shall not be entitled to the prorated portion of concessions attributed to that month. Furthermore, Residents shall owe the full amount of rent as stated in this Agreement, as if no concessions were given for that month, plus any applicable late payment charges as a result of Residents being delinquent. In the event Residents are asked to vacate the Leased Premises, evicted or move out prior to the expiration date of the initial lease term or any renewal period, Residents shall reimburse Owner, upon demand, the full amount of concessions. Residents must also pay all other rent, charges, or sums due to Owner as a result of Residents' failure to comply with the terms and conditions of this Agreement. Residents acknowledge that concessions constitute a discount of rent only and not a discount of any other charges or sums which Residents may be required to pay under the terms and conditions of this Agreement.

5. PAYMENTS AND CHARGES. Owner and Residents agree that when Residents fail to pay rent on time, or when Residents make a payment that is subsequently dishonored by the financial institution upon which it is drawn, the actual cost to Owner is extremely difficult or impractical to ascertain, but the parties agree that Owner does, in the event of a late or dishonored payment, incur certain costs, including but not limited to, additional bookkeeping and administrative charges, bank charges, lost opportunity costs of the late payment. Residents agree that the late and dishonored payment charges represent a fair and reasonable approximation of the actual cost Owner is likely to suffer, and are intended to be liquidated damages. At any time that Residents are in default under the terms and conditions of this Agreement, Owner reserves the right to terminate Residents' ability to pay online and Owner may terminate access to the online payment portal.

5.1. Late Payments. Resident shall pay the total amount of rent owed on or before the **1st** day of the month. If Residents fail to timely pay all rent, Owner is entitled to a late fee of **\$100.00** on the **6th** day of the month. Residents acknowledge that payment of late charges does not constitute a license to pay rent late. Residents understand that if Residents are given a notice to pay or comply or vacate and choose to vacate the Leased Premises during the period of the notice, that Residents shall remain liable for the rent through the end of the lease term or the next month in the case of a month-to-month tenancy. Any payment after the issuance of any such notice shall be by **certified check or money order** only.

5.2. Dishonored Payments. If Residents make a payment that is, for any reason whatsoever, dishonored by the financial institution upon which it is drawn, Residents agree to pay to Owner, as a dishonored payment charge, the sum of **\$50.00** for each dishonored payment, plus any applicable late charges, until Owner receives acceptable payment. Owner reserves the right after a single dishonored payment to require that all future payments be made by **certified check or money order**. If **3** or more payments submitted by Residents are, for any reason whatsoever, dishonored by the financial institution upon which it is drawn in any **2** month period, Residents shall be required to pay all future rent and other charges by **certified check or money order** plus any and all costs required in the collection of said payments.

6. PAYMENTS. Owner is not obligated to accept any payment for rent or other charge after it is due. Except for rent, all charges are due immediately and to be paid upon Owner's demand.

7. RENT INCREASES AND CHANGES TO THIS AGREEMENT. Owner will notify Residents, in writing at least **one hundred eighty (180)** days before the last day of this Agreement or, in a month-to-month tenancy, at least **one hundred eighty (180)** days before taking effect, of: 1) any increase in rent; and 2) any increase in other periodic or monthly housing costs to be charged to Residents. The new rent amount or changes to this Agreement shall take effect on the date stated in the notice (not earlier than the advance notice required above).

8. COMMUNITY POLICIES AND CONDUCT. Residents acknowledge receipt of and agree to the terms and conditions of Owner's written policies and rules (the "Community Policies"). The Community Policies are hereby incorporated into and made a part of this Agreement. Residents are responsible for informing and ensuring the compliance of all Occupants and guests to this Agreement and the Community Policies. Upon thirty (30) days written notice, Owner may make changes to the Community Policies, which will go into effect upon completion of the then current term of this Agreement. The new Community Policies will take effect after the current lease term expires, or in a month-to-month tenancy, at the



end of the next calendar month after notice is given. Residents agree to keep the Leased Premises in a clean and sanitary condition and use the common areas and recreational facilities in accordance with this Agreement, the Community Policies, and posted signs.

Residents agree not to harass, annoy, or endanger any other resident or person, or create or maintain a nuisance, or disturb the peace or solitude of any other resident, or commit waste in or about the Leased Premises. Residents are responsible for the conduct of any members of their household, Occupants, or guests while present at the Residential Community. Residents further agree not to harass, verbally abuse, denigrate or otherwise disrespect Owner's employees, agents and/or contractors or interfere with Owner's business operations. Failure to abide by this policy may result in the termination of this Agreement.

8.1. Exclusion from the Residential Community. Owner has the right to exclude guests and other non-Residents who refuse to identify themselves as a guest of a specific Resident or who, in Owner's judgment, are disruptive, have violated the law, or violated this Agreement or the Community Policies.

9. MULTIPLE RESIDENTS OR OCCUPANTS. Residents will be in material breach of this Agreement if any Resident, Occupant, or guest (whether invited or uninvited) violate any of the terms of this Agreement or the Rules. Residents are jointly and severally liable for all obligations arising under this Agreement whether or not they remain in actual possession of the Leased Premises. Notices or demands from Owner that are served upon any Resident, Occupant or guest are deemed validly served upon all Residents. Each Resident agrees and is deemed to be an agent for service of process for all other Residents in eviction proceedings. Security deposit deduction itemizations may be sent to one Resident, and shall constitute notice to all Residents. Owner may satisfy the duty to refund the security deposit by sending the total amount owed to one Resident.

9.1. Replacements and Subletting. Without the prior written approval of Owner, replacing Residents or subletting the Leased Premises is strictly prohibited. A replacement of Residents or sublease will be subject to Owner's policies and underwriting requirements, reimbursement of Owner's expenses in connection with the replacement or sublease, and final approval by Owner of the Residents' replacement or sublessee. Residents who are replaced or sublet the Leased Premises will continue to be liable for all of Residents' obligations of this Agreement. Replaced Residents and sublessors relinquish their rights to a refund of the security deposit, and their right to possess or otherwise occupy the Leased Premises. Any attempt to replace any Residents or sublet the Leased Premises without Owner's prior written consent will be void. Residents shall not assign this Agreement.

9.2. Short Term Rentals. Residents are prohibited from offering all or part of the Leased Premises for short-term rental, such as through AirBNB, VRBO or other such sites. Use of short term rentals includes advertising, and any and all other activities involved in locating short term renters and or disseminating information of, and regarding, the possible availability of the Residential Community for any apartment for rental by short-term or transient occupants on sites such as Expedia, Priceline, hotels.com, booking.com, AirBNB or other similar locator websites, or web-based, electronic media, or private websites for individuals or companies. Any person who is not a Resident or a member of their household, who occupies any portion of the Leased Premises, for any period of time whatsoever, for any compensation or consideration whatsoever (including, without limitation, the payment of money and/or trade and/or barter of other goods, services, or property occupancy rights) is not an occupant, guest, or invitee. This constitutes attempted subletting or assignment under this Agreement.

10. USE OF LEASED PREMISES AND COMMON AREAS. Residents shall not do or permit anything to be done in or about the Leased Premises that will in any way obstruct or interfere with the rights of other residents or occupants of the Residential Community or injure or annoy them or use or allow the Leased Premises to be used for any improper, unlawful, or objectionable purpose. Further, Residents shall not cause, maintain, or permit any nuisance in, on, or about the Leased Premises, or commit any waste in or on the Leased Premises, and shall promptly notify Owner in writing of any defective or potentially defective conditions, in the Leased Premises, or in the Residential Community. Finally, Residents shall not put the Leased Premises to any use that violates local zoning ordinances or any other law applicable to the Leased Premises. Residents agree to reimburse and indemnify Owner for all fines or other penalties incurred by Owner as a result of the violation of any statute, ordinance, regulation or other governmental restriction by Residents or any members of their household, Occupants, or guests. Nothing set forth herein shall be deemed as disallowing any use of the Leased Premises that cannot legally be prohibited.

Residents further agree to the following: 1) Residents must keep the Leased Premises and areas reserved for private use clean and sanitary; 2) trash must be disposed of at least weekly in appropriate receptacles; 3) passageways may be used only for entry or exit; 4) amenity areas must be used with care in accordance with the Rules and posted signs; 5) glass is prohibited in all common areas; 6) conducting business of any kind in the Leased Premises or the Residential Community is prohibited without Owner's prior written consent--any lawful business conducted at home by computer, mail, or telephone is permissible if permitted by local zoning ordinance and customers, clients, patients, or other business associates do not come to the Leased Premises for business purposes; 7) businesses allowed in a home by state or local statute or ordinance will be permitted with proper licensing and notification provided to Owner in advance of the operation



of the business; 8) Owner may exclude from the Residential Community guests or others, who in Owner's judgment, have been violating the law, violating this Agreement or any community rules, which includes anyone who is disturbing other residents, neighbors, visitors, or Owner's representatives; and 9) Owner may also exclude from any outside area or common area anyone who refuses to show identification or identify themselves as a guest, occupant or resident in the Residential Community. Any violation of these provisions shall be deemed a material and incurable breach of this Agreement and shall entitle Owner to serve Residents with notice terminating the tenancy.

10.1. Facilities. Residents agree that access or use of any amenities or facilities within the Residential Community provided by Owner, whether for cost or without cost, are not considered by either party to be a material provision of this Agreement. As such, Owner reserves the right to change or limit the operating or access hours of any such facility or amenity, or to remove or eliminate access or use of the facility or amenity at any time, and for any length of time, without prior notice to Residents. Any such action by Owner shall not serve as a basis for a claim by Residents for diminished rental value or the basis for a claim of default by Owner under the terms of this Agreement.

11. THE LEASED PREMISES AND FURNISHINGS. Owner will provide Residents with a move-in checklist on or before the commencement of this Agreement that specifically describes the condition and cleanliness of or existing damages to the Leased Premises and furnishings. Residents agree to sign and return a copy of the checklist to Owner upon commencement of the tenancy. Residents agree to maintain in a clean and sanitary condition the part or parts of the Leased Premises occupied or controlled by the Residents and Occupants and to exercise reasonable care in the use and operation of electrical and plumbing fixtures and to maintain all sanitary facilities, fixtures, and equipment in a clean and sanitary condition. Residents promise to return the Leased Premises and all furniture, furnishings, fixtures, equipment and appliances to Owner in the same condition at the time Residents vacate the Leased Premises as when first rented, less normal wear and tear. Residents further acknowledge that the smoke detector and/or carbon monoxide detector is operable and it is the responsibility of Residents to maintain the smoke detector and/or carbon monoxide detector in accordance with State law and the manufacturer's recommendations. Residents must promptly report non-functional smoke and/or carbon monoxide alarms to Owner so repairs can be made.

All appliances are installed per manufacturers' specification and may be anchored. Residents shall not move, unhook, or relocate any appliance connected to a gas/water source or floor drain connection at any time. Residents agree to promptly notify in writing (service request form) or by electronic notification to Owner of any defects, dilapidations, dangerous conditions, or other needed repairs as said conditions become evident. Residents agree to immediately reimburse Owner for any sums incurred by Owner to repair the Leased Premises or any item, fixture, appliance or appurtenance damaged by the misuse or neglect of Residents or any members of their household, Occupants or guests. This Agreement may not be terminated due to interruption of any service, including necessary repairs, beyond the control of Owner, unless otherwise required by law.

11.1. Keys and Access Devices. Residents are not permitted to make duplicate copies of keys or access devices without Owner's prior written consent. If any keys or access devices are lost, stolen or damaged, Owner may charge Residents the cost of replacing each key or access device. If any keys or access devices are returned damaged or not returned at move-out, Owner will deduct the cost of each damaged or missing key or access device, and the cost of any necessary rekeying, from the security deposit.

11.2. Smoke and Carbon Monoxide Detectors. Residents acknowledge that the Leased Premises is equipped with a smoke detector and carbon monoxide detector. Residents will not interfere with the presence or functionality of any smoke and carbon monoxide detectors in the Leased Premises. Residents will report immediately and in writing any defects in the condition of any smoke and carbon monoxide detectors. Residents assume the responsibility for ensuring the smoke and carbon monoxide detectors are in operating condition at all times and for replacing batteries as needed. Owner may replace the batteries in any smoke and carbon monoxide detectors in the Leased Premises at any time at cost to Residents. Owner shall give advance notice of entry except in event of emergency. Residents will be liable for any damages that result from Residents' failure to maintain any smoke and carbon monoxide detector in the Leased Premises and any fines and penalties for the failure comply with RCW 43.44.110.

By initialing below, Residents hereby confirm that the smoke detector and carbon monoxide detector was operational as of the date of Residents' inspection of the Leased Premises.

Initial:  _____

11.3. Freezing Weather Conditions. For the purpose of preventing broken pipes and other damages, Residents agree that for the duration of any freezing weather conditions, Residents will maintain the temperature of the Leased Premises at **fifty (50)** degrees Fahrenheit, leave all closet and cupboard doors open (which allows more heat to reach pipes), and set all water faucets to drip. Residents will be liable for any damages that result from Residents' failure to perform the responsibilities listed in this Section.

11.4. Crime or Emergency. In the event of a crime or emergency, call 911, then contact Owner or Owner's



representative. Except to the extent required by law, Owner makes no warranties or guarantees, express or implied, concerning security measures implemented by Owner. All warranties and guarantees not specified in this Agreement are expressly disclaimed. Owner is not required to obtain a criminal history report on any Residents, occupants, guests, visitors, or contractors to the Residential Community. Residents, Occupants, or guests affected by crime must make a written report and deliver it to Owner or Owner's representative and the appropriate law enforcement agency. Upon request, Residents must provide Owner with any law enforcement agency's report related to Residents' tenancy or the Residential Community.

- 12. UTILITIES.** Owner will furnish the following utilities to the Leased Premises: None. Residents agree to pay all charges (including utility deposits) not supplied by Owner, assessed by the utility provider (or Owner, or Owner's designated Billing Party) in connection with Residents' use of utilities during the term of this Agreement, or the period of occupancy by the Residents, whichever is longer. Residents agree to pay the utility bills for which they are responsible and ensure that utilities remain connected for the duration of the Initial Term or any renewal period. Residents shall properly use all electrical, gas and plumbing fixtures and appliances only for their intended purposes. Residents shall not install or operate any additional equipment or appliances, including, but not limited to, portable generators, additional refrigerators and freezers, a dishwasher, washing machine, clothes dryer or an air conditioning unit in the Leased Premises unless supplied by Owner or with Owner's prior written approval. Residents will pay for the following utilities, including any related deposits, fees, charges, or services on such utilities: Water, Sewer, Trash, Electricity, Cable, Gas, and Other.

Owner may modify the method by which the utilities are furnished to the Leased Premises or billed to Residents during the term of this Agreement. In the event of interruption or failure of utility services that Owner is required to furnish, Owner shall use reasonable diligence in its efforts to restore such services. Owner shall not be liable for any damages directly or proximately caused by interruption or failure of utility service unless such interruption or failure of utility service is solely due to Owner's failure to pay to the service provider for the provision of such services to the Leased Premises. Residents acknowledge and agree that utilities provided under this Agreement are for normal household use and must not be wasted. Owner will attach an addendum to this Agreement if a utility is sub-metered or pro-rated by an allocation formula. Where applicable. Residents will be charged recycling related fines assessed on the Residential Community. Owner may change or install utility lines or equipment affecting the Leased Premises if the work does not substantially increase Residents' utility costs. Owner has the right to turn off or interrupt utilities as necessary for installation, maintenance, repairs, or to avoid damage to property.

Owner reserves the right, at any time a past due balance is owing on the utilities, to apply any and all funds received from the Residents, including funds paid as rent, first to the past due balance and then any remaining funds will be applied to rent. Residents agree to this allocation of funds despite any limiting or restrictive endorsement contained on the payment. Further, if Residents fail to pay any utility charges that are to be paid by Residents, Owner may, at its option, pay such charges in full to retain continuing utility services and bill Residents such charges as additional rent together with the next regular monthly rental payment which is due following the date of such utility billing. When the Residents move from the Leased Premises, the utility charges will be charged to and deducted from the security deposit. It is understood and agreed between Owner and Residents that in the event sub-metered or allocation payments are not made when due, it shall be considered a default under this Agreement.

12.1. Connecting Utilities. If a utility is individually metered, it must be connected in Residents' names and Residents must notify the utility provider of Residents' move-out date so the meter can be timely read. If Residents are in an area open to competition and the Leased Premises is individually metered, Residents may choose or change Residents' retail electric provider at any time. If Residents qualify, Residents' provider will be the same as Owner's, unless Residents choose a different provider. If Residents choose or change Residents' provider, Residents' must give Owner written notice. Residents must pay all applicable provider fees, including any fees to change service back into Owner's name after Residents move out.

- 13. REQUESTS, REPAIRS, AND DAMAGES.** Except in cases of emergencies or Fair Housing accommodations, all notices from Residents or Occupants to Owner regarding repairs, services, or security must be signed by Residents or Occupants and provided to Owner in written or electronic form only, as specified by Owner. Verbal requests from Residents, as well as written notes by Owner, Owner's employees, or agents will not be considered proper notice under this provision, and Owner's compliance with Residents' verbal requests does not constitute waiver of the strict requirements of this Section. Incidents constituting emergencies include situations where persons or property are in danger of imminent harm, such as fire, smoke, flooding water or active criminal activity. Residents must immediately notify Owner of any repairs, service issues, or security issues in the Leased Premises or at the Residential Community.

Residents must notify Owner in writing as soon as possible about any condition that may pose a hazard to the health and safety of individuals or property. If Owner reasonably believes that damage from a fire or other catastrophe is substantial, or that performance of necessary repairs may pose a danger to Residents, Owner may terminate this Agreement with reasonable notice. In such event, Owner will refund the prorated rents and deposits, less any lawful deductions. Owner may terminate this Agreement upon reasonable notice to Residents if the Leased Premises are substantially damaged or



the performance of services or repairs creates a danger to Residents, and Owner may remove Residents' personal property if it poses a safety or health hazard. Owner may temporarily interrupt services as needed to prevent property damage or perform repairs, which will not constitute a reduction in services entitling Residents' to an abatement of rent, unless required by law.

- 14. LIABILITY INSURANCE.** Residents shall bear the risk of loss of any and all of Residents' personal property whether located in the Leased Premises, in garage/carport, designated storage areas or anywhere within the Residential Community. Residents agree not to hold Owner, its agents and/or employees liable in any manner for or on account of any loss or damages sustained by reason of the acts or omissions of third parties, or arising from any casualty (including but not limited to fire, smoke, rain, flood, water and pipe leaks, mold, hail, ice, snow, lightning, wind, explosions, earthquake, interruption of utilities, theft, hurricane, negligence of other residents, occupants, or invited/uninvited guests or vandalism, unless otherwise required by law. Residents understand and agree that Residents, any members of their household, occupants, or guests are not beneficiaries of any insurance policies held by Owner or Owner's agents. Residents are required to purchase and maintain personal liability insurance with a coverage limit of no less than **\$100,000.00** for the Initial Term and any renewal periods. Residents will be in material breach of this Agreement if they fail to comply with the requirements of this provision.

Residents acknowledge and agree that any insurance coverage maintained by Owner is not in any way held for the protection of Residents and is not intended to benefit Residents, Occupants, guests, or invitees in any way. Residents are not to be considered an insured, implied or otherwise, of Owner or on any of Owner's insurance policies, including fire and structure, unless expressly stated within this Agreement or within the insurance policy. Residents are to remain liable for their own negligence and are solely responsible for purchasing insurance to protect their own property. By initialing below, Residents acknowledge and agree that neither Residents nor any Occupants or guests are beneficiaries or in any way co-insured under any insurance policies held by Owner.

Initial:  _____

- 15. ANIMALS.** No animals are permitted in the Leased Premises or the Residential Community without the prior written consent of Owner. If Owner provides consent, Owner and Residents will execute an Animal Addendum to this Agreement, which may require payment of additional rents or deposits. To the fullest extent allowed by law, Owner may revoke consent for the animal at any time, with or without cause if, at Owner's sole discretion, the animal creates a nuisance or disturbance, upon ten (10) days written notice or as otherwise required by applicable law. Unless otherwise required by law, or except to the extent written permission is given, animals may not be brought upon the Leased Premises, whether such animals belong to Residents or to any other person. The presence of any animals as to which written permission has not been given and is not currently in force, even if such animals are "just visiting," shall be deemed a material and incurable breach of this Agreement and shall be cause for the service of a notice terminating the tenancy.

15.1. Service and Emotional Support Animals. Owner will authorize an emotional support animal for a disabled (handicapped) person. However, Owner may require a written statement from a qualified professional verifying the need for the emotional support animal if the person's disability is not readily apparent or already known to Owner.

- 16. HOLD HARMLESS FOR GUESTS.** To the fullest extent permitted by law, Residents agree to defend, protect, indemnify, and hold harmless Owner and Owner's agents against and from any and all claims, suits, liabilities, judgments, costs, demands, causes of action, and expenses, brought by Residents, Occupants, Residents' guests, and any other individuals in the Leased Premises with Residents' permission. If any action or proceeding is brought against Owner or Owner's agents by reason of any such claim, upon notice from Owner, Residents shall defend the same at Residents expense by counsel reasonably satisfactory to Owner.

- 17. DELIVERY OF LEASED PREMISES.** If, for any reason, Owner is unable to provide occupancy to Residents by the scheduled first day of the Initial Term, this Agreement will continue to be in effect, and Residents may elect one of the following remedies: a) a prorated daily abatement of rent until the date that Owner delivers possession of the Leased Premises; or b) Residents may terminate this Agreement up until such time as Owner delivers possession. Owner will have no liability to Residents if there is a delay of possession other than to refund any amounts paid to Owner under this Agreement. Residents' failure to take occupancy of the Leased Premises due to issues of cleanliness, repairs, or services, does not constitute a failure of Owner to deliver possession of the Leased Premises.

- 18. RESPONSIBILITIES OF OWNER.** Owner will act with customary diligence, and as required by applicable law, in keeping common areas reasonably clean; maintaining fixtures and appliances; complying with applicable safety, sanitation, and fair housing laws; and making reasonable repairs, provided that Residents shall be required to pay for all damages for which Residents are liable.

18.1. Security. Except as otherwise required by law, Owner makes no representations or guarantees to Residents concerning the security of the Leased Premises or the Residential Community. Owner is under no obligation to



Residents to provide any security measure or take any action not required by statute. The presence of courtesy patrols, patrol cars, access gates, surveillance cameras or other deterrents do not guarantee that crime can or will be prevented. All such systems are subject to personnel absenteeism, human error, mechanical malfunctions and tampering. Residents are responsible for planning and taking action with respect to the safety of Residents and their property as if such systems and deterrents did not exist. Residents agree to immediately report all suspected or actual criminal activity to the appropriate local law enforcement agencies and, after doing so, to Owner, and shall provide Owner with such law enforcement agency's incident report number upon request.

Owner has no obligation to obtain criminal background checks on any Residents and bears no responsibility or liability related to the criminal background or actions (whether past, present or future) of any person, even if Owner has actually run a criminal background check on applicants. Residents shall not rely on the fact that Owner may have run a criminal background check on Residents or any other applicant when deciding whether to enter into this Agreement. Background checks are limited to the information actually reviewed and are not a guarantee that a person with a criminal background does not reside at the Residential Community. Owner has not made and does not make any representations as to the background of any existing or future tenant and Owner is under no obligation to run background checks on any existing tenant or future applicant.

19. ACCESS. Pursuant to RCW 59.18.150, Owner may enter the Leased Premises in order to: a) inspect the Leased Premises; b) make necessary or agreed repairs, alterations, or improvements; c) supply necessary or agreed services; or d) show the Leased Premises to prospective or actual purchasers, mortgagees, Residents, workers, or contractors. Owner shall have the right to enter upon forty-eight (48) hours written notice, or twenty-four (24) hours written notice if entry is to show the Leased Premises to prospective or actual purchasers or Residents at a specified time, and shall enter only at reasonable times. Owner may enter the Leased Premises without consent in case of emergency or abandonment. Owner may also be given right of access by court order, arbitrator or by consent of Residents. Residents acknowledge and agree that if Residents unreasonably withhold consent to Owner to enter into Leased Premises, when Owner is in compliance with statutory requirements and is entitled to access, any such denial of access shall be deemed a violation of this Agreement.

20. TERMINATION, DEFAULT AND REMEDIES. Owner and Residents agree that all provisions, obligations, and conditions of this Agreement are reasonable and material and that a breach by Residents of any such provision, obligation, or condition constitutes a material breach thereof. Owner is entitled to all rights, remedies, and damages under this Agreement and by law, including, but not limited to, all rights and remedies for damages to the Leased Premises, cleaning charges, past and future rent due, or other amounts due under this Agreement. All rights and remedies provided in this Agreement and by law are cumulative. To the fullest extent permitted by law, this Agreement shall be deemed terminated upon written notice of termination by Owner to Residents. No other action by Owner shall constitute termination, including, but not limited to: a) maintenance of the Leased Premises by Owner or on Owner's behalf; b) efforts to rent out the Leased Premises by Owner or on Owner's behalf; c) Owner's withholding of consent to assign or sublet the Leased Premises pursuant to the terms of this Agreement; d) Owner's termination of a sublet or assignment of the Leased Premises pursuant to the terms of this Agreement; or e) actions by Owner to procure the appointment of a receiver to secure Owner's interests under this Agreement. In the event of a breach by Residents, or where required by state or local law, Owner may provide to Residents written notice of the breach and demands for cure. Owner may terminate this Agreement if a cure is not possible or if Residents do not cure the breach within the time period provided by the notice or state law. If this Agreement is for month-to-month terms, then this Agreement may be terminated as follows: a) by Residents upon twenty (20) days written notice to Owner; or (b) by Owner, under any circumstances permitted by law, upon ninety (90) days written notice (or lesser notice if allowed by law) to Residents.

20.1. Acceleration of Rent. If Residents, without Owner's consent, move out, remove property in preparation to move out, or give oral or written notice of intent to move out prior to the end of the Initial Term or renewal periods AND Residents have not paid all rent for the entire Initial Term or renewal periods, then Residents will be liable to pay rent through the remainder of the Initial Term or renewal periods. Payment will be automatically accelerated and due without notice or demand. Residents under a court-ordered eviction or Residents who move out on demand from Owner due to a breach, will also be subject accelerated rent payment. Accelerated rent payments are subject to Owner's obligation to mitigate.

20.2. Reletting Expense. To the fullest extent allowed by law, because damages relating to Owner's costs to find and replace tenants are difficult to ascertain in the situations described below, Residents agree that a nonrefundable reletting expense of **\$6,625.00** is a reasonable estimate for such activity. Residents will be required to pay the lesser of rent due through the end of the Initial Term or renewal period or the reletting expense: a) for failure to provide written move-out notice pursuant to terms of this Agreement; b) upon Owner's demand in the event of Residents' default; c) pursuant to a court order for eviction; or d) for failure to pay rent in full for the entire lease term or renewal period upon move out. The reletting expense is not the same as a lease cancellation fee or buyout fee, rather, it is an agreed-upon liquidated amount to cover Owner's damages in part. The reletting expense is not a substitute for and does not release Residents from liability for damages to the Leased Premises, cleaning charges, past and future rent due, or other



amounts due under this Agreement. If unenforceable, Owner is entitled to recover the maximum amount of reletting damages allowed by law.

- 21. MOVE-OUT NOTICES AND PROCEDURES.** Prior to moving out, Residents are required to provide Owner with advance written notice. The move-out notice must comply with the notice provision of this Agreement and provide Residents' move-out date. Residents must obtain written acknowledgment from Owner of receipt of Residents' move-out notice. If Owner terminates this Agreement, Owner will provide Residents with the same notice unless Residents have breached the terms of this Agreement. Oral move-out notice is not an acceptable form of termination. The move-out date provided for in the notice cannot be changed without additional written agreement signed by both parties. Each Resident must provide Owner with their forwarding address in writing. A move-out notice does not release Residents from liability under the full term or any renewal terms of this Agreement except where Resident moves out pursuant to a Military Personnel Release or if Owner and Resident agree to such release in a written amendment signed by both parties. Residents may not withhold any portion or last month's rent under the assumption that the security deposit will cover rent due. Early move out by Residents may also result in Owner incurring reletting expenses, which Residents will be liable to Owner for to the maximum extent permitted by law.

Residents, Occupants, and guests must vacate the Leased Premises on or by the agreed-upon move-out date, the date contained in Residents' move-out notice, or, to the fullest extent permitted by law, Owner's notice to vacate. Owner may pursue action for possession for any holdover after expiration of the term of this Agreement or its termination, without the consent of Owner. Additionally, Residents will be liable for double the damages caused by their holdover, including, but not limited to, rent at the market rate and the loss of any lease signed by a new tenant who cannot take possession of the Leased Premises because of Residents' holdover, or other consequential damages.

21.1. Cleaning. Prior to moving out, Residents are required to clean all areas of the Leased Premises, including but not limited to, living and dining rooms, kitchens, hallways, bedrooms, closets, bathrooms, floors, outdoor walkways, patios, balconies, and any leased or assigned parking or storage areas. Residents must also comply with move-out and cleaning instructions provided by Owner. If, at Owner's discretion, Residents fail to adequately clean the Leased Premises, Owner reserves the right to hire a professional cleaning service and Residents will be liable for reasonable cleaning expenses.

- 22. RESIDENTS' PERSONAL PROPERTY.** Residents shall vacate and remove all personal property from the Leased Premises upon expiration or termination of this Agreement without further notice or demand from Owner. Owner may remove and dispose of Residents' personal property in a manner permissible by state and local law upon termination or expiration of this Agreement, surrender, abandonment, or court-ordered eviction of Resident. Owner may consider the Leased Premises surrendered when: a) this Agreement expires; b) Residents return keys and access devices to Owner; or c) the Residents have vacated the Leased Premises and the move-out date has passed, whichever is earlier. Owner may consider the Leased Premises abandoned when: a) the Leased Premises appears to have been vacated; b) a significant number of the Residents' personal belongings have been removed; c) utility services to the Leased Premises have been terminated or transferred; or d) Residents have informed Owner of Residents intent to end the tenancy. Property removed or stored by Owner after Residents surrender, abandon, or are subject to a court-ordered eviction may be redeemed by Residents upon payment of all outstanding sums owed under this Agreement and applicable law.

- 23. SECURITY DEPOSIT RETURN.** Owner will mail the security deposit, less any lawful deductions, and an itemized list of amounts withheld no later than twenty-one (21) days after termination, surrender, or abandonment, unless applicable law provides otherwise. Delivery of security deposit refunds and itemized deductions to any one of multiple Residents shall constitute notice and delivery to all Residents. Residents are not entitled to a refund of any portion of the security deposit unless Owner receives proper notice of move out pursuant to this Agreement. The twenty-one (21) day period for the return of security deposits will begin after the day that all Residents, Occupants, and guests must vacate the Leased Premises.

- 24. RELEASE OF RESIDENTS.** Unless otherwise provided for by this Agreement or by law, Residents will not be released from this Agreement.

24.1. Military Personnel Release. The Servicemembers Civil Relief Act ("SCRA") provides relief to U.S. servicemembers, as defined in the SCRA, who entered into certain real property leases. The SCRA allows for early termination of this Agreement in the following instances: a) the servicemember entered into this Agreement and thereafter enters active military service; b) the servicemember entered into this Agreement while on active duty and then receives permanent change of station orders; c) the servicemember entered into this Agreement while on active duty and then receives orders to deploy for a period of not less than ninety (90) days; d) the servicemember executed this Agreement upon receipt of military orders for a permanent change of station or to deploy for a period of not less than ninety (90) days and thereafter receives a stop movement order for a period of not less than thirty (30) days which prevents the servicemember or the servicemember's dependents from occupying the Leased Premises; e) the servicemember incurs a catastrophic injury or illness during a period of military service or while performing covered service as defined in the SCRA and desires to terminate within one (1) year of the injury or illness; or f) the spouse or dependent of the

servicemember desires to terminate this Agreement within one (1) year of the death of the servicemember while in military service, full time active Guard or Reserve duty or inactive-duty training.

Residents seeking release pursuant to the SCRA (except for those terminating based on stop movement orders) are required to provide: 1) written notice to Owner; and 2) copies of Resident's military orders. After notice is delivered, this Agreement will be terminated thirty (30) days after the next date that rental payment is due. Residents seeking release based on stop movement orders must submit written notice of termination and a copy of their stop movement orders, and the termination is effective immediately upon submission. In order to be eligible for release under this section, this Agreement must be signed by or on the behalf of the servicemember. Release under this section does not apply to a co-resident who is not the spouse or legal dependent of the eligible Resident.

25. MISCELLANEOUS. This Agreement, including all applicable exhibits, schedules, addenda, or forms, sets forth all of the promises, agreements, conditions, and understandings between Owner and Residents and may not be changed or modified except by an agreement in writing signed by all parties. Residents acknowledge that all representations and statements relied upon in executing this Agreement are contained herein and that Residents in no way relied on any other statements or representations, written or oral. This Agreement and all rights of Residents arising under it are expressly agreed to be subject and subordinate to present and future recorded mortgages which are or may be placed upon the Leased Premises and all other rights afforded to the holder of any such mortgages.

25.1. Zero Tolerance Crime Policy. Residents, Occupants, guests, or other individuals under Residents' control: 1) shall not engage in criminal activity or engage in any act intended to facilitate criminal activity on or near the Residential Community; 2) shall not engage in drug-related criminal activity on or near the Residential Community, including but not limited to, the illegal manufacture, sale, distribution, use, or possession with the intent to manufacture, sell, distribute, or use of an illegal or control substance as defined in Section 102 of the Controlled Substance Act, 21 U.S.C. § 802; 3) shall not facilitate, use, or permit the Leased Premises to be used for criminal or drug-related criminal activity; and 4) shall not engage in any illegal activity which might negatively affect the health, safety, or welfare of Owner, Owner's agents, other residents, the Leased Premises, or the Residential Community. Owner and Residents agree that these provisions are reasonable and material and that a violation by Residents of any such provision constitutes a material breach of this Agreement and is good cause for immediate termination of tenancy.

25.2. Satellite Dishes and Antennas. The Federal Communications Commission states that Residents have a limited right to install a satellite dish or receiving antenna within the Leased Premises. This Agreement must be amended to incorporate requirements and restrictions prior to any installation. Residents are responsible for making sure the Leased Premises is in a location to receive the satellite signal prior to requesting permission to install. For information on requirements and restrictions, contact Owner. Residents shall not install any external media device nor climb or have others climb upon the roof.

25.3. Bedbugs. Bedbugs are wingless parasites which may lie dormant in cracks, crevices and personal belongings until a host is present. Residents have an affirmative duty to inspect the Leased Premises and notify Owner of the presence or infestation of insects or vermin, including bedbugs, within forty-eight (48) hours of Residents taking possession of the Leased Premises. Absent this timely notice to Owner, Residents acknowledge and confirm that the Leased Premises are free of the presence or infestation of insects or vermin, including bedbugs. Residents agree to maintain the Leased Premises in a manner that prevents the occurrence of any infestation of insects and vermin, including bedbugs. If Residents allow individuals or items carrying bedbugs into the Leased Premises, or have repeated infestations that cannot be traced to another source, such will be deemed damage to the Leased Premises and Residents shall be responsible for the cost of treatment to the Leased Premises, personal belongings and surrounding residences as necessary to eradicate the infestation.

25.4. Attorney's Fees. In the event either party engages, retains or hires an attorney to enforce any provision of this Agreement, or any obligation under law, including but not limited to the collection of rent and/or other charges due hereunder, both Owner and Residents agree that, to the fullest extent permissible by law, court costs, prejudgment interest at the judgment rate from the date of default, and reasonable attorney's fees may be awarded to the prevailing party, even if no case is filed with the courts. If the matter is not filed in court, both parties agree that the prevailing party is entitled to be compensated upon demand to the other party. Owner shall be deemed to be the prevailing party if the action voluntarily is halted by Owner prior to judgment, or if the case is not filed, prior to filing, on the basis that Owner accepted from Residents of all or part of the amounts alleged to be owing, or on the basis that Residents vacated the Leased Premises. An eviction or unlawful detainer action shall be considered an action relating to this Agreement and thus subject to this provision.

25.5. Sale of Leased Premises. In the event of a sale or pending sale of the Residential Community or in the event Owner, new owner, lender, or lender's receiver must obtain possession of the Leased Premises in order to redevelop, renovate, or demolish the Leased Premises or any portion of the Residential Community, Residents agree that Owner, new owner, lender, or lender's receiver shall have the right to terminate this Agreement upon thirty (30) days written notice, unless longer notice is required by law.



25.6. Fair Housing. Owner shall comply with all applicable local, state, and federal non-discrimination and fair housing laws, including laws which prohibit discrimination on the basis of race, religion, ethnic origin, national origin, color, sex, age, physical or mental disability, family status, source of income or acceptance of housing vouchers.

25.7. Photograph Release. Residents give permission to Owner to use any photograph or photographic image, including video or video stills, taken of Residents while in the common areas of the Residential Community or at any events sponsored by the Residential Community. Residents hereby grant Owner, and any of Owner's affiliates, successors or anyone else authorized by Owner, the irrevocable and unrestricted right and permission to copyright, in its own name or otherwise, the unlimited use of Residents' image, without restriction as to changes or alterations, made through any medium, for any legal purpose whatsoever. Residents also consent to the use of any printed matter in conjunction therewith. Residents hereby waive any right to inspect or approve the finished product and the advertising copy or other matter that may be used in connection therewith or the use to which it may be applied. Residents hereby release, discharge, and agree to hold harmless Owner and any of Owner's affiliates, successors or anyone else authorized by Owner, for all claims and demands arising out of or in connection with the use of the images taken of Residents, including without limitation any and all claims for libel, false light or invasion of privacy.

Initial:  _____

25.8. Liquid Filled Furniture. Liquid filled furniture, including, without limitation, waterbeds and aquariums, is allowed only with proper insurance coverage, and prior written approval of Owner. Residents must provide Owner with at least 24-hours written notice prior to the installation, removal or movement of any liquid-filled furniture and Owner has the right to be present at the time of such installation, removal or movement. Installation movement and removal must be done in accordance with standards set by the manufacturer, retailer or state law, whichever provides the higher degree of safety. No aquariums over 5 gallons are permitted without prior written consent of Owner. Any damages to the Leased Premises, the Residential Community or other residents' belongings as a result of leaks from liquid filled furniture will be replaced at the expense of Residents. Damages caused by the liquid filled furniture to other residents' belongings will give Owner permission to provide necessary Residents' information to all parties affected by the damage.

25.9. Cash is not acceptable as a form of payment. All monthly payments must be made by one (1) check not multiple checks. Partial payment of rent is not acceptable at any time; all payments must be made in full to include all amounts due. Post-dated or third party payments will not be accepted.

25.10. Misstatements on Application. Owner has relied on the statements and representation Residents made on the rental application for the Lease Premises in executing this Agreement. Residents agree that the discovery of any misstatements or misrepresentations of fact in the rental application shall be deemed a material and incurable breach of this Agreement and Owner may serve Residents with a three (3) day notice to terminate the tenancy pursuant to state law.

25.11. Proof of Occupancy. Residents agree that the receipt of mail by any individual not listed as a Resident or Occupant in this Agreement at the Leased Premises shall be proof of occupancy of that individual and a violation of this Agreement.

25.12. Force Majeure. To the fullest extent permitted by law, Owner shall be excused from performance or obligations under this Agreement in the event of an act of God, epidemic, war, acts of terrorism, flood, fire, tornado, hurricane, riot, or any other event beyond Owner's control.

26. DISCLOSURE. To the fullest extent allowed by law, Owner may provide information on Residents or Residents' rental history to business affiliates or upon reasonable request from an authorized agent of state or federal government or law enforcement agency.

27. WAIVER. Owner's failure on any occasion to require strict compliance with any provision of this Agreement or to exercise any rights arising hereunder shall not be deemed a waiver of Owner's right to subsequently enforce any such provision or to insist upon any such right. No custom or practice which may develop between the parties during the course of the tenancy shall be construed to waive the rights of Owner to enforce any provision of this Agreement. Owner's not enforcing or belatedly enforcing written-notice requirements, rental due dates, acceleration, liens, or other rights, or Owner's acceptance of rent after a notice of non-compliance or non-payment shall not be deemed a waiver under any circumstances.

If Residents pay only a portion of rent or other charges due (partial payment), with the government or another entity being responsible for paying the remainder of the rent and/or other charges due, and the government or other entity actually pays its portion and Residents fail to pay its portion as agreed, then Residents agree that in such an instance receipt of any payment from the government or other entity does not constitute a partial payment and Owner may move forward with eviction proceeding against Residents, unless the parties agree and enter into a written non-waiver agreement.

28. SEVERABILITY. If any provision of this Agreement is legally invalid, or declared by a court to be unenforceable, such



provision will be deemed deleted and the rest of this Agreement shall remain in effect. To the extent that any provision of this Agreement is in conflict with any provisions of applicable law, such provision is hereby deleted, and any provision required by applicable law which is not included in this Agreement is hereby inserted as an additional provision to this Agreement, but only to the extent required by applicable law and then only so long as the provision of the applicable law is not repealed or held invalid by a court of competent jurisdiction.

29. ATTACHMENTS TO THIS AGREEMENT. Residents acknowledge and agree that the attachments listed below are incorporated into and made a part of this Agreement, and are binding even if not initialed or signed by Residents. By signing this Agreement, Residents confirm receipt of this Agreement and the attachments listed below.

Acknowledgement Addendum - Seattle	Moisture Disclosure Statement
Animal Addendum	Package Acceptance Form
Bedbug Addendum	Parking Storage Garage Addendum
Community Policies	Renter Insurance Lease Addendum (eProtect)
Concession Addendum	Resident Communication Log
Crime Free/Drug Free Addendum	Restricted Animal/Breed Policy
Energy Conservation Notice	Rooftop Deck Addendum
Guest Key Addendum	Smoke Alarm
Key, Permits & Access Device Addendum	Smoke Free Addendum
Lease Buy-Out Agreement	Third Party Billing Ordinance
Liquid Filled Furniture Addendum	Utility Addendum

30. SIGNATORIES. Residents, whether or not in actual possession of the Leased Premises, are jointly and severally liable for all obligations arising hereunder. This Agreement shall not be considered to be in full force and effect until signed by Owner. Owner may, without liability, refuse to enter into this Agreement and may refuse to allow Residents to move into the Leased Premises at any time prior to signing this Agreement. Anything to the contrary in this provision notwithstanding, Residents shall be fully liable for all obligations arising hereunder, and Owner may enforce the provisions of this Agreement against Residents if, for any reason or by any means, Residents obtain possession of the Leased Premises before such time as this Agreement has been signed by Owner.

30.1. Electronic Signatures. The parties agree that they may enter into this transaction by electronic means; although, traditional hard copies with ink signatures may be used instead at Owner's option or if required by law. Residents agree and acknowledge that if Residents are entering into this transaction with Owner by electronic means, doing so is not conditioned on Residents' agreement to conduct the leasing transaction electronically.

INTENDING TO BE BOUND, the parties hereto have executed this Agreement as of the day and year first above written.

 Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:29:17 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) _____ Date

Nida Fathima (Resident) _____ Date

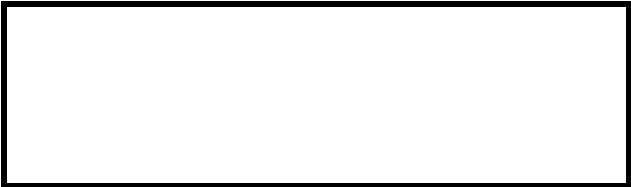
(Owner/Agent) _____ Date

State of Washington
County of King

I certify that I know or have satisfactory evidence that _____ is/are the person(s) who appeared before me and acknowledged that he/she/they signed this instrument, and acknowledged it to be his/her/their free and voluntary act for the uses and purposes mentioned in the instrument.

(Notary Public) Date

My Commission Expires: _____



(Notary Public stamp/seal)

CITY OF SEATTLE ACKNOWLEDGMENT ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated May 4, 2024, and is between the Owner of Arrive ("Owner") and Mohammed Sauban Mussaddique and Nida Fathima, (collectively and individually "Residents"), for the premises at 2116 4th Avenue #2317, Seattle, WA 98121 (the "Leased Premises"), which is located within Arrive (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Resident has received the following documents in compliance with the City of Seattle ordinances:

Third Party Billing Disclosure

Seattle Landlord Tenant Laws



Signed by Mohammed Sauban Mussaddique

Sun May 5 2024 09:29:34 AM PDT

Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

(Owner/Agent)

Date

ANIMAL ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **May 4, 2024**, and is between the Owner of **Arrive** ("Owner") and **Mohammed Sauban Mussaddique and Nida Fathima**, (collectively and individually "Residents"), for the premises at **2116 4th Avenue #2317, Seattle, WA 98121** (the "Leased Premises"), which is located within **Arrive** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

1. No animals are permitted without the prior written consent of Owner. Any such consent may be revoked at any time, with cause upon ten (10) days written notice or without cause upon **seven (7)** days written notice to Residents. Except to the extent written permission is given, animals may not be brought upon the Leased Premises, whether such animals belong to Residents or to any other person. The presence of any animals as to which written permission has not been given and is not currently in force, even if such animals are "just visiting," shall be deemed a material and incurable breach of this Addendum and shall be cause for the service of a notice terminating the tenancy in accordance with applicable law. Service animals or emotional support animals are not subject to these provisions; however, Owner may require a written statement from a qualified professional verifying the need for the service or emotional support animal.
2. Subject to strict compliance with this Addendum, you are permitted to have the following **0** animal(s) on the Leased Premises:

No pets have been authorized at this time.

3. **RENT.** A total monthly animal rent of **\$0.00** is required. The animal rent shall be due and payable with Residents' monthly rental payment.
4. **DEPOSIT.** An additional deposit of **\$0.00** is required for each animal. Upon vacating the Leased Premises, Owner shall do an inspection of the Leased Premises and any sanitizing or damage attributable to the animal(s) shall be charged to Residents accordingly. The animal deposit will be considered part of the general security deposit and can be applied to all damages. This additional security deposit shall be deemed part of the general security deposit for all purposes. The security deposit amount set forth in this Addendum is in addition to, and not in lieu of, any other security deposit paid by Residents. Refund of the security deposit will be subject to the terms and conditions set forth in the Residential Lease Contract.
5. **COMMUNITY RESTRICTIONS.**
 - A. Animals must be under Residents' control when outside of Leased Premises and shall not be tied to anything or left unattended outside of Leased Premises. Residents shall be limited to a maximum of **2** animal(s) weighing not more than _____ per animal when fully grown, unless otherwise given written permission by Owner.
 - B. When animal is acquired, additional sums may be required to be paid by Residents. Service or companion animals are not subject to this provision nor the standard animal deposits and animal rent requirements; however, Owner may require a written statement from a qualified professional verifying the need for the service animal or companion animal.
 - C. Residents are responsible for the immediate removal of animal's waste. Animal owners are required to purchase and carry scoopers and/or trash bags when walking dogs within community, including designated dog run areas. Some communities may be equipped with pet waste disposal stations.
 - D. Residents may not leave the animal on the patio, balcony or in the yard for extended periods of time.
 - E. Animals are not allowed on landscaped or grassy areas under any circumstances.
 - F. Patios should be kept clean of animal droppings. During hot weather, especially, odors from such can be extremely offensive to neighbors. No food is to be left outside.
 - G. Because of health regulations, non-service animals are not permitted in or around the pool area, laundry rooms, or other recreational facilities. Any mess on the grounds created by the animal shall immediately be cleaned up by the pet owner.
 - H. Owner is not obligated to make necessary or requested repairs while an animal is present in the Leased Premises.
6. **INOCULATION.** Said animal has been properly licensed and has current inoculations for the type of animal.
7. **DISTURBANCE.** Residents will be asked to remove any animal that regularly disturbs residents, whether inside or outside, or constitutes a problem or obstruction to the agents and employees of Owner from properly performing their functions, duties and responsibilities.
8. **REVOCATION.** If Residents fail to remove said animal following complaints from residents and requests from Owner, the Residents agree, on **seven (7)** days written notice, to remove animal from the Leased Premises permanently. Owner may revoke the consent given herein with cause upon ten (10) days written notice or without cause upon **seven (7)** days written notice, which revocation will require Residents to remove the animal from the Leased Premises within said **seven**

(7) days.

9. **OWNER'S LIABILITY.** In the event of injury or death of a pet, Owner will not be liable to Residents, any member of Residents' household, occupants, guests, invitees, or other persons for any indirect, incidental, consequential or special damages, whether foreseeable or not nor however caused, even if Owner is advised of the possibility of such damages. Notwithstanding the foregoing, in no event will Owner's liability exceed the lesser of the current fair market price of the pet or **\$100,000.00**.

10. **VIOLATION OF RULES/VIOLATION FEE.** If Residents, any member of Residents' household, occupants, guests, invitees, or other persons violate any rule or provision of this Animal Addendum, then Owner may demand that Residents remove the animal permanently from the Leased Premises. Owner also has all other rights and remedies set forth in the Residential Lease Contract, including but not limited to damages, termination, and eviction. If Residents fail to clean up animal waste from any part of the Residential Community and Owner, as a result of Residents' noncompliance, is required to make arrangements to have the waste cleaned up, Residents shall pay Owner a sum of **\$25.00**, per occurrence, as a liquidated damage. Said sum shall not limit Owner's right to terminate the tenancy, force Residents to remove the animal, and/or evict Residents, based upon any violation of this Addendum.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:29:47 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) _____ Date

Nida Fathima (Resident) _____ Date

(Owner/Agent) Date

BED BUG ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **May 4, 2024**, and is between the Owner of **Arrive** ("Owner") and **Mohammed Sauban Mussaddique and Nida Fathima**, (collectively and individually "Residents"), for the premises at **2116 4th Avenue #2317, Seattle, WA 98121** (the "Leased Premises"), which is located within **Arrive** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

This Addendum is intended to provide information and instructions for preventing and controlling bed bugs in order to maintain and protect the quality of the living environment for all Residents.

Residents agree to maintain the Leased Premises in a manner that prevents the occurrence of a bedbug infestation in the Leased Premises. Residents further agree to uphold this responsibility in part by complying with the following list of responsibilities, and agree and understand that, in addition to any other remedies available to Owner under the Lease, Residents may be liable for any damages resulting from their failure to comply with the following:

1. Prevention Recommendations. Residents will practice good housekeeping, including the following:

- Residents will check for hitch-hiking bedbugs. If Residents stay in a hotel or another home, inspect clothing, luggage, shoes, and belongings for signs of bed bugs before Residents enter the Leased Premises. Check backpacks, shoes, and clothing after visits to friends or family, theaters, and after using public transportation. After guests visit, inspect beds, bedding, and upholstered furniture.
- Residents will remove clutter. Bed bugs like dark, concealed places, such as in and around piles of clothing, shoes, stuffed animals, laundry, especially under the bed and in closets. Reducing clutter also makes it easier to carry out housekeeping.
- Residents will keep the Leased Premises clean. Vacuum and dust regularly, particularly in the bedroom, being especially thorough around and under the bed, drapes, and furniture. Use a brush attachment to vacuum furniture legs, headboard, and in and around the nightstand. While cleaning, look for signs of bed bugs, and report these immediately.
- Residents will arrange furniture to minimize bed bug hiding places. If possible, keep beds and upholstered furniture several inches away from the walls. Bed bugs can jump as far as three inches.
- It is highly recommended that Residents cover mattresses and box springs with zippered covers that are impermeable to bed bugs. These are relatively inexpensive, and can prevent bed bugs from getting inside the mattress, their favorite nesting spot. The covers will also prevent any bugs inside from getting out; they will eventually die inside the sealed cover (though this may take many months). Thicker covers will last longer.
- Residents will avoid using appliances, electronics and furnishings that have not been thoroughly inspected for the presence of bedbugs. Make sure that the electronics, appliance, or furniture company has established procedures for the inspection and identification of bedbugs or other pests. This process should include inspection of trucks used to transport appliances, electronics, or furniture. Never accept an item that shows signs of bedbugs. Never take discarded items from the curbside or trash enclosures.

2. Prompt Reporting. Residents must immediately notify Owner, in writing, of any problems. Specifically, Residents will:

- Report any signs of bed bugs. Do not wait. Even a few bugs can rapidly multiply to create a major infestation that can spread from one apartment to another.
- Report any maintenance needs. Bed bugs like cracks, crevices, holes, and other openings. Request that all openings be sealed to prevent the movement of bed bugs from room to room.

3. Cooperation with Pest Control. Residents will cooperate with pest control efforts, including allowing Owner to access the Leased Premises, in accordance with applicable law, to inspect and provide necessary treatments. If the Leased Premises (or a neighbor's residence) is infested with bed bugs, a pest management professional may be called in to provide necessary treatments. The treatment is more likely to be effective if the Leased Premises is properly prepared. Residents will comply with the recommendations from the pest management professional, including:

- Remove all bedding (bed skirts too), drapes, curtains, and small rugs; bag these for transport to the laundry or dry cleaner.
- Check mattresses carefully; those with minimal infestation may be cleaned, encased in vinyl covers, and returned to service. Heavily infested mattresses are not salvageable; seal these in plastic and dispose of them properly.
- Empty dressers, nightstands, and closets. Remove all items from floors and surfaces. Inspect every item for signs of bed bugs. Using sturdy plastic bags, bag all clothing, shoes, boxes, toys, stored goods, etc. Bag washable and non-washable items separately. Take care not to tear the bags, and seal them well. Used bags must be discarded properly.

- Vacuum floors, including inside closets. Pay special attention to corners, cracks, and dark places.
 - Vacuum all furniture, including inside drawers and nightstands. Vacuum mattresses, box springs, and upholstered furniture, being sure to remove and vacuum all sides of loose cushions, as well as the undersides of furniture.
 - Carefully remove vacuum bags, seal bags in plastic, and discard.
 - Clean all machine-washable bedding drapes, clothing, etc. Use the hottest water the machine provides, and dry at highest heat setting. Take other items to a dry cleaner, but be sure to advise the dry cleaner that the items are infested. Discard any items that cannot be decontaminated.
 - Move furniture toward the center of the room, so that technicians can easily treat carpet edges where bed bugs congregate, as well as walls and furniture surfaces. Be sure to leave easy access to closets.
- 4. Indemnification.** Residents agree to indemnify and hold harmless Owner from any actions, claims, losses, damages, and expenses, including, but not limited to, attorneys' fees to the extent allowed under RCW 59.18 et. Seq. Owner may sustain or incur as a result of the negligence of Residents or any guest or other person living in, occupying, or using the Leased Premises.

Residents represent that all furnishings and other personal property that will be moved into the Leased Premises are free of bedbugs.

Initial:  _____

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.

 Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:29:58 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) Date

Nida Fathima (Resident) Date

(Owner/Agent) Date

COMMUNITY POLICIES AND RULES

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **May 4, 2024**, and is between the Owner of **Arrive** ("Owner") and **Mohammed Sauban Mussaddique and Nida Fathima**, (collectively and individually "Residents"), for the premises at **2116 4th Avenue #2317, Seattle, WA 98121** (the "Leased Premises"), which is located within **Arrive** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Arrive, strives to make your living experience in our community pleasant and comfortable. The following policies and rules were designed for your comfort and convenience, as well as that of your neighbors. Residents are responsible for reviewing all policies and rules with all household occupants and guests. Please take time to thoroughly review this Addendum as it governs the use of the Leased Premises, Residential Community, its equipment and facilities. "Premises" as used in the Community Policies includes not only the Leased Premises, but all of the land and improvements including any parking lots, driveways and common areas privately owned by the Owner and generally referred to as the Community.

Property Telephone #: (206) 887-7665	Emergency Maintenance #: (206) 973-1983
Property Address: 2116 4th Ave, Seattle, WA 98121	Property E-mail Address: live@arriveSeattle.com
Usual Office Hours: Monday - Sunday 9am-6pm	

SECTION A: PROPERTY/MOVE-IN INFORMATION

ACCESSIBILITY: At the request of Residents, and in accordance with applicable law, Owner will provide reasonable disability-related accommodations and modifications that will allow for the equal use and enjoyment of the Leased Premises and/or common areas in the Residential Community.

BUSINESS: Residents shall not use the Leased Premises or permit the Leased Premises to be used for any business purpose, without the prior written consent of Owner or as allowed by law.

EXTENDED ABSENCES: Residents should advise Owner of any planned absence for an extended period of time.

MAIL AND NEWSPAPERS: Only authorized Residents are to receive mail at the Community. All mail must contain the full address of your residence, which includes the number of the Leased Premises as well as the building number - if applicable. Unwanted or "throw-away" advertising should be disposed of properly.

MOVING HOURS: All moving is to occur _____, and the service elevator, if one is available at the Residential Community, is to be used to move any objects of furniture, beds, appliances, carpets and any other large objects that are not permitted on the passenger elevator. Owner must be notified in advance of any moving to schedule the time and date of such move.

PARCELS/PACKAGES: Residents are responsible for making arrangements for parcel delivery that does not fit in the provided mail receptacle. This includes parcels from UPS, Federal Express, U.S. Postal Service or other mail and delivery services.

PREMISES INSPECTION: Each new Resident has confirmed in writing the condition of the Leased Premises on the Move-in/Move-out inspection form. This form is designed to record the condition of the Leased Premises at the time of move-in and to help determine the final disposition of the security deposit after terminating residency. Periodically, Owner may enter each Leased Premises to check the smoke and/or carbon monoxide detector(s), replace the air conditioner/heater air filter, and to properly maintain the equipment in the Leased Premises. Residents will be notified of the inspections with a written notice **48 hours** in advance. Inspection will be conducted during reasonable business hours. Upon vacating, Residents are entitled to an inspection of the Leased Premises to assess move-out charges.

QUIET HOURS: Quiet hours are established to be respectful of your neighbors. Residents shall not make nor permit any disturbing noises in their Leased Premises or on the grounds of the Community. Residents are responsible for the actions of all household members, invitees, and guests. Radio, television, record players, musical instruments, or any other noise producing device shall not be played or permitted to be played so as to disturb neighbors during quiet hours. Vacuum cleaners, dishwashers, disposals, or other noise-producing appliances shall not be operated during quiet hours.

SECTION B: USE OF PREMISES

ALTERATIONS OR ADDITIONS: Residents shall not make any alterations or additions to the Leased Premises. If any repairs, alterations or additions are necessary, Residents shall notify Owner in writing. Residents shall make no repairs, alterations, exterior alterations including, but not limited to, posting of signs, flags, plants on ledges and wind chimes,



Initial: _____



additions to the dwelling structure inside or out without first obtaining written consent from Owner. American flags may be displayed within the laws of the state and proper flag etiquette. Interior alterations include but are not limited to, changing light fixtures, painting, hanging wallpaper, etc.

BARBECUES: Unless included with the Leased Premises as an existing fixture or appliance, due to fire and other safety hazard concerns, no charcoal briquette barbecues grills, gas or propane grills, cooking/heating instruments, smokers, hibachi grills, portable gas stoves, etc. are to be stored or operated in the premises or on patios, balconies or breezeway areas. Any use of open flame is prohibited including but not limited to barbecues and torches.

GAS BURNING FIREPLACE POLICIES:

1. The fireplace in the Leased Premises does NOT burn wood or wood-related products. Residents will not alter anything in their fireplace at any time.
2. Please advise all authorized occupants, guests and other visitors not to put any foreign objects in or closely around the gas-burning fireplace.

OUTWARD APPEARANCE: Alterations that affect the outward appearance of the Community, such as installing personal window coverings, foil on windows, towels, blankets or clothing draped over balconies or partitions, are not permitted. Signs or advertising materials will not be permitted to be posted except for political signs as addressed in your lease. No foil, sign advertisements, poster, or similar display, shall be affixed to any door, window or exterior wall, that may be visible from the outside of the building by other residents.

ROOF ACCESS: The roof access is for emergency access only.

SMOKE/CARBON MONOXIDE DETECTOR: A smoke detection/carbon monoxide device has been installed in each Leased Premises. Residents acknowledge the smoke/carbon monoxide detector(s) was/were tested and its operation demonstrated by the Owner in the presence of Residents at the time of initial occupancy and the detector(s) in the Leased Premises was working properly at that time. By initializing as provided, each Resident understands that said smoke/carbon monoxide detector(s) and device is a **hard-wired with battery backup unit** and it shall be each Resident's responsibility to: 1) ensure that the battery is in operating condition at all times; 2) replace the battery as needed (unless otherwise provided by law) -- a periodic "chirping" usually means the battery is in need of replacement; and 3) if, after replacing the battery, the smoke/carbon monoxide detector(s) does not work, inform the Owner Representative immediately in writing. Residents shall perform the manufacturer's recommended test to determine if the smoke/carbon monoxide detector(s) is/are operating properly at least once per month. Resident must inform Owner immediately in writing of any defect, malfunction or failure of any detector(s). Residents are not to disable the smoke/carbon monoxide detector for any reason. Disabled smoke/carbon monoxide detector puts life at risk. REMOVING OR TAMPERING WITH A SMOKE/CARBON MONOXIDE DETECTOR(S) will be considered cause for termination of residency. Residents shall not remove or tamper, or permit any removal or tampering with, the smoke/carbon monoxide detector, which said act is punishable under Washington law with fines up to \$200.00 per occurrence.

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SPRINKLER SYSTEMS: The Leased Premises you occupy may be equipped with an automatic sprinkler system. Residents agree to use caution when moving furniture and avoid hanging objects or clothes from the sprinkler heads. A simple depression of the sprinkler head will result in a total draining of the water from the sprinkler system. Do not hang clothing, hangers or other objects from the sprinkler heads. Residents will be held liable for all damages to the Leased Premises, flood clean up and personal property damage caused by triggering the sprinkler system by improper use or damage.

1. The Leased Premises **does** have a fire sprinkler system.
2. The Leased Premises **does** have a fire alarm system.
3. The Leased Premises **does** have an emergency notification plan for its occupants. The emergency notification plan, if any, has been provided to Residents.
4. The Leased Premises **does not** have an emergency relocation plan. The emergency relocation plan, if any, has been provided to Residents.
5. The Leased Premises **does** have an emergency evacuation plan. The emergency evacuation plan, if any, has been provided to Residents.

CARE OF EQUIPMENT AND PREMISES

Cabinet Care: Cabinet surfaces can last anywhere from 10 to 15 years with proper care and maintenance. The following guidelines should be used to maintain your cabinets;

1. Clean the finish with a damp cloth/sponge etc. Please do not leave soap on the top of the surface and dry thoroughly.
2. Do not use acidic or abrasive cleaners or oils on the cabinets.
3. Do not use abrasive scrubbing pads, as this will scratch and dull the surface.
4. All chemicals must be kept away from the finish. These chemicals include but are not limited to cosmetics, hair dyes, perfumes, which may stain or otherwise mar the finish. Introduction of any of these chemicals onto the finish would be



Initial:  _____

considered damage and the cost of replacement will be Residents' responsibility

5. No stick on contact paper is to be applied to any shelves or drawers.

Carpet Care: One of the most important factors in maintaining the quality and sheen of your carpet is a good quality vacuum cleaner. A carpet sweeper will only lift the lint off the top of the carpet and fail to lift the dirt from below so that after time the dirt becomes compacted into the carpet. More dirt can be removed from the carpet by using a high quality vacuum cleaner. We do not recommend you attempt to steam clean carpets yourself. Improper cleaning can result in the use of too much water, too much soap and damage to the fibers. Remember that what you walk on outside is what you track onto your carpet inside. A good doormat with rough bristles on the inside of the main entrance to the Leased Premises may help to brush off undesirable items that get picked up on your shoes along the way. Be aware, carrying motor oil and such items on the bottom of your shoes onto the carpet may result in irreparable stain damage. Using plastic trays under plants can prevent water damage and bleaching, and acting quickly to clean up spills allows Residents to cope with them before they dry and become set in the carpet.

Drains: Proper use of the plumbing fixtures and drain systems is essential to prevent clogs and back up. Do not dispose of leftover grease or cooking oil down sink drains. Do not flush non-flushable items such as paper towels, rags, tampons or other feminine sanitary products, condoms, diapers, wipes or Q-tips in toilet. Preventing water back up of any kind will avoid damages to your personal belongings and the Leased Premises. Residents will be charged for costs due to improper disposal of items that results in drain clogs.

Electric Baseboard Heaters: Although electrical baseboard heaters are safe and appropriate for use in the Leased Premises, it could be a danger to place combustible or flammable items on the heaters, or within 36 inches of the heaters. Combustible or flammable items (such as clothing, bedding, pillows, toys, and the like) should not be placed on or within 36 inches of the heaters. If the heater is on when you leave the room, Resident should conduct a visual check to see that combustible or flammable items are not placed on or within 36 inches of the electrical base board heaters.

Emergency Water Shut-Off: If you need to turn off your water supply quickly, you will find a shut-off valve for the bathroom and kitchen in the cabinet below the sinks. The toilet shut-off valve is located underneath the toilet tank.

Equipment: The Leased Premises is provided with Refrigerator, Stove/Oven, Garbage Disposal, Dishwasher, Air Conditioning, and Washer/Dryer. Residents assume responsibility for any misuse of this equipment. Owner will assist with any questions as to the procedures for proper operation of the equipment. No personal dish-washing machine, clothes washing machine, clothes dryer or other large appliance is permitted in the Leased Premises without prior written consent of Owner. Residents agree to utilize washers provided by the Community within the specifications of the manufacturer. Residents will not overload the washer. Residents agree to immediately inform Owner of repair needs. Residents understand that over a period of time, washer hoses can loosen or come free. Residents agree to regularly check hoses to make sure they are secure.

Garbage Disposal: Before turning on your disposal, make sure you have cold water running into the sink. Please keep in mind that your disposal is designed for food only. Never use to grind bones, egg shells, coffee grounds or other non-food items. Residents will be charged for costs due to drain clogs due to misuse.

Quartz Countertop Care & Maintenance: Quartz Countertops are ☒ included ☐ not included in the Leased Premises. Quartz is a synthetic stone and will last forever; however, it does require some care. Residents agree to comply with the care and maintenance addendum for the quartz countertops. Failure to comply with the use and care of the countertops could result in damage. Below are tips that will help protect and keep your quartz looking great. General Pre-Cautions (note: quartz can scratch, crack and stain):

1. Do not cut directly on the quartz. This can cause permanent scratches on the surface in addition to dulling your knives. Use a cutting board.
2. Avoid dropping or placing heavy or sharp objects on your quartz (can crack the slab).
3. Be careful not to strike edges with hard objects (cause chips and breaks).
4. Avoid flame or applying heat to surfaces (candles, irons, etc.).
5. Use a trivet or potholder to protect the surface from hot pots/pans/dishes; use placements under china, ceramics, silver or other objects that could scratch the surface.
6. Use coasters under all glasses, particularly those containing alcohol or citrus juices. Many common foods or drinks contain acids that will etch or dull the surface.
7. Keep the surface clean and dry.
8. Immediately wipe up spills (especially colored liquids and fillings).
9. Do not expose the quartz to strong chemicals, such as paint removers, oven cleaners, acids, oil, etc. Strong detergents or corrosive liquids can permanently dull the polished surface. If contact occurs, quickly flush the surface with water. Prompt clean-up of spills will help to avoid stains.
10. Do not stand, climb, hang or walk on quartz (thin areas around sinks are especially vulnerable). For example, climbing on the quartz countertop to change a light bulb.
11. If the surface appears to absorb liquids, call in a work order and maintenance will re-seal the surface. At a minimum,



sealing should be done annually.

Cleaning (easy to maintain):

1. Simply use warm water combined with mild liquid soap as a cleaning solution. Apply cleaning solution with a clean, soft cloth (color fast) or light-colored sponge. For hard-to-remove residue, scrape the surface slightly with a wooden edge and wash with warm, soapy water.
2. Rinse the surface thoroughly after washing with the soap solution and dry with a soft cloth. Change the rinse water frequently.
3. Do not use abrasive cleaners (both wet and dry), "soft scrub" products or harsh/acidic chemicals; they can scratch or dull the polished finish. These include substances like lemon, vinegar, ammonia, bleach, grout cleaners, tub/tile cleaners or other common liquid cleaners such as Comet or Windex.
4. Never use steel wool, scouring pads, scrapers, wire brushes, sandpaper or metal tools.
5. A good rule of thumb is to never use anything on your quartz that you wouldn't use on your hands.
6. Remember, daily dusting and cleaning will result in easier maintenance!

Lighting Fixture: When replacing light bulbs, always check the correct amount of wattage. Installing a light bulb with improper wattage can be a fire hazard. Replacement of all bulbs within your Leased Premises is your responsibility after move-in.

Locks: Residents shall not alter any lock or install a new lock or knocker on any door of the Leased Premises without the written consent of Owner, and if installed, they shall not be removed. In such case consent is given, Residents shall provide Owner with a key for the use of Owner, pursuant to Owner's right to access to the Leased Premises. Locks or chains must be left in place when Residents vacate. Should a resident require a lock change, a charge of **\$100.00** will be charged to the Resident. Residents locked out after office hours will be charged a fee of **\$100.00** to have their door opened, or Residents may call a locksmith at Residents' expense to open the door. **PROPER IDENTIFICATION IS REQUIRED!**

Patios: Residents shall not sweep, shake dust mops, or throw anything out of windows or onto patios. Residents may not hang laundry, clothing, towels, or bedding on balcony railings or windowsills. Residents are responsible for keeping their patio area cleaned, neatly arranged and free from unsightly or unused items. Patio areas are not considered storage areas. Personal patio furniture must be kept on private patios or balconies. Planting of flowers is permitted only in the fenced-in areas of private patios and on balconies.

Stainless Steel Appliances: Stainless steel appliances are ☒ included ☐ not included in the Leased Premises. Your stainless steel appliances need to be cleaned for aesthetic considerations and to preserve corrosion resistance. Stainless steel is protected from corrosion by a thin layer of chromium oxide. Oxygen from the atmosphere combines with the chromium in the stainless steel to form this passive chromium oxide film that protects from further corrosion. Any contamination of the surface by dirt, or other material, hinders this passivation process and traps corrosive agents reducing corrosion protection. Thus, some form of routine cleaning is necessary to preserve the appearance and integrity of the appliance surface.

General Precautions:

1. In selecting cleaning practices, consider the possibility of scratching and the potential for post-cleaning corrosion caused by incompletely removed cleaners. **NEVER USE ABRASIVE CLEANERS.** Abrasive cleaners can permanently damage your stainless steel appliance. Regardless of which type of cleaner you use, thorough post-clean rinsing with clean water and a cloth is recommended.

Suggested Cleaning Methods:

1. Do not use metal (i.e. carbon steel brushes or steel wool), hard (like pumice) or rough items (emery or sand paper) to clean as they can scratch the appliance surface. Scratches can lead to rusting. Avoid using oily or greasy cloths when cleaning stainless steel.
2. Clean Water and Wipe: The simplest, safest and least costly method that will adequately do the job is always the best method.
3. Your stainless steel appliances will thrive with frequent cleaning because there is no surface coating to wear off. A soft cloth and clean, warm water should always be the first choice for mild stains, loose dirt and soil. A final rinse with clean water and a dry wipe will complete the process and eliminate the possibility of water stains.

Toilets: Water saving toilets may have been installed in your unit. Hold the handle down until you hear the water fully released. Partial flushes may cause overflow. If the water level starts to overflow, immediately shut off the valve at the base of the toilet and plunge. Residents are responsible for trying to clear toilet stoppages. If a stoppage is caused due to

Residents misuse the cost of the repair will be billed to the Residents.

Windows and/or Screens: Residents are responsible for the safety of all members of Residents' household or guests in the use and opening of windows. Be aware of the danger of falls from windows. Keep your windows closed and locked when small occupants are around and no adults are around to supervise. When opening windows for ventilation, open windows that a small occupant cannot reach. Keep furniture away from windows. Move chairs, cribs, beds and other furniture away from windows. Window screen will not prevent a fall from a window. Residents must not remove or tamper with screens. Residents acknowledge all screens are intact and in good condition upon taking occupancy. Window screens found on the ground will be placed back in the window and a labor charge assessed to the Residents. Residents shall be responsible for replacement and/or repair of windows and/or screens damaged or removed by Residents', members of Residents' household or guests.

Wood Plank Style Floors: Wood Plank Style Floors are ☒ included ☐ not included in the Leased Premises. Wood Plank Style Floors require care maintenance and protection. At no time should wax or varnish coating be used. For dry maintenance, a duster or soft broom should be used. Do not use a vacuum at any time because this will cause damage. For damp maintenance, water or a floor cleaner can be used. Floors must be wiped dry immediately following any moisture contact. Never use detergents. Use felt or plastic caps over the bottom of furniture to prevent damage to both the furniture and floors. Avoid the use of rolling desk chairs. The use of a door mat (or other rugs) will help prevent damage from constant water or dirt contact. Rugs and mats should not have backing which will scratch or damage the flooring. Resident is responsible for any visible damage to floors.

FACILITIES AT THE RESIDENTIAL COMMUNITY

Use of Facilities: All facilities provided by Owner are provided as a gratuity and are not a part of the Residential Lease Contract, and that Owner reserves the right to change or limit the hours of any such facilities, or to eliminate them completely without prior notice to Residents and that any such action by Owner shall not constitute a claim by Residents of any breach of Residential Lease Contract by Owner, nor be a basis for any reduction in rent or early termination of the Residential Lease Contract.

Dog Park: A dog park is provided for the enjoyment of your animals. The dog park allows dogs to run unleashed in a designated area; all persons using the dog park do so at their own risk. Owner is not responsible for any loss, damage or claims relating to any person's use of the dog park. Dog park hours may change without notice at any time. Dog park hours currently are _____.

1. Resident agrees that neither Resident, occupants of Resident's Leased Premises nor guests will enter the dog park area without a dog or disturb those using the dog park.
2. Resident will accompany the animal to the dog park. Resident will not leave any animal unattended in the dog park.
3. Animals may not be tethered to fence or other equipment in the dog park.
4. Resident agrees to abide by all governmental regulations, including those relating to animal licensure and inoculations. Proof of same shall be provided upon request.
5. Animals will not bite, lunge at or scare other residents or animals while using the dog park. Animals exhibiting aggressive behavior must be immediately removed. Animals must be under voice control and in sight of owner at all times. If an animal fight breaks out, pull the animals apart from the back.
6. Residents are responsible for the immediate disposal of animal waste. Please carry a container/bag for the sanitary removal and disposal of your animal's feces.
7. Animals are not permitted to dig holes in the dog park.
8. Persons utilizing the dog park must be able to supervise and control the animal.
9. No food, dog treats or drinks are permitted in the dog park, except water.
10. Animals with fresh wounds are not permitted.
11. Animals with spike or pinch collars are not permitted.

Fitness Center: Fitness Center hours may change without notice at any time. Fitness Center hours are _____. Access to the fitness center is available by use of an amenity **fob**.

1. Conduct of all persons using the Fitness Center must be professional, courteous and quiet.
2. Thank you for keeping voice levels low. Offensive and abusive language will not be tolerated. Radios/stereos/CD players require the use of headphones.
3. Refreshments other than a sports top water bottle are not allowed. Alcohol is not permitted.
4. Residents understand that the use of fitness equipment is unsupervised. Residents agree the use of the equipment is at their own risk. Persons with health concerns should consult a physician prior to using the fitness equipment.
5. For the safety of all persons, no one under the age of **16** years of age should use the fitness equipment without an adult in attendance.
6. Loitering in the Fitness Center is not allowed. Persons in the Fitness Center must be utilizing the provided equipment.
7. Use of the Fitness Center is for residents only. Please limit use of equipment to **30 (thirty)** minute intervals.
8. Please report any malfunctions with the fitness equipment to an Owner representative at the rental office immediately.



Initial: _____



- Privileges for use of the Fitness Center may be terminated by Owner for failure to comply with the Fitness Center Policies or abuse or damage to the equipment.

Outdoor Grill: Outdoor grill hours may change without notice at any time. Outdoor grill hours are _____.

- Residents must finish grilling 30 minutes prior to the closing time to allow the grill to cool.
- The grill is **gas**. Use of charcoal or lighter fluid will damage the grill.
- Residents are responsible for cleaning the grill including any applicable racks, grates, lids, adjacent burners, grease baskets or exterior finishes. Failure to properly clean grill and BBQ area will result in a minimum **\$50.00** cleaning charge.
- Resident(s) will be responsible for any damages that may occur.
- Any issues with the grill malfunctioning must be immediately reported to the Owner.

Yoga Area:

- Residents must practice on a mat in yoga area containing wood floors.
- Residents must use at least one (1) towel in lieu of a mat.
- Appropriate yoga clothing is required (*no underwear, bathing suits, etc.*)
- Cell phones are **not permitted** in yoga area.
- No glass bottles in the yoga area.
- Be respectful to others by refraining from talking in and around the yoga area.
- Entering or exiting the yoga area while others are in a posture is discouraged.
- Avoid heavy perfumes or scents in the yoga area.
- Water bottles must contain a lid.
- Water should not be poured on yourself or the flooring.
- Do not touch any of the heating equipment, humidifiers, dehumidifiers, fans or windows.

SECTION C: PREMISES SERVICE

EMERGENCIES: Emergencies affecting the Leased Premises should be promptly reported to Owner. Please report emergencies occurring after office hours to the emergency number and leave a message with the answering service, pager system, on call personnel, etc. Residents are not authorized to call any service companies on their own. Owner will not be responsible for charges incurred for services not authorized by Owner.

MAINTENANCE/SERVICE REQUESTS: Residents are responsible for notifying Owner when maintenance or repair work needs to be performed in the Leased Premises. Requests for maintenance and repairs may be submitted by one of the following methods:

- By going to the Owner's office during normal working hours, and completing a "Service Request" form.
- Call the Owner's office during normal business hour to report a service request. Service requests can also be submitted by email, resident portal, or online maintenance system.
- All non-emergency requests for repairs will be handled during normal business hours.
- Employees cannot enter the Leased Premises to make repairs if there are persons under 18 years of age in the home without a responsible adult present. Service technicians may also elect not to enter the Leased Premises in the presence of an unattended animal.
- Scheduled appointments will be addressed in an **8 hour** window.
- Maintenance work performed due to neglect, abuse, misuse or direct fault of Residents, household occupants or guests will be billed to the Residents. This includes service work on garbage disposal and plumbing fixtures due to improper use and Residents caused clogging.

SEWER STOPPAGES: The sewer system is adequate to handle all normal waste, but the system will not handle disposable diapers, feminine products or other such refuse. Addition of toilet cleansing tabs can cause stoppage. Stoppages resulting from alterations to equipment, addition of a deodorizer or other action or inaction by the Resident, will be cleared at the Residents' expense.

UNSAFE CONDITIONS: Residents agree to report immediately to Owner any accident, injury, damage or loss, or need of service or repairs to water or gas pipes, electrical wiring, drains, toilets, fixtures, or any other property or equipment covered by the Residential Lease Contract, including all breakage, damage, or loss of any kind, including but not limited to, water intrusion, water leaks or moisture problems of any kind, damage from overflow of water from sinks, bathtubs, toilets, or other basins. Residents further agrees to immediately notify Owner of unsafe conditions in the common areas and grounds of the Leased Premises which may be a threat to health and safety or lead to damage or injury. Owner has the right to enter the Leased Premises if Owner believes an emergency exists. The following service needs constitute a non-exclusive list of potential emergencies:

- Main drains stopped up (kitchen, bath, shower) causing flooding or back-up
- Stopped up toilet (one bathroom premises)
- Electrical power outage in entire Leased Premises
- Water leaking from water heater

5. Water leak from plumbing lines, windows, ceilings, or utility rooms causing flooding or damage
6. Exterior flooding from sprinkler systems or pool
7. Water which is running and cannot be shut off
8. Broken window where the Leased Premises is not secure
9. Door locks which will not function and the Leased Premises is not secure
10. Malfunctioning or disabled smoke/carbon monoxide detectors.
11. Fire (Call 911 first)
12. Calls made after office hours that are not deemed emergencies may result in a charge to the Resident.

SECTION D: HOUSEKEEPING

HEALTH & SAFETY: Residents agree to comply with all obligations imposed upon Residents by applicable provisions of State and local building and housing codes materially affecting health and safety, including maintaining adequate housekeeping standards.

HOUSEHOLD ODORS: Residents acknowledge that odors caused by cooking or use of strong chemicals or from any other source should not interfere with other residents' rights to the quiet enjoyment of the Leased Premises. Residents agree to utilize proper fans and ventilation when cooking. Owner will make all reasonable efforts to minimize a disturbance but due to close proximity of living it is not possible to prevent such odors completely.

PEST CONTROL: Residents shall report the need for pest control to Owner in writing. Residents agree to cooperate with the pest control service and abide by guidelines given by the pest control service or Owner. State Codes may require notification of chemicals to be sprayed and days of services.

MOISTURE PREVENTION: Moisture problems must be prevented and treated immediately to prevent mold. Proper ventilation is essential for preventing mold. If you should have mold develop on windows, walls or ceilings, or a musty odor is present in the carpeting, report these conditions to Owner immediately. To prevent moisture buildup, utilize stove and bathroom vent fans and leave on until steam is gone. Condensation, which develops on windows from indoor moisture, must be wiped down immediately including the window tracks. Condensation on windows indicates that fresh air is not being circulated in the home to prevent moisture buildup. Open your windows and air out your home for short periods of time to keep fresh air present. Excessive running of your heater will cause condensation in your home. Report any running or dripping faucets, plumbing leaks, roof leaks, discoloration of walls or water intrusion immediately to the rental office. Residents acknowledge receipt of the "Mold/Moisture Disclosure Statement".

SMOKING: If smoking is permitted in the Leased Premises or on the grounds of the Residential Community, Residents acknowledge that damage caused by smoking will not be considered ordinary wear and tear. Households having one or more smokers, or guests that smoke, will be held responsible for additional costs related to smoke related damages. Smoke related damages can be, but are not limited to, yellowed walls and ceilings; mini blinds and draperies, painting or treatment required due to smoke odor, burns to counters, sinks or extra cleaning of carpets due to smoking. Residents will be considerate of other residents by minimizing the patterns of smoke and/or smell which may be a sensitivity or allergy to other residents. Interference with other residents' rights to the quiet enjoyment of the premises as a result of second hand smoke may be grounds for termination of tenancy. Residents will comply with all local ordinances for smoking in common areas, Leased Premises and exposure to other residents.

STANDARDS: Residents shall keep the interior of the Leased Premises clean according to good housekeeping standards. This includes maintaining all utility services. Residents will assume full responsibility for keeping their patio, entry doors, entrance walkways, porches, patios and balconies area cleaned, neatly arranged and free from unsightly or unused items. Residents shall keep the Leased Premises and such other areas as may be assigned for Residents' exclusive use, including but not limited to, the Leased Premises fixtures, appliances, entry doors, windows and screens, sidewalks, parking space(s) and grounds, in a clean, safe and sanitary condition.

STORAGE: Garbage cans, bottles, brooms, mops, toys, bicycles, fitness equipment, cardboard boxes, household furniture, and similar personal property are to be kept inside the Leased Premises or appropriately designated storage areas and out of view. Patios and/or balconies are to be used for patio furniture only. Areas located outside front doors or on stairway landings are part of the common area and cannot be used for storage.

TRASH: Residents shall deliver and place all garbage and trash in proper bins at designated locations. If the bin you normally use is full, please use another bin. To maximize available space, please break down large objects such as cardboard boxes. Trash bins and/or enclosures are NOT to be used for large items such as furniture, etc. Removal of large items, such as furniture, from the Leased Premises is Resident's responsibility. Residents will be charged the costs to remove any large items placed in the trash enclosures or bins. Residents are responsible for any/all unacceptable items placed in the trash receptacles, such as; toxic waste or other possible harmful items. Trash shall be wrapped and deposited in designated areas between the hours **between 8:00 am and 10:00 pm**. Caution must be taken not to put any flammable material in garbage. Garbage and trash may not be left in hallways or stairwells.

UNIVERSAL WASTE: Disposal of universal waste is prohibited in general trash receptacles in the Community. Disposal of universal waste in the trash receptacles by Residents may result in a fine for Owner, and therefore will be deemed a violation of the Residential Lease Contract. Universal waste includes electronic devices (televisions, computer monitors, computers, printers, VCRs, cell phones, telephones, radios and microwaves), common batteries (AA, AAA, C Cells, D cells and button batteries), Fluorescent Tubes and Bulbs and Other Mercury-Containing Lamps (fluorescent light tubes and bulbs, high intensity discharge (HID), metal halide, sodium and neon bulbs), Mercury added Novelties (greeting cards, athletic shoes and mercury maze games), Non-Empty Aerosol cans (aerosol cans can be flammable).

SECTION E: SUPERVISION HOUSEHOLD MEMBER/VISITORS/GUESTS

SUPERVISION: Residents agree that Residents are responsible for the conduct of any member of their household, visitors and guests, and agree to pay for any damage to the Leased Premises caused by members of the household or guests.

WALKWAYS: Residents shall not store nor allow any personal household property outside the Leased Premises in a manner that may be detrimental to the appearance of the premises or interfere with free passage upon any street or sidewalk in the Leased Premises. Walkways are for pedestrian use. No bicycling, roller skating or in-line skating, skateboarding, coaster riding, drawing with chalk, etc., is allowed on walkways.

SECTION F: CONDUCT

ACTS OF VIOLENCE: Residents or members of the household or guests shall not engage in any acts of violence including but not limited to the display of, brandishing, or using in a threatening manner, any dangerous weapons or objects in or about the Leased Premises. Residents shall not keep or use on or about the Leased Premises or project any explosive, flammable, or repellent device, or otherwise dangerous device, and to take every care and precaution to prevent fires.

ALCOHOL/PUBLIC INTOXICATION: Residents shall not engage in, and Residents shall take reasonable action to prevent all members of Residents' household and guests from, drinking alcoholic beverages or using illegal substances in or on common areas, walkways or streets of the Community, or in vehicles parked or moving on the Community.

DRONES: The use of drones is considered an invasion of privacy. Residents may not utilize a drone to enter into the common areas, property grounds or the balcony/patio/yard airspace of the Residential Community or Leased Premises. This includes but is not limited to using the drone to enter into the land or into the airspace above the land of another person without Owner permission or otherwise commits a trespass in order to capture any type of visual image, sound recording, or other physical impression of the plaintiff engaging in a private, personal, or familial activity and the invasion occurs in a manner that is offensive to a reasonable person.

ILLEGAL ACTIVITY: Residents, any member of the Residents' household, or a guest or other person under the Residents' control shall not engage in illegal or criminal activity, nor in any act intended to facilitate illegal or criminal activity, including gang or drug-related illegal or criminal activity, on or near the premises. Residents, all members of the Residents' household and guests shall not engage in the manufacture, sale, or distribution of illegal drugs or be under the influence of any controlled or illegal substance at any location, whether on or near the premises or otherwise, nor permit the Leased Premises to be used for, or to facilitate, any illegal or criminal activity. While the usage of marijuana may have been legalized in many jurisdictions, for the purposes of this Lease and any Addenda thereto, the sale, manufacturing, purchasing, smoking, vaping, and aerosolizing of marijuana is prohibited as if the same were an "illegal activity." Any marijuana-related activity is similarly prohibited to the extent Owner may prohibit the same.

NOISE: Residents, household members and guests shall not make or allow to be made any disturbing noises upon the Leased Premises by Residents, household members or guests, etc., nor permit anything to be done by such persons that will interfere with the rights, comforts, or convenience of other Residents. Residents, household members and guests are advised to take care when approaching and leaving their Leased Premises during the quiet time, **between the hours of 10:00 p.m. to 8:00 a.m.** and to show consideration of other residents at all times. Residents shall not play upon or allow to be played upon, any musical instrument or operate or allow to be operated audio equipment, radio, or television in or on the premises **between the hours of 10:00 p.m. to 8:00 a.m.**, if the same shall disturb or annoy other occupants of the Community.

THREATS/OFFENSIVE CONDUCT: To assist in ensuring the safety and quiet enjoyment of all Residents, household members and guests shall not engage in offensive conduct or language on or about the premises. Residents, all members of the Residents' household and guests shall not cause or threaten to cause serious physical injury to another person on the premises, or be involved in a fight while on the premises; commit abuse upon any person on the premises, and will abstain from any activity which impairs the physical or social environment of the premises.

SECTION G: VEHICLES

INOPERABLE VEHICLES: All vehicles must be currently registered, licensed and in operating condition. Any vehicle in violation of this provision may be towed at vehicle owner's expense in compliance with the vehicle codes of the state.



Initial: _____



Repair work, oil changes and similar work is not permitted in the parking lots. Such work must be done off the property. Residents agree that any vehicles that are inoperable for more than 72 consecutive hours without written permission of Owner may be removed at the expense of the vehicle's owner. Vehicles not moved in excess of 7 days will be considered inoperable. Extra vehicles cannot be stored on the property. Vehicle maintenance on the premises is prohibited. Residents and/or guests shall not park vehicles in a state of disrepair on the premises. This includes operational vehicles leaking on parking surfaces. Leaks and spills and/or damages caused by Residents' vehicles are the responsibility of Residents. The owner of any vehicle that leaks oil in the parking lot will be held responsible for clean-up and/or damage charges.

PARKING/SPEED LIMITS: Residents shall observe, and cause all members of Residents' household and guests to observe, the posted speed limits on drives in the premises, to park and cause members of Residents' household and guests to park only in assigned parking areas; not to block access to other parking spaces, garages or for emergency vehicles, or to other residences, and not drive, or park any vehicle on the lawn, driveway, or other areas for common use in the premises. Vehicles parked within 15 feet of a fire hydrant or in a fire lane may be towed without warning. Vehicles may not be backed into parking spaces. Vehicles which create a nuisance due to excessive music or activation of a car alarm shall be removed from the property at the vehicle owner's expense. Parking designated for the office is not to be used during operating business hours. Vehicles parked in designated handicapped spaces without display of handicap placard or handicap plates are subject to immediate towing. Some communities may require parking stickers for all cars parked on the premises. Cars without required parking stickers will be considered unauthorized and may be towed without warning. Residents agree that any vehicle that is improperly parked, or in violation of vehicle or parking policies without written permission of Owner may be removed at the expense of the vehicle's owner. Owner is the only authorized agent for the towing of vehicles. Owner, in its sole discretion, reserves the right to reassign any designated parking space(es) during the term of the Residential Lease Contract, subject to any applicable requirements under applicable fair housing laws.

RECREATIONAL VEHICLES: Recreational vehicles such as trailers, motor homes and boats are not allowed to be parked on the premises. Motorcycles are subject to the same rules as automobiles. They must be operated in a safe manner at all times. Motorcycles are considered vehicles and must be parked in an appropriately designated parking space. Motorcycles may not be parked on sidewalks, in stairwells, on patios, on porches or in any other area not designated for the parking of vehicles. No recreational vehicles, trailers or boats are allowed on the premises except with written consent of Owner.

VEHICLE REGISTRATION: Residents shall register all household vehicles with Owner. Residents agree to provide vehicle information (license number, make, model, etc.) and provide updated information in the event of changes. Vehicles on the premises must be currently registered and properly insured according to state law.

THESE COMMUNITY POLICIES NOW BECOME A PART OF YOUR RESIDENTIAL LEASE CONTRACT.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:31:00 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

(Owner/Agent)

Date

CONCESSION ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **May 4, 2024**, and is between the Owner of **Arrive** ("Owner") and **Mohammed Sauban Mussaddique and Nida Fathima**, (collectively and individually "Residents"), for the premises at **2116 4th Avenue #2317, Seattle, WA 98121** (the "Leased Premises"), which is located within **Arrive** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

THE UNDERSIGNED HEREBY AGREE, the concessions specified below ("Concessions") are given by Owner to Residents for entering into the Agreement for a term of no less than **1 year, 5 months and 28 days**.

CONCESSIONS*	
Concession #1: One-Time, Applied May, 2024 - Renewal Concession: \$1,000	\$1,000.00
*All concessions are subject to the terms and conditions of the Residential Lease Contract and Concession Addendum.	

If Residents fail to pay rent before the **6th** day of the month, in any month, during the initial lease term or any renewal period, in addition to all other remedies authorized by applicable law or the Agreement, Residents shall not be entitled to the prorated portion of Concessions attributed to that month. Furthermore, Residents shall owe the full amount of rent as stated in the Agreement, as if no concessions were given for that month, plus any applicable late charges as a result of Residents being delinquent. In the event Residents are asked to vacate the Leased Premises, evicted or move out prior to the expiration date of the initial lease term or any renewal period, Residents shall reimburse Owner, upon demand, the full amount of Concessions. Residents must also pay all other rent, fees, charges or sums due to Owner as a result of Residents' failure to comply with the terms and conditions of the Agreement. Residents acknowledge that the Concessions constitute a discount of rent only and not a discount of any other fees, charges, or sums which Residents may be required to pay under the terms and conditions of the Agreement.

The Concessions indicated above are given to Residents as an incentive and with the understanding that Residents will fulfill all obligations under the Agreement through the initial lease term or any renewal period. If Residents do not meet the terms and conditions of the Agreement for any reason whatsoever, Concessions specified above will be withdrawn and the discounted amount shall be due and payable in full to Owner by Residents upon Owner's demand.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:31:07 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

(Owner/Agent)

Date

CRIME FREE/DRUG FREE HOUSING ADDENDUM

Apartment Community: **Arrive**
Apartment Address: **2116 4th Avenue #2317, Seattle, WA 98121**
Resident Name(s): **Mohammed Sauban Mussaddique and Nida Fathima**

In consideration of the execution or renewal of a lease/rental agreement of the dwelling unit identified in the lease/rental agreement, Owner and Resident agree as follows:

- 1. Resident, any members of the Resident's household, or a guest or other person under the Resident's control shall not engage in criminal activity, including drug-related criminal activity, on or near the said premises. "Drug-related criminal activity" includes but is not limited to the illegal manufacture, sale, distribution, use, or possession with intent to manufacture, sell, distribute, or use of a controlled substance (as defined in Section 102 of the Controlled Substance Act (21 U.S.C. 802)).
- 2. Resident, any member of the Resident's household or a guest or other person under the Resident's control shall not engage in any act intended to facilitate criminal activity, including drug-related criminal activity, on or near the said premises.
- 3. Resident or members of the household will not permit the dwelling unit to be used for, or to facilitate criminal activity, including drug-related criminal activity, regardless of whether the individual engaging in such activity is a member of the household, or a guest.
- 4. Resident or members of the household will not engage in the manufacture, sale or distribution of illegal drugs at any location, whether on or near the dwelling unit premises or otherwise.
- 5. Resident, any member or the Resident's household, or a guest or another person under the Resident's control shall not engage in acts of violence or threats of violence, including, but not limited to the unlawful discharge of firearms on or near property premises.
- 6. VIOLATION OF THE ABOVE PROVISIONS SHALL BE A MATERIAL AND IRREPARABLE VIOLATION OF THE LEASE/RENTAL AGREEMENT AND GOOD CAUSE FOR IMMEDIATE TERMINATION OF TENANCY. A single violation of any of the provisions of this added addendum shall be deemed a serious violation and a material and irreparable non-compliance. It is understood that a single violation shall be good cause for termination of the lease/rental agreement. Unless otherwise provided by law, proof of violation shall not require criminal conviction, but shall be by a preponderance of the evidence.
- 7. In case of conflict between the provisions of this addendum and any other provisions of the lease/rental agreement, the provisions of the addendum shall govern.
- 8. This LEASE/RENTAL ADDENDUM is incorporated into the lease/rental agreement executed or renewed this day between Management and Resident.

 Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:31:38 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) _____ Date _____ Nida Fathima (Resident) _____ Date _____

(Owner/Agent) _____ Date _____

SUSTAINABILITY ADDENDUM - WASHINGTON

PARTIES	
Property Name Arrive	Date May 4, 2024
Property Address 2116 4th Avenue Seattle, WA 98121	Unit # 2317
Owner/Agent (Landlord) Arrivé - 2116 4th Ave, Seattle, WA 98121	
Resident(s) Mohammed Sauban Mussaddique and Nida Fathima	

Resident Participation Expectations for Sustainability Success

Arrive and Blanton Turner are committed to sustainability. As end users, the residents can make an important and significant difference in meeting and maintaining energy savings and sustainability goals on an ongoing basis for years to come over the life of the building.

Therefore, Resident agrees to uphold their responsibility by complying with the following list of guidelines and responsibilities in entering into his/her Rental Agreement:

1) Heating and Cooling:

- a) Properly ventilate the premises and maximize air circulation
- b) Exercise moisture control precautions
 - i) Cooking: Use the fan above the stove or open a window slightly
 - ii) Bathing: Use bathroom fans while bathing/showering. Let fan run for 20 minutes after finishing, hang up towels and bathmats to permit air drying
- c) Hot weather suggestions:
 - i) Close your windows and blinds during the day to allow the insulation system of the building work to keep coolness inside the apartment
 - ii) Open your windows at night to allow the cool night air into your apartment to help keep your apartment cool the next day when the outside temperatures rise again
- d) Cold weather suggestions:
 - i) Keep your thermostat set low in the winter and use layering of clothes for extra warmth
 - ii) Keep your unit well ventilated to mitigate opportunity for mold or mildew growth
 - iii) Report any mold or mildew to Building Management
 - iv) If you will be away for longer periods of time, please notify Building Management so they can monitor your apartment during extreme weather conditions to ensure pipes don't freeze

2) Energy Use:

- a) Minimize plug loads in your apartment
 - i) Refrain from using space heaters and televisions in your bedroom
 - ii) Unplug items and turn off lights when not in use
- b) Use cold water wash temperatures when doing laundry
- c) Keep showers to a minimum, 5 minutes is a goal

3) Recycling:

- a) Use and fully participate in all recycling and compost programs
- b) Comply with the recycling and compost program best practices requirements
- c) Keep recycling materials free of garbage/trash (contaminated materials cannot be recycled and end their cycle in the landfill)

4) Cleaning:



- a) Use low VOC Green products for general cleaning of your apartment whenever possible
- b) Use Environmentally friendly detergent when doing laundry rooms or running washing machines

5) Transportation:

- a) Walk, bicycle, car-share, and use public transit buses whenever possible
 - i) Bike storage available on-site
 - ii) See resident welcome packet for more information on car-share, bike-share, and public transit

6) Reporting

- a) As required through local benchmarking/disclosure regulations, building aggregate data for energy, water, and waste is assembled by management for public access. Resident understands that individual meter data will not be released to the public without prior written consent obtained.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:31:46 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) Date

Nida Fathima (Resident) Date

(Owner/Agent) Date

GUEST KEY ADDENDUM

This is an addendum to the Residential Lease Contract dated May 4, 2024 for Mohammed Sauban Mussaddique and Nida Fathima ("Residents") for the residence located at 2116 4th Avenue #2317, Seattle, WA 98121 (the "Leased Premises").

Residents acknowledge that they have been provided with keys and access devices listed below. Residents will be liable for the below listed charges for replacing keys, permits, tags, and access devices.

This key set is provided upon the express request of the "Resident" for a permanent guest key set. No additional permanent guest key sets are to be provided above and beyond the key sets issued to each "Resident" on the Residential Lease Contract. All provisions of the Lease Agreement apply.

Keys Issued:

Key Fob(3): # _____, # _____, # _____
Mail Key(2): # _____

Replacement Costs:

Key Fob: **\$50.00**
Mail Key: **\$25.00**

 Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:31:51 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) Date

Nida Fathima (Resident) Date

(Owner/Agent) Date



KEYS, PERMITS, AND ACCESS DEVICES ADDENDUM

This is an Addendum to the Residential Lease Contract dated May 4, 2024 between Arrive ("Owner") and Mohammed Sauban Mussaddique and Nida Fathima ("Residents") for the residence located at 2116 4th Avenue #2317, Seattle, WA 98121 (the "Leased Premises").

Residents acknowledge that they have been provided with keys and access devices listed below:

<u>2</u>	Mailbox Key(s)
<u>3</u>	Fob Key(s)

Residents will be liable for the below listed charges for replacing keys, permits, tags, and access devices.

Deposit Amounts	
Mailbox Key	2 X \$0.00 = \$0.00
Key Fob	2 X \$0.00 = \$0.00

Replacement Costs	
Mailbox Key	\$25.00
Key Fob	\$50.00



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:31:57 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) _____ Date

Nida Fathima (Resident) _____ Date

(Owner/Agent) Date

LEASE BUYOUT AGREEMENT

This Lease Buy-Out Agreement (this "Agreement") dated the 4th day of May, 2024, is hereby entered into by and between Owner of Arrive("Owner") and Mohammed Sauban Mussaddique and Nida Fathima ("Residents") in connection with the lease of the premises located at Arrive in 2116 4th Avenue #2317, Seattle, WA 98121 (the "Leased Premises"). All capitalized terms used but not defined herein shall have the meaning set forth in the Residential Lease Contract (the "Lease").

This Agreement provides Residents an opportunity to buy out early from the Residential Lease Contract. Residents must comply with all provisions and conditions of this Agreement in order to terminate liability under the full length of the Residential Lease Contract.

WHEREAS the parties to this Agreement seek to terminate the Lease between Owner and all Residents;

NOW THEREFORE, in consideration of the foregoing, the mutual covenants herein contained and other good and valuable considerations, the parties agree as follows:

1. Lease Buy-Out Conditions.

- a. **Notice.** Residents must provide Owner with written notice of buy-out at least twenty (20) days prior to the Residents' intended termination/move-out date; such date must be the last day of the month. This notice must be signed by all signatories to the Residential Lease Contract. Owner has the right to begin showing the Leased Premises to prospective residents upon receiving notice of the buy-out and termination date from Residents.
 - b. **Good Standing.** Residents must not be in default under the Residential Lease Contract on the date Residents provide notice to Owner about the buy-out, or through the intended termination/move-out date. Residents must also be current for all rent payments and all other amounts due and owing under the terms of the Residential Lease Contract through the termination/move-out date.
 - c. **Move Out.** Residents must vacate the Leased Premises on or before the intended termination/move-out date.
 - d. **Consideration.** In consideration for early termination of the Residential Lease Contract, Residents must pay Owner a buy-out fee of \$6,375.00. Owner must receive the buy-out fee no later than twenty(20) days after notice to buy-out is provided by Residents. Residents are also liable to Owner for the total dollar amount of any concessions received upon signing or during the term of the Residential Lease Contract and any other monetary obligations due. No refund of the buy-out fee is due to Residents regardless of when the unit is re-rented.
2. Owner's deposit of the amounts detailed above constitutes Owner's acceptance of the intended termination/move-out date contained in Residents' buy-out notice. The buy-out will automatically be voided if Residents fail to comply with all the provisions and conditions of this Agreement or the Residential Lease Contract, or if Residents make any false statements or provide false documentation to Owner. If the buy-out is voided (1) the Residential Lease Contract will continue through its full term; (2) Residents will be subject to all available remedies under the Residential Lease Contract; and (3) any amounts paid by Resident for the buy-out will become part of Residents' security deposit.
3. Residents are not permitted to hold over after the intended termination/move-out provided on the buy-out notice. Residents should contact the Owner about any anticipated problems with moving out by or before the intended termination/move-out date from the buy-out notice. Any extension to the intended termination/move-out date will only be effective if agreed to and signed by all parties in writing.
4. Residents' opportunity to buy-out is limited to certain situations. If limited, Residents may only exercise the buy-out opportunity in the situations described below or with written approval by Owner. In the event that any terms and conditions contained in the situations below conflict with provisions or conditions described above, the terms and conditions described below will control. Permissible buy-out situations include: N/A.

INTENDING TO BE BOUND, the parties hereto have executed this Agreement as of the day and year first above written.

 Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:32:03 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

(Owner/Agent)

Date



Initial:



LIQUID FILLED FURNITURE ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **May 4, 2024**, and is between the Owner of **Arrive** ("Owner") and **Mohammed Sauban Mussaddique and Nida Fathima**, (collectively and individually "Residents"), for the premises at **2116 4th Avenue #2317, Seattle, WA 98121** (the "Leased Premises"), which is located within **Arrive** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Residents have received permission to have liquid filled furniture in the Leased Premises.

A certificate of insurance in the amount of **\$100,000.00** evidencing liquid filled furniture coverage must be provided to Owner upon execution of this agreement and prior to Residents bringing any liquid-filled furniture into the Leased Premises. Failure to maintain the required insurance coverage will result in the request to remove the liquid filled furniture from the Leased Premises. Residents agree to provide Owner renewal certificates upon expiration of the certificate of insurance.

Residents will notify Owner with at least 24-hours written notice prior to the installation, removal or movement of any liquid-filled furniture and Owner has the right to be present at the time of such installation, removal or movement. Installation, movement and removal must be done in accordance with standards set by the manufacturer, retailer or state law, whichever provides the higher degree of safety.

No aquariums over **5 gallons** gallons are permitted in the Leased Premises.

Any damages to the Leased Premises, community or other residents' belongings as a result of leaks from liquid filled furniture will be replaced at the expense of Residents without further notice to or permission from Residents.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:32:12 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

(Owner/Agent)

Date

MOISTURE DISCLOSURE STATEMENT

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated May 4, 2024, and is between the Owner of Arrive ("Owner") and Mohammed Sauban Mussaddique and Nida Fathima, (collectively and individually "Residents"), for the premises at 2116 4th Avenue #2317, Seattle, WA 98121 (the "Leased Premises"), which is located within Arrive (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Mildew, mold and fungi are everywhere in our indoor and outdoor environments. In fact, they play an important and necessary role in decomposition and breaking down of organic matter. All mildew, mold and fungi require water or dampness to grow. Indoors, this water intrusion can come from flooding, backed-up sewers, leaky buildings, humidifiers, constant plumbing leaks, steam, poor housekeeping, wet clothes, appliances not properly vented, inadequate air circulation, etc.

There are a number of factors that influence the growth of mildew, mold and fungi: environmental humidity and moisture content of materials, temperature, air circulation, light, and the chemical composition of potential substances. If there is mildew, mold and fungi growing, you can impact its amplification by affecting the water source, encouraging proper ventilation, and drying out the area.

There are no established guidelines for unacceptable air quality caused by mildew, mold and fungi. Mildew, mold and fungi are a naturally occurring phenomenon. Mildew, mold and fungi should be cleaned as soon as it appears. Mildew, mold and fungi can often be seen in the form of discoloration. The different colors of mildew, mold and fungi range from white to black, including, but not limited to, green, gray brown, orange, yellow and other colors.

Your housekeeping and living habits are an integral part of the ability of mildew, mold and fungi to grow. In order for mildew, mold and fungi to grow water and/or moisture must be present.

RESIDENTS AGREE to maintain the Leased Premises in a manner that prevents the occurrence of mildew, mold and fungi growth within the Leased Premises. In furtherance of such obligation, RESIDENTS AGREE TO PERFORM THE FOLLOWING:

1. To keep the Leased Premises free from dirt and debris that can harbor moisture and result in mildew, mold and fungi growth;
2. To inspect the Leased Premises regularly for the indications and sources of indoor moisture;
3. To immediately report to the Owner any water intrusion, such as roof leaks, window leaks, plumbing leaks, drips, or "sweating" pipes;
4. To immediately notify Owner of overflows from bathroom, kitchen, or the Leased Premises laundry facilities, especially in cases where the overflow may have permeated walls or cabinets;
5. To immediately notify Owner in writing of any significant mildew, mold and fungi growth on surfaces in the Leased Premises;
6. To not air dry wet clothes indoors;
7. To use bathroom exhaust fans while showering or bathing and use stove hood exhaust fans whenever cooking, dishwashing, or cleaning and to notify Owner of any nonworking fan. If the Leased Premises is equipped with an automatic ventilation fan, Residents agree to not disable or otherwise adjust the fan settings;
8. To notify Owner of any problems with the heating, ventilating, and/or air conditioning systems;
9. To water plants outdoors;
10. To clean **upon first appearance**, any mildew from condensation on window interiors, bathroom & kitchen walls, floors and/or ceilings. Residents understand that mildew, mold and fungi can grow on damp surfaces within 24 to 48 hours and agree to clean including personal property, as soon as reasonably possible. Cleaning is done with common household bleach. Mixture is one part bleach to 10 parts water. Residents may add a little dish soap to the water mixture to cut any dirt and oil on the surface Residents are cleaning that may hold mildew, mold and fungi. Do not add other cleaning chemicals, especially ammonia. Dispose of any rags or sponges used to clean the mildew, mold and fungi in a sealed bag;
11. **TO REPORT TO OWNER IN WRITING AND VERBALLY THE PRESENCE OF ANY MILDEW, MOLD AND FUNGI GROWTH** on surfaces inside the Leased Premises;
12. To allow Owner immediate entry to the Leased Premises to inspect and make necessary repairs;
13. To use all reasonable care during periods of rain, fog or other outside moisture presence to close all windows and other openings in the Leased Premises to prevent outdoor water from penetrating into the interior of the Leased Premises;

14. To clean and dry any visible condensation/moisture on windows and window tracks, walls and other surfaces, including personal property as soon as reasonably possible. Condensation on windows indicates that fresh air is not being circulated in the Leased Premises. To prevent moisture buildup, open the windows and air out the Leased Premises for short periods of time to keep fresh air present. Excessive running of the heater will cause condensation in the Leased Premises;
15. To maximize the circulation of air by keeping furniture away from walls and out of corners.

RESIDENTS FURTHER AGREE to indemnify and hold harmless Owner and Owner's agents from any suits, actions, claims, losses, damages, and expenses (including reasonable attorneys' fees and court costs) and any liability whatsoever that Owner and/or Owner's agents may sustain or incur as a result of Residents' failure to comply or perform with the obligations set forth above or as the result of the intentional or negligent action or failure to act on the part of Residents or of any other person living in, occupying, or using the Leased Premises, except if the liability is based upon a negligent act or omission of Owner or any agent or employee of Owner.

Residents hereby certify that Residents have read the MOISTURE DISCLOSURE STATEMENT, and have read and understood the contents of this ADDENDUM, and have received a duplicate copy.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:32:40 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) Date

Nida Fathima (Resident) Date

(Owner/Agent) Date

MOISTURE INFORMATION

1. **What are mildew, mold and fungi?*** Mildew, mold and fungi are simple, microscopic organisms, present virtually everywhere indoors and outdoors. Mildew, mold and fungus, along with mushrooms and yeast, are fungi and are needed to break down dead material and recycle nutrients in the environment. For mildew, mold and fungi to grow and reproduce, they need only a food source (any organic material, such as leaves, wood, paper or dirt) and moisture. Mildew, mold and fungi growth on surfaces can often be seen in the form of discoloration, frequently green, gray, brown or black but also white and other colors. Mildew, mold and fungi release countless tiny, lightweight spores, which travel through the air.
2. **How are you exposed to mildew, mold and fungi?*** Everyone is exposed to some mildew, mold and fungi on a daily basis, most without evident harm. It is common to find mildew, mold and fungi spores in the air inside homes, and most of the airborne spores found indoors come from outdoor sources. Mildew, mold and fungi spores can cause health problems when they are present in large numbers and people inhale many of them **and health problems can** occur when there is active mildew, mold and fungi growth within home, office or school, where people live or work. People can also be exposed to mildew, mold and fungi by touching contaminated materials or by eating contaminated foods.
3. **How can mildew, mold and fungi become a problem in the Leased Premises?*** Mildew, mold and fungi will grow and multiply whenever conditions are right (sufficient moisture is available and organic material is present). Be on the lookout for common sources of indoor moisture that may lead to mildew, mold and fungi problems. Common indoor moisture sources include, but are not limited to: condensation (caused by indoor humidity that is too high or surfaces that are too cold); plumbing leaks; overflow from tubs, sinks or toilets; humidifier use; inadequate venting of kitchen and bath humidity; **failure to keep bathtub areas, shower areas, sink areas, dishwasher and washing machine areas properly cleaned and dried after usage**; line drying laundry indoors; watering of house plants indoors; flooding; roof leaks; steam from cooking; and shower/bath steam. **Water, moisture and mildew, mold and fungi MUST be dealt with immediately.**
4. **Can you tell if you have mildew, mold and fungi in the Leased Premises?*** You may suspect that you have mildew, mold and fungi if you see discolored patches or cottony or speckled growth on walls or furniture or if you smell an earthy or musty odor. You may also suspect mildew, mold and fungi growth if mildew, mold and fungus-allergic individuals experience allergic reactions. Look for signs of excessive moisture or water and/or moisture or water damage, i.e. water leaks, standing water, water stains, or condensation problems. Search behind and underneath materials, furniture or stored items.
5. **What to do if you suspect that mildew, mold or fungi is within the Leased Premises? IMMEDIATELY NOTIFY OWNER** If you suspect the existence of mildew, mold and fungi within your unit. Owner has specific procedures and steps to follow in handling the detection, testing and clean-up of mildew, mold and fungi.
6. **What are your responsibilities in preventing indoor mildew, mold and fungi problems?** As Residents, **YOU** are responsible for preventing indoor mildew, mold and fungi problems within the Leased Premises. The responsibilities of the Residents are included in the Moisture Disclosure Addendum.

PACKAGE ACCEPTANCE ADDENDUM

PARTIES	
Property Name: Arrive	Date: May 4, 2024
Property Address: 2116 4th Ave, Seattle, WA 98121	Unit #: 2317
Owner/Agent (Landlord): Arrivé - 2116 4th Ave, Seattle, WA 98121	
Resident(s): Mohammed Sauban Mussaddique and Nida Fathima	

The **Arrive** are happy to offer package acceptance service to residents.

It should be understood that:

- Delivery companies are contracted to deliver parcels directly to the recipient's door.
- **Arrive** requires the attached Agreement in order to accept parcels on behalf of residents.
- Recipients must have valid ID to receive a package. Packages will not be released to persons not addressed on the package.
- Packages will be kept in the storage closet in the office and not in the public area of the office.

Thank you for your compliance with these procedures.

Package Release Agreement

I wish to have packages accepted:  _____ Initial

I, **Mohammed Sauban Mussaddique and Nida Fathima** residing in unit # **2317** of the **Arrive**, authorize the **Arrive** management team to accept packages and deliveries from the U.S. Postal Service, UPS, Federal Express, OnTrac, florists, dry cleaners or other service and delivery companies. I understand that this service is provided as a convenience to me and I agree to not hold the **Arrive** responsible for accepting a package or delivery in the event of loss, theft, or damage

I do not wish to have packages accepted: _____ Initial

I, **Mohammed Sauban Mussaddique and Nida Fathima** residing in apartment # **2317** do not authorize the **Arrive** management team to accept packages addressed to me in my absence. I understand that in order to receive package deliveries while living at the **Arrive**, I will need to make arrangements to be home when I am expecting a delivery

ACKNOWLEDGEMENTS

I have read and agree to the above Terms and Conditions.



Signed by Mohammed Sauban Mussaddique
 Sun May 5 2024 09:32:52 AM PDT
 Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

PARKING/STORAGE/GARAGE ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **May 4, 2024**, and is between the Owner of **Arrive** ("Owner") and **Mohammed Sauban Mussaddique and Nida Fathima**, (collectively and individually "Residents"), for the premises at **2116 4th Avenue #2317, Seattle, WA 98121** (the "Leased Premises"), which is located within **Arrive** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Vehicles Information					
Year:	Make:	Model:	Color:	Plate #:	State:
Parking/Storage Information					
Parking Space #(s): N/A	Garage #(s): N/A	Carport #(s): N/A	Parking Permit #(s): N/A	Storage #(s): P404-2	
Parking Rent: \$0.00	Garage Rent: \$0.00	Carport Rent: \$0.00	Storage Rent: \$100.00		

1. Residents agree to rent the herein described premises at the rate of **\$100.00** per month. Failure to pay in full will be considered partial payment of the total rent due. Rent is due and payable on or before the **1st** of the month, with payment of rent for the Leased Premises.
2. Residents agree to pay an additional Security Deposit in the amount of **\$0.00**, prior to taking occupancy of the above-listed item. This additional deposit effectively increases an existing or pre-existing Security Deposit, and, at Owner's sole option, may be retained by Owner to offset any Residents' default in and/or non-compliance with the Residential Lease Contract, the Parking/Storage/Garage ADDENDUM or any applicable law termination.
3. Failure to pay rent before the **6th** of the month will result in a 30-Day Notice to terminate this agreement.
4. This ADDENDUM is automatically terminated upon termination of Residents' tenancy and (i) any remaining vehicles are subject to immediate tow at vehicle owner's expense, and (ii) any remaining personal items may be disposed of by Owner.
5. This term of this ADDENDUM will be: **Month-To-Month**.
6. To the extent allowed by applicable law, Owner shall not be liable for any damage or loss to personal property, motor vehicles of, or the contents of motor vehicles of, Residents, any member of Residents' household, occupants, guests, invitees, or other persons. Failure of Residents, any member of Residents' household, occupants, guests, invitees, or other persons to follow Community Rules and/or posted signs relating to parking and operation of vehicles will result in the towing of the offending vehicle at the cost of the vehicle owner. The location and number of any parking space(s) assigned to Residents may be changed at any time at the sole discretion of Owner.

Multi-Level Parking Garage Policies

STANDARD STORAGE POLICIES

1. Residents agree to use the storage space for the storage of personal belongings. The storage space may not be used for occupancy, entertainment, conducting business, or storage of a motor or recreational vehicle. Loitering is prohibited in the storage space.
2. Residents agree to keep the door to the storage space closed and secure when not present.
3. Items that pose an environmental hazard or a risk to the safety or health of other residents, occupants, or neighbors in Owner's sole judgment or that violate any government regulation may not be stored in the storage space. Prohibited items include fuel (other than a properly capped fuel tank of a vehicle), fireworks, rags, piles of paper, or other material that may create a fire or environmental hazard. Owner may remove from such areas, without prior notice, items that Owner believes might constitute a fire or environmental hazard.
4. Storage of food or other recyclable goods which could attract vermin is prohibited.
5. Residents agree not to store or cage animals in the premises.
6. Owner assumes no responsibility for damage caused by insects or weather conditions to items stored in the premises.
7. Residents acknowledge that Owner does not provide insurance to cover Residents' belongings. Owner has no liability whatsoever for loss or damage to Residents' property whether by fire, theft, vandalism or while items are within the premises.
8. Residents agree to obtain renters insurance for all items stored in the premises.
9. No improvements or alterations shall be made without written consent of Owner. To protect the walls of the premises, use of screws, nails or hooks upon the floors, doors, cabinets or walls are prohibited without Owner's prior written permission.
10. Residents acknowledge that the storage space does not include a smoke/carbon monoxide detector unless required by law.
11. Owner reserves the right to inspect the storage space at any time for emergency or for the purpose of compliance with the

terms and conditions of this Addendum.

STANDARD PARKING POLICIES

1. Residents agree vehicle(s) must be registered and insured as required by state and local law. Inoperable and/or illegally parked vehicles will be towed at vehicle owner's expense.
2. Vehicles must be operating on a weekly basis. Inoperable vehicles are considered but not limited to those vehicles not driven regularly, those with flat tires, not mechanically fit or properly registered.
3. Auto repairs are not permitted on the premises.
4. Music and noise from vehicles must be kept at a minimum to avoid disturbing other residents.
5. Residents are responsible for maintaining the parking stalls free of oil spills or other fluid leaks.
6. Parking spaces may not be used for storage of any kind.
7. Guest parking is limited to: Off Premises.
8. Vehicles stopped, parked or double parked in handicap spaces (without displaying appropriate permits), fire hydrant restricted areas, non-designated parking areas, red zones, other residents' assigned spaces or rental office parking may be subject to citations and/or towing at the vehicle owner's expense, as allowed by applicable law.
9. Assigned spaces can be changed at any time at the discretion of Owner. Residents must use their assigned spaces before using any non-assigned spaces.
10. Car washing must be done in designated areas.
11. Speed limits are 5 miles per hour miles per hour throughout the community.
12. Boats, trailers, recreational vehicles and over-sized trucks may not be parked or stored in parking facilities.
13. Parking Permits will be displayed at all times when parked on the premises.
14. All vehicles must be registered with the rental office. Owner must be notified of changes in vehicles and/or vehicle tags.
15. Residents acknowledge that Owner does not provide insurance to cover vehicles or their contents.

STANDARD GARAGE POLICIES

1. Residents agree to utilize the premises for the parking of one automobile(s). Residents are not permitted to utilize the premises for storage of any personal property other than the vehicle(s) designated in this ADDENDUM. Residents must use the premises as their primary parking area.
2. The garage door is to be secured closed and locked when Residents are not present.
3. The premises may not be used as a place of occupancy, for loitering, entertaining or the consumption of alcoholic beverages.
4. Residents must maintain premises in a safe and clean condition.
5. Residents acknowledge that the garage does not include a smoke/carbon monoxide detector unless required by law.
6. Items that pose an environmental hazard or a risk to the safety or health of other residents, occupants, or neighbors in Owner's sole judgment or that violate any government regulation may not be stored in the garage area. Prohibited items include fuel (other than a properly capped fuel tank of a vehicle), fireworks, rags, piles of paper, or other material that may create a fire or environmental hazard. Owner may remove from such areas, without prior notice, items that Owner believes might constitute a fire or environmental hazard.
7. Owner reserves the right to inspect the premises at any time for emergency or for the purpose of compliance with the terms and conditions of this agreement.
8. This agreement can be terminated by either party with a thirty (30) day written notice.

STANDARD BICYCLE STORAGE POLICIES

1. Bicycle storage is provided in the designated storage area.
Bicycle storage number: _____
2. Residents are responsible for locking and securing the bicycle(s). Owner is not responsible for any loss or damage that may occur to a bicycle when utilizing the storage areas.
3. Bicycle storage areas may be used for bicycles only.
4. Residents agree that Residents will not place any hazardous, combustible, explosive or illegal substances in the Bicycle Storage Area.
5. Owner reserves the right to immediately terminate Residents' use of the Bicycle Storage in the event of violation of these provisions including but not limited to the payment of any applicable rental charges.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:33:04 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) Date

Nida Fathima (Resident) Date

(Owner/Agent) Date

RENTER'S INSURANCE ADDENDUM

Mohammed Sauban Mussaddique and Nida Fathima ("Lessee") and, **Arrive** as agent for the Owner, **Arrivé** ("Lessor"), are parties to a lease dated **May 4, 2024** (the "Lease") Covering the premises known as Apartment #**2317** (the "Apartment") located at **2116 4th Ave, Seattle, WA 98121**. The Lease is hereby amended by adding the following provisions thereto (such provisions being incorporated into the Lease as if fully set forth therein):

- 1. Lessee, at its sole cost and expense, shall at all times during the term of the Lease maintain general liability coverage for the acts and omissions of Lessee in the minimum amount of **\$100,000.00** (on a per occurrence basis). Lessee may obtain the GL Policy from any qualified insurer.
- 2. The GL Policy shall list Lessor as an "Interested Party" or "Additional Interest" on the Declarations page of the GL Policy and provide that Lessor shall receive written notice no less than thirty (30) days prior to the expiration or termination of the GL Policy.
- 3. The GL Policy must extend coverage for negligent water damage Lessee may cause to Lessee's unit of possession.
- 4. In the event that Lessee fails to obtain and maintain the GL Policy as **required** herein, Lessor shall have the right, to charge a non-compliance fee in the amount of **\$25.00** which shall be deemed to be additional rent under the Lease and immediately due payable by Lessee to Lessor.
- 5. In the event that Lessee is in default of this requirement at any time s/he agrees not to hold the property owner, management or employees liable for any damage to person or property.

All other terms and conditions of the Lease remain in full force and effect.

IN WITNESS WHEREOF, this Addendum to Lease is executed as of the date set forth below.

 Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:33:14 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) _____
Date

Nida Fathima (Resident) _____
Date

(Owner/Agent) Date

RESTRICTED ANIMAL/BREED LIST

This Policy ("Policy") is made part of the Residential Lease Contract ("Agreement") dated **May 4, 2024**, and is between the Owner of **Arrive** ("Owner") and **Mohammed Sauban Mussaddique and Nida Fathima**, (collectively and individually "Residents"), for the premises at **2116 4th Avenue #2317, Seattle, WA 98121** (the "Leased Premises"), which is located within **Arrive** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Policy vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Policy shall control.

- 1. **DOG BREEDS:** Restricted breeds that may not visit or be maintained in the Leased Premises include, but are not limited to, the following: ☒ N/A
- 2. **POISONOUS ANIMALS:** Restricted animals that may not visit or be maintained in the Leased Premises include, but are not limited to, the following: ☒ Tarantulas ☒ Piranhas
- 3. **EXOTIC ANIMALS:** Restricted animals that may not visit or be maintained in the Leased Premises include, but are not limited to, the following: ☒ Reptiles (snakes, iguanas) ☒ Ferrets ☒ Skunks ☒ Raccoons ☒ Squirrels ☒ Rabbits ☒ Birds (parrots, cockatiels, macaws)

NOTE: SERVICE/COMPANION ANIMALS MAY NOT BE SUBJECT TO THIS LIST

INTENDING TO BE BOUND, the parties hereto have executed this Policy as of the day and year first above written.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:33:20 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) _____
Date

Nida Fathima (Resident) _____
Date

(Owner/Agent) Date

ROOFTOP DECK ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated May 4, 2024, and is between the Owner of Arrive ("Owner") and Mohammed Sauban Mussaddique and Nida Fathima, (collectively and individually "Residents"), for the premises at 2116 4th Avenue #2317, Seattle, WA 98121 (the "Leased Premises"), which is located within Arrive (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

The parties hereby amend and supplement the Residential Lease Contract as follows:

This rooftop deck is provided for the residents of Arrive. Regulations listed below are to ensure the safety and enjoyment for all while in use. This addendum shall be incorporated into the Residential Lease Contract.

- Rooftop Deck Hours are 24 hours.
- Only residents and guest accompanied by residents are permitted.
- Residents and their guests shall not walk in any areas on the roof other than the designated walkway and rooftop deck itself.
- For safety reasons, any persons under the age of 15 must be accompanied by an adult at all times.
- Personal BBQ grills are not permitted.
- No glass containers are permitted.
- No fireworks are permitted.
- All garbage and waste is to be deposited in the provided containers.
- Proper attire is required on the deck.
- Animals are permitted but must be on a leash at all times and accompanied by and under control of the resident. Residents are responsible for cleaning up after animals.
- Nothing may be thrown or intentionally dropped over the edge of the roof. In view of the seriousness of such activity, the resident upon the first infraction may incur a fine and rooftop usage privileges may be revoked and/or their residency terminated.

Any additional rules posted by Owner pertaining to rooftop use must be followed. Violation of these rules are deemed a material breach of the Residential Lease Contract.

INTENDING TO BE BOUND, THE PARTIES HERETO HAVE EXECUTED THIS Addendum as of the day and year first above written.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:33:26 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

(Owner/Agent)

Date

SMOKE ALARM - WASHINGTON

Date May 4, 2024	Property Name Arrive	Property Number	
Resident Name(s) Mohammed Sauban Mussaddique and Nida Fathima			
Unit Number 2317	Street Address 2116 4th Avenue		
City Seattle		State WA	Zip 98121

A ☐ Battery ☐ 10 Year Battery ☐ Electric ☒ Electric with Battery Backup powered smoke detection device has been installed in the above-noted unit for resident protection. The device was tested by the management on **June 28, 2023** and found to be in working condition. It is the resident's responsibility to test the device at least every six months, maintain the smoke detector in proper operating condition, and replace the batteries as needed. **YOUR FAILURE TO MAINTAIN THE SMOKE DETECTION DEVICE, INCLUDING THE REPLACEMENT OF BATTERIES WHEN REQUIRED FOR ITS PROPER OPERATION, IS PUNISHABLE UNDER WASHINGTON LAW WITH FINES UP TO \$200. You will not remove or tamper with a properly working smoke detector, including removing any working batteries.**

TESTING ALARM

Test by pushing button on cover. This will sound alarm if all electronic circuitry, horn and battery are working. If no alarm sounds, the unit has a defective battery or other failure. You can also test alarm by blowing smoke into it.

HUSH FEATURE

If the smoke alarm has a hush feature, you can silence alarm by pushing hush button on cover and holding for three seconds.

BATTERY REPLACEMENT (where applicable)

If the smoke alarm is powered by a 10 year battery, it may not last for 10 years. The smoke detector has a low battery indicator which will "chirp" at 30 second intervals for a minimum of 7 days. Replace battery when chirping occurs. If equipped with a 10 year battery, replace only with a 10 year battery. If the smoke alarm is electric with battery backup, use Mallory MN1604 or Eveready 552 9 volt alkaline battery or equivalent sold at most drug, department, hardware or electronic parts stores. Never use an ordinary or heavy-duty carbon-zinc battery.

It is your responsibility to report deficiencies to the owner/agent immediately and in writing; the owner/agent will correct the deficiency within 10 days.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:33:37 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

(Owner/Agent)

Date

SMOKE-FREE ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **May 4, 2024**, and is between the Owner of **Arrive** ("Owner") and **Mohammed Sauban Mussaddique and Nida Fathima**, (collectively and individually "Residents"), for the premises at **2116 4th Avenue #2317, Seattle, WA 98121** (the "Leased Premises"), which is located within **Arrive** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Residents and Owner acknowledge that smoking negatively effects the health of the community at large and contributes to an increased risk of fire and maintenance and cleaning costs of the Leased Premises. In order to help minimize these issues, Residents and Owner agree to the following terms:

- 1. Definition of Smoking:** "Smoking" means inhaling, exhaling, breathing, or carrying any lighted cigar, cigarette, e-cig, vaping machine/device, hooka, or other tobacco product or similar lighted product, including marijuana, in any manner or in any form. The use of medical marijuana by Residents, for whom using medical marijuana is not a crime under Washington law, will not constitute unauthorized smoking when it occurs inside areas approved by Owner.
- 2. Smoke-Free Areas:** Residents, Occupants, guests, or other individuals may not smoke anywhere in the designated smoke-free areas. Pursuant to Wash. Rev. Code 70.160, Smoke-Free Areas include common areas and anywhere within 25 feet of entrances, exits, windows that open and ventilation intakes.

Smoking is prohibited at the Residential Community, including the Leased Premises, private outdoor spaces associated with the Leased Premises, including but not limited to balconies, patios and decks, and common areas: clubhouse, rooftop decks, business centers, media rooms, laundry facilities, fitness center, office and **twenty-five (25)** feet of the exit, entrance, or operable window of any private building or structure designated as non-smoking.
- 3. Compliance.** Residents must comply with the terms and provisions of this Addendum and inform all Occupants and guests of the Smoke-Free Areas. Residents shall promptly provide written notice to Owner of any incident of smoking or migrating secondhand smoke into the Leased Premises.
- 4. Disclaimer by Owner.** Owner's adoption and enforcement of Smoke-Free Areas is not a warranty or guarantee of the Residents' health, habitability, or smoke-free condition of the Leased Premises or other Smoke-Free Areas. Owner will take reasonable steps to enforce Smoke-Free Areas, however Owner is not required to take any steps unless Owner has actual knowledge or has received written notice about violations to the Smoke-Free Areas policy.
- 5. Effect of Breach:** Residents agree that the provisions, obligations, and conditions of this Addendum are reasonable and material and that a breach by Resident of any such provision, obligation, or condition constitutes a material breach thereof and may be grounds for immediate termination of the Residential Lease Contract by Owner.
- 6. Complaint Policy:** Complaints must be submitted in writing to Owner. Owner shall take the following actions upon receipt: 1) place a courtesy call to the resident that is smoking; 2) send a letter to the resident confirming the no smoking policy; 3) send a notice to perform or quit to the resident for repeated violations of the no smoking policy; and 4) if the resident fails to comply with the no smoking policy, Owner reserves the right to terminate the Residential Lease Contract.

Violations of Owner's smoke-free policies will be considered grounds to terminate the Residential Lease Contract to the extent permitted by applicable law.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:33:46 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

(Owner/Agent)

Date

Third Party Billing Regulation Seattle Municipal Code (SMC) 7.25

SMC 7.25.010 Short title and purpose.

- A. This chapter may be known and be cited as "Third Party Billing Regulation." The general purpose of this chapter is to prevent landlords, either themselves or through a third party billing agent, from billing tenants for master metered or other unmetered utility services without proper notice and disclosure of billing practices to tenants, and to protect tenants from deceptive or fraudulent billing practices, and to these ends the provisions of this chapter shall be liberally construed.
- B. Nothing in this chapter shall be construed to prevent a landlord from including a tenant's cost of master metered or other unmetered utility services within the rent set forth in a rental agreement, and the practice of including such cost within a tenant's rent shall not be considered a billing practice or methodology affected by the provisions of this chapter.
- C. Nothing in this chapter shall be construed to affect the practices used by Seattle Public Utilities or Seattle City Light to bill and collect residential multi-unit building owners or landlords for master metered or other unmetered utility service.

SMC 7.25.020 Definitions.

As used in this chapter:

- A. "Billing entity" means the landlord or third party billing agent, as the case may be, responsible for billing residential multi-unit building tenants for master metered or other unmetered utility service.
- B. "Disclosure" means providing tenants with complete and accurate written information in a clear, concise, and understandable manner in all notices required under this chapter and on each bill presented from the billing entity to tenants.
- C. "Landlord" means a "landlord" as defined in and within the scope of RCW 59.18.030 and RCW 59.18.040 of the Residential Landlord Tenant Act of 1973 ("RLTA") in effect at the time the rental agreement is executed, and shall also mean the owner of a mobile home park or boat moorage. At the time of passage of the ordinance codified in this chapter, RLTA defined "landlord" as "the owner, lessor, or sublessor of the dwelling unit or the property of which it is a part," and included "any person designated as representative of the landlord."
- D. "Master metered utility service" means a utility service supplied to more than one (1) unit in a multi-unit building and measured through a single inclusive metering system.
- E. "Methodology" refers to any method, technique, or criterion used to apportion to tenants charges billed to the landlord by the utility for master metered utility service or unmetered utility service, including but not limited to Ratio Utility Billing Systems, installation of submetering, and hot water metering.
- F. "Multi-unit building" refers to a residential building or group of buildings (which may include a mobile home park or boat moorage) with 3 or more tenant units with a master metered utility service or unmetered utility service, such as solid waste collection, that is provided to the building or group of buildings as a whole.
- G. "Personally identifiable information" means specific information about a tenant, including but not limited to the tenant's social security number, birth date, mother's maiden name, banking data or information, or any other personal or private information.
- H. "Ratio Utility Billing System" or "RUBS" refers to any methodology by which the cost of master metered or other unmetered utility service provided to tenants and common areas of a multi-unit building is apportioned to tenants through the use of a formula that estimates the utility usage of each rental unit in the building based on the number of occupants in a unit, number of bedrooms in a unit, square footage of a unit, or any similar criterion.
- I. "Rental agreement" means a "rental agreement" as defined in and within the scope of RCW 59.18.030 and RCW 59.18.040 of the RLTA in effect at the time the rental agreement is executed, and is deemed to include any month-to-month tenancy arrangement, whether written or oral. At the time of the passage of the ordinance codified in this chapter, the RLTA defined "rental agreement" as "all agreements which establish or modify the terms, conditions, rules, regulations, or any other provisions concerning the use and occupancy of a dwelling unit."
- J. "Service charge" refers to any charge or fee imposed by the billing entity to cover the costs of providing or administering the billing practices, regardless of the label applied to such charge or fee.
- K. "Tenant" means a "tenant" as defined in and within the scope of RCW 59.18.030 and RCW 59.18.040 of the RLTA in effect at the time the rental agreement is executed, and shall also mean a tenant of a mobile home park or boat moorage. At the time of passage of the ordinance codified in this chapter, the RLTA defined "tenant" as "any person who is entitled to

occupy a dwelling unit primarily for living or dwelling purposes under a rental agreement."

- L. "Billing practices" refers to the practices of a landlord or third party billing agent, as defined herein, that bills residential multi-unit building tenants for the purpose of apportioning master metered or other unmetered utility services provided to the building(s) as a whole, either by directly submetering tenants' usage or by otherwise apportioning such utility services among tenants, and also refers to any practices related thereto, including but not limited to collecting, using or disclosing tenants' personally identifiable information (other than name and address), attempting to collect unpaid amounts from tenants, verifying tenants' credit, and reporting unpaid balances to credit reporting agencies.
- M. "Third party billing agent" refers to any entity retained or authorized by a landlord to bill tenants for master metered or other unmetered utility service on behalf of and as the agent of a landlord.
- N. "Utilities" or "utility service(s)" refers to water, sewer, electric, and solid waste services.

SMC 7.25.030 Prohibited billing practices.

- A. It is a deceptive and fraudulent business practice for any landlord or third party billing agent to bill tenants separately for utility services except as permitted in this chapter.
- B. It is a deceptive and fraudulent business practice for a landlord to engage, retain, or authorize, and a landlord shall be liable for the actions of, a third party billing agent that does not comply with the requirements of this chapter.
- C. As of the effective date of this ordinance, no landlord may disclose to a third party billing agent a tenant's personally identifiable information under any circumstances, provided, however, that nothing in this chapter shall prevent a landlord from disclosing a tenant's name and address to a third party billing agent for the purpose of engaging in permitted billing practices.
- D. A third party billing agent who prior to the effective date of this ordinance has obtained any tenant's personally identifiable information (other than name and address) shall not use, sell, convey, or otherwise disclose that personally identifiable information to any other person, except as expressly permitted in this chapter, and must destroy all such information upon a tenant's request, when the tenancy terminates and the account is paid, or when the landlord terminates the third party billing agency relationship.
- E. No third party billing agent may inform a credit reporting agency of a claim against a tenant except as expressly permitted in RCW Chapter 19.16, regardless of whether the third party billing agent is licensed by the state pursuant to that chapter.

SMC 7.25.040 Billing requirements.

- A. Notwithstanding the prohibition against submetering electric service in SMC 21.49.100 (G), a landlord may, itself or through a third party billing agent, bill tenants for master metered or other unmetered utility services, including electric service provided to tenants of multi-unit buildings, provided that the following requirements are met:
 - 1. Notice. Billing practices may be adopted only upon advance written notice to a tenant as part of a new or renewed rental agreement. Tenants must receive such written notice at least 90 days before expiration of their rental agreements, or, in the case of month-to-month tenancies, at least 90 days before any such billing practices may become effective. Notwithstanding the foregoing two sentences, if billing practices are already in place at the time the ordinance codified in this chapter becomes effective, written notice must be given within 30 days of the effective date of the ordinance codified in this chapter.
 - 2. Methodology. The notice required under section A.1 above must include a copy of this chapter and a detailed written disclosure of the methodology used by the billing agent to allocate the charges to each tenant, including the methodology used to allocate utility services for common areas of the building, along with all other terms and conditions of the billing arrangement. If submetering is used, the notice required under section A.1 shall also include descriptions of the location of the submeter and of the access requirements, if any, required by the landlord for access to tenant units for submeter installation, reading, repair, maintenance, or inspections, including removal of the submeter for testing, consistent with the provisions of RCW 59.18.150 of the RLTA. An additional written notice must also be given at least 30 days prior to the due date of the next rental payment in order to implement a change in billing agents, apportionment methodology, fees, or other terms and conditions of the billing arrangement.
 - 3. Posting of Information.
 - a. In addition to the written notification required by subsection A.2. above, any landlord employing billing practices shall post in a conspicuous public space in the interior of the building copies of the three most current utility bills for master metered or other unmetered utility services provided to the building as a whole that are included in the bill sent to the tenant, together with a written description of the methodology used to allocate each such utility service

Where such meeting is not

- b.** A third party billing agent who prior to the effective date of this ordinance has obtained a tenant's personally

identifiable information may disclose such personally identifiable information only to the extent necessary to render its billing services.

- c. To the extent required by federal, state, or local law, a billing entity may disclose personally identifiable information in its possession (i) pursuant to a subpoena or valid court order authorizing such disclosure, or (ii) to a governmental entity.
8. **Estimated Billing.** If Seattle Public Utilities or Seattle City Light has billed the landlord using an estimate of utility service consumed, the billing agent may estimate the charges to be billed to tenants until billing based on actual consumption resumes. Upon receipt of a corrected bill showing that the estimated bill overstated charges, the landlord must refund the difference to tenants. Upon receipt of a corrected bill showing that the estimated bill understated charges, the landlord may attempt to recover the underpayment from the tenants that actually incurred the charges during the billing period, but shall not attempt to recover an underpayment from a tenant who did not reside in the unit during the billing period in which the charges were incurred.
9. **Submetering.** Submetering is permitted as a way of allocating master metered utility services to tenants provided the following conditions are met:
 - a. The submeters must be read prior to each billing.
 - b. A landlord may not enter a unit without, and a tenant may not unreasonably withhold, consent to enter the unit in order to perform submeter installation, reading, repair, maintenance, and inspection, including removal of the submeter for testing, provided, however, that a landlord may enter a unit without a tenant's consent in the case of a submeter leak or emergency related to that unit's submeter.
 - c. If a tenant contests the accuracy of the submeter, the tenant shall have the option of demanding an independent test of the meter through the Consumer Affairs Division of the Department of Executive Administration. If the meter reads within a 5% range of accuracy, the tenant requesting the test shall pay the cost of the meter test. If the meter reads outside a 5% range of accuracy, the landlord shall pay for the cost of the meter test and within 30 days refund any overpayments for the past three months based on a recalculation of the past year's billings by correcting for the inaccuracy of the submeter. Submetering thereafter shall only be permitted with a repaired submeter.
- B. Nothing in this section shall be construed to prevent a landlord from addressing billing of master metered or other unmetered utility services in a written addendum to a lease. A lease addendum may be used to give the notice required under subsection A.1 of this subsection, so long as the lease addendum is provided to the tenant with the notice required under that subsection, and so long as all other requirements of this chapter are satisfied.

SMC 7.25.050 Dispute resolution and remedies.

- A. A dispute regarding the amount of charges or other terms and conditions contained in a bill shall be resolved as follows:
 1. The tenant must notify the entity responsible for billing disputes as identified in the bill ("Responsible Entity") of the nature of and reason for the dispute by calling the number shown on the bill or by writing a letter to the Responsible Entity within 30 days of receiving the bill. The tenant must have a good faith basis for any such dispute.
 2. Within 30 days of receiving notice of a billing dispute, the Responsible Entity must contact the tenant to discuss the dispute, and the Responsible Entity and tenant must determine the amount of disputed and undisputed charges. The tenant must pay all undisputed charges within 30 days of reaching agreement with the Responsible Entity.
 3. No late fees or interest charges shall accrue on any disputed portions of a bill while the amount is being resolved in accordance with subsections A.1 and 2, and no collection activity related to the disputed portions of a bill may be instituted against a tenant that has notified the Responsible Entity of a dispute in accordance with this chapter.
 4. The tenant and Responsible Entity shall continue to discuss in good faith any remaining disputed amounts and attempt to reach an agreement on the amount due, if any, within 60 days of the Responsible Entity's receipt of notice of a billing dispute. If a tenant is unable to reach a satisfactory resolution of any portion of a disputed charge within the allotted time, the tenant may exercise any of the remedies set forth in Section B below or any other available remedies, provided, however, that if within 120 days of the Responsible Entity's receipt of notice of a billing dispute, the tenant has not either exercised one of the remedies set forth in Section B or paid the remaining disputed amounts, the landlord may exercise any legal or equitable remedies available to it to collect the unpaid amounts, and provided further that nothing in this subsection shall be construed to deprive a landlord of its right to exercise any legal or equitable remedies available to it against a tenant that has not paid any undisputed charges, has not followed the procedures set forth in this section, or has not exercised good faith in disputing a charge.

- B.** If a tenant believes that it has been or will be subject to billing practices that violate any provision set forth in this chapter, the tenant may, at its option, file a complaint against the landlord with the Office of the Hearing Examiner or institute a civil action against the landlord, as follows:
1. The Office of the Hearing Examiner is hereby vested with the authority to hear and resolve tenant complaints against landlords regarding billing practices in accordance with its rules and procedures then in force governing contested cases. The filing fee for such a case shall be set at **\$0.00**. Upon the finding of a violation of this chapter, the Hearing Examiner shall award actual damages (including but not limited to refund of any overpayment or other fees or charges resulting from such violation, and costs of pursuing the claim) and a penalty of one hundred dollars, and may permit the tenant to terminate the rental agreement by written notice in accordance with RCW 59.18.090. If the Hearing Examiner determines that the landlord engaged in prohibited billing practices in deliberate violation of this chapter, the penalty mentioned in the preceding sentence shall be two hundred dollars, and the Hearing Examiner shall also award attorneys' fees to the tenant. A final order or decision of the Hearing Examiner may be subject to judicial review in the King County Superior Court in accordance with the Hearing Examiner's rules and procedures.
 2. In the alternative, a tenant may institute a civil action against the landlord. Upon a finding that a landlord engaged in billing practices that violate this chapter, the court shall award actual damages (including but not limited to refund of any overpayment or other fees or charges resulting from such violation, and costs of pursuing the claim) and a penalty of one hundred dollars, and may permit the tenant to terminate the rental agreement by written notice in accordance with RCW 59.18.090. If the court determines that the landlord engaged in prohibited billing practices in deliberate violation of this chapter, the penalty mentioned in the preceding sentence shall be two hundred dollars, and the court shall also award attorneys' fees to the tenant.
 3. No late fees or interest charges shall accrue on any disputed portions of a bill while the amount is being resolved by the Hearing Examiner or court, and no collection activity or unlawful detainer action alleging default in the payment of rent related to the disputed portions of a bill may be instituted against a tenant that has filed a complaint with the Hearing Examiner or instituted a civil action in accordance with this chapter while the amount is being resolved by the Hearing Examiner or court. If the Hearing Examiner or court resolves the dispute and finds that a tenant that has not acted in good faith in asserting a billing dispute, the Hearing Examiner or court may order the tenant to pay late fees and/or interest charges on some or all of the disputed portions of the bill.
 4. A landlord shall not pass on, charge, or otherwise allocate to tenants, in any manner whatsoever, any damages, fine or penalty (including attorneys' fees) that the landlord is ordered to pay under this chapter.
- C.** The existence of an unresolved or pending billing dispute does not relieve a tenant of its obligation to pay in a timely fashion all undisputed charges, including those undisputed charges that accrue after the dispute resolution procedures of this chapter have been invoked.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:34:08 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident)

Date

Nida Fathima (Resident)

Date

(Owner/Agent)

Date

LEASE / RENTAL UTILITY ADDENDUM

For and in consideration of the mutual promises contained herein and in the Lease/Rental Agreement and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged by both parties, it is agreed as follows:

We hereby agree to use our best efforts to repair any water leaks inside or outside your apartment unit after learning of them. You hereby agree to use your best efforts to conserve water.

1. **Water, Wastewater, Sewer Capacity Charge, Gas (Hot Water Heating), Common Area Electric and Solid Waste (Trash) Allocation**

Water and wastewater utility charges shall be billed monthly based on Resident(s) submetered usage. Hot water and cold water are individually metered in your unit. Submetered water and wastewater, sewer capacity charges, gas hot water heating, common area electric and solid waste charges shall be billed monthly based on the billing methods listed below.

Water, wastewater, sewer capacity charge, common area electric, gas and solid waste billings will vary monthly based on the properties' utility bill(s) received from the utility provider over time depending on usage characteristics, changes in the rates imposed by the utility company that provides service to the apartment community or other factors. The billing entity shall allocate the property's monthly water, wastewater, electric, and gas master metered or unmetered utility provider bill(s) and the property's unmetered sewer capacity and solid waste charges based on methods in accordance with appropriate state or municipal code, if applicable. A copy of the City of Seattle Third Party Billing Ordinance #121320 is attached.

2. **Submetered Water and Wastewater Billing Procedure:**

Utility bills shall be Resident(s) proportionate share of the master metered or unmetered utility provider bill(s) according to the state and/or local laws. Monthly billing for Utilities shall be based on meter readings recorded by the dwelling unit hot and cold water submeters. Water and wastewater charges shall be calculated at the average property rate at the time of consumption and as indicated herein. In the event of a meter malfunction, Resident may receive an estimated bill for Utilities and Resident acknowledges that estimated Utilities will be reconciled on future billings. Resident acknowledges, that upon correction of an estimated bill for Utilities it is learned that the bill overstated charges, resident shall be entitled to an account credit reflecting the overstated charges. It is further agreed that upon correction of an estimated bill for Utilities it is learned that the bill understated charges, resident shall be responsible for such underpayment during that billing period.

Resident(s) bill for Utilities shall include dwelling unit base charges, if applicable, and an average rate per gallon for water and waste water. The master metered or unmetered utility provider's total monthly charges for water service (less dwelling unit base charges or customer service charges if applicable), divided by the total monthly water consumption measured by the utility provider, multiplied by the Resident(s) total monthly consumption as recorded by the dwelling unit submeters. In the event the utility provider's rate structure includes a dwelling unit base charge, the billing entity shall bill the base charge applicable to that dwelling unit. The billing entity shall not bill the Resident for any dwelling unit base charges applicable to unoccupied dwelling units. In the event the utility provider's rate structure includes customer service charges, the billing entity shall bill each resident the amount of the customer service charge(s) divided by the total number of dwelling units, including vacant units that can receive service through the master meter serving the property. Resident agrees that Landlord or agent on behalf of Landlord may enter the dwelling unit in order to perform submeter installation, reading, repair, maintenance, and inspection, including removal of the submeter for testing upon written notification. Resident acknowledges that Landlord or agent on behalf of Landlord may enter the dwelling unit without prior notification or consent in the case of a meter leak or emergency related to the dwelling unit submeter.

3. **Solid Waste (Trash) Allocation Procedure:** Solid waste bills shall be issued monthly to Resident(s). The billing entity shall allocate the property's monthly solid waste utility provider charges billed to the property based on the allocation method listed below.

☒ Allocated equally per unit

4. **Gas (Hot Water Heating) Allocation Procedure:** Gas hot water heating bills shall be issued monthly to Resident(s). The billing entity shall allocate the property's monthly gas utility provider charges billed to the property based on the allocation method listed below.

☒ Proportionate percentage of submetered hot water usage

5. **Common Area Electric Allocation Procedure:** Common area electric bills shall be issued monthly to Resident(s). The billing entity shall allocate the property's monthly electric utility provider charges billed to the property based on the allocation method listed below.

☒ Allocated equally per unit

- 6. Sewer Capacity Charge Allocation Procedure:** Sewer capacity charge bills shall be issued monthly to Resident(s). The billing entity shall allocate the property's monthly sewer capacity utility provider charges billed to the property based on the allocation method listed below.

☒ Allocated equally per unit

7. Coverage and Cost

Resident(s) acknowledge that Landlord cannot guarantee the level of charges for water, wastewater, sewer capacity charges, electric, gas and solid waste utility services, which will vary over time depending on resident(s) usage characteristics, changes in the rates imposed by the utility provider that provides service to landlord or other factors. Resident(s) hereby understand and agree to pay a one-time **\$5.00** account activation fee and a monthly service charge of no more than **\$2.00** per utility per month not to exceed a cumulative charge of **\$5.00** per month for all the utilities included in any bill as billed by the billing entity. The service charge shall be added to the Resident(s) utility bill as directed by state law or the City of Seattle Third Party Utility Billing Ordinance #121320. Resident(s) agrees to mail or deliver payment to the place indicated so that payment is received by the due date specified on the utility billing statement.

8. Separate Utility Billing

Resident(s) monthly rent under the Apartment Lease/Rental Agreement does not include a charge for utilities. Instead Resident(s) shall pay that amount stated in a separate bill received each month from a billing entity designated by Landlord. For and inconsideration of this section, the billing entity from which the resident shall receive monthly water, wastewater, sewer capacity charge, common area electric, gas and solid waste bills as designated by the landlord shall be **The Billing Associates Northwest, LLC**

Check payments shall be made payable to **Arrivé** and hand delivered or mailed to:

Arrivé
2116 4th Ave
Seattle, WA 98121

You can also pay your utility bill using the property's online rent payment portal

9. Notice of Change

During the term of the Lease/Rental Agreement between the Landlord and Resident(s), Landlord is authorized to bill Resident(s) for, and Resident(s) hereby agree to pay for an allocated portion of the property's monthly utilities as mentioned above. Landlord agrees to give Resident(s) a 30 days written notice requiring Resident(s) to commence paying for any charge, including but not limited to change in billing entities, billing methodology, service charges, or other changes in the method of allocation of utility costs paid by Resident(s).

10. Failure To Pay

It is hereby understood and agreed between Landlord and Resident(s) that in the event such payment or payments are not made when due, it shall be considered default for non-payment of rent under the Lease/Rental agreement. It is understood that breach of this agreement shall constitute a default by the Resident(s). Resident(s) agrees that Landlord may bring summary proceedings for eviction as if rent were not paid. Resident(s) agrees to mail or deliver payment to the address indicated on the billing statement so that payment is received by the payment due date. It is agreed by Resident(s) that late notice and late payment charges as specified in Resident(s) Lease/Rental Agreement shall be assessed if payment is not received by the payment due date. It is agreed by Resident(s) that a Returned Check Charge as stated in Resident(s) Lease/Rental Agreement in addition to the forgoing late fees, shall be added to any billing for checks returned due to insufficient funds. Payments received will be applied to outstanding balances first. When Resident(s) moves out of their apartment, all water, wastewater, sewer capacity charge, common area electric, gas and solid waste charges must be paid through the date of move out. The Landlord may deduct the final bill amount and any unpaid charges due as of the date of move out from Resident(s) security deposit.

11. Examination of Landlord Utility Provider Bills

During regular weekly office hours, Resident(s) may examine the three most recent utility provider bills used to bill residents and Landlord must make the information available upon request and include the method used to allocate the utilities. Landlord may ask residents to submit a written request to review the information requested if the records are stored elsewhere. Records kept elsewhere shall be available to residents within five business days of receiving a request.

I (We) have read, understand and agree to the terms of this Lease Agreement Addendum. I (We) agree to pay the monthly billings and fees set forth above.



Signed by Mohammed Sauban Mussaddique
Sun May 5 2024 09:34:18 AM PDT
Key: DCF78B0A; IP Address: 23.252.53.240

Mohammed Sauban Mussaddique (Resident) _____ Date

Nida Fathima (Resident) _____ Date

(Owner/Agent) Date

Renting in Seattle

RENTER'S HANDBOOK



Seattle Department of
Construction & Inspections

January 2024

DON'T FORGET TO REGISTER TO

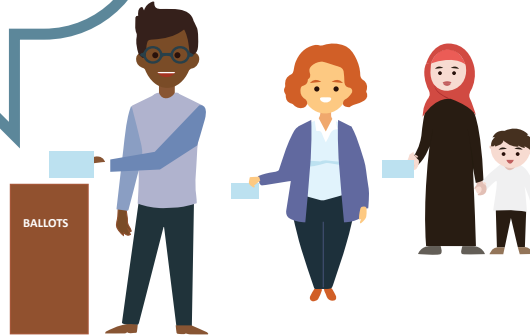
VOTE!

YOUR VOICE MATTERS!

www.kingcounty.gov/depts/elections

WELCOME HOME!

There's a lot to do when moving to a new home. Updating your voter registration is one of those important tasks to remember.



ALREADY REGISTERED?

Here are 5 easy ways to update your address:

- If you have a current Washington State driver license or state ID card, go online!
- Mail the registration form included with this Renter's Handbook.
- E-mail elections@kingcounty.gov with your name, date of birth, old residential and mailing address, and your new residential and mailing address.
- Call 206-296-VOTE (8683). Services are available in 120 languages.
- Go in-person to King County Election headquarters in Renton or the Voter Registration Annex in Seattle.

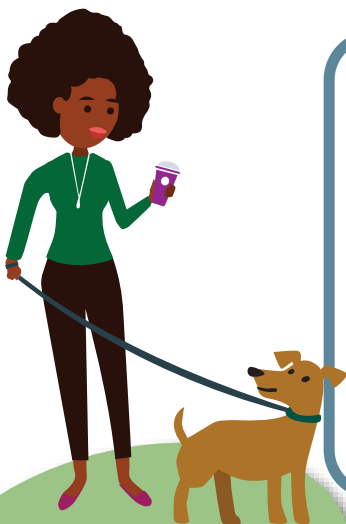


**REMEMBER TO
CHANGE YOUR
ADDRESS AT LEAST 29
DAYS BEFORE
ELECTION DAY.
CHECK THE VOTER'S
CALENDAR.**

NEED TO REGISTER?

There are 3 ways to register to vote:

- If you have a current Washington State driver license or state ID card, go online!
- Mail the registration form included in this Renter's Handbook. (See center pull-out.)
- Go in-person to King County Election headquarters in Renton or the Voter Registration Annex in Seattle.



Welcome!



What Is the Renter's Handbook?

Welcome to Renting in Seattle. Your landlord is required to provide you with a printed copy of this Renter's Handbook when you sign your initial rental agreement. Electronic copies are allowed at lease renewal, annually for month-to-month renters and whenever the City publishes updated versions.

The Renter's Handbook gives you a good overview of both your renter rights and obligations and contains tips and helpful resources to make renting in Seattle an informed experience. Keep this handbook where it's easy to reference.

Check out our web site www.seattle.gov/rentinginseattle it delivers the rent-cycle regulations and fair housing laws, for both renters and housing providers, specific to each audience.

When you need additional information or guidance call the Helpline [\(206\) 684-5700](tel:(206)684-5700) Monday – Friday during business hours. Phone interpretation available

Seattle is a Welcoming City that values inclusion and equity. City employees do not ask about citizenship status and serve all residents regardless of immigration status.

Lastly, this handbook is not intended as legal advice but an aid to understanding the City's rental housing codes.

Happy Renting!

3rd edition



Seattle Department of
Construction & Inspection

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FINDING A HOME

Finding the right place for you is not an exact science and people find their homes in lots of different ways. Many listings are available free online. Sometimes, driving or walking around a neighborhood can yield results where 'For Rent' signs are posted. Beware of online scams that ask for money or wire transfers. Never agree to rent a place before you see it. If a deal feels too good to be true, it probably is! You can report suspected rental scams to the Federal Trade Commission at **www.consumer.ftc.gov**.

Affordable housing can mean a lot of different things. Generally, it is housing that is tied to your income level, often, but not always, based on area rents. Some low-income housing is federally funded and/or provided by non-profit housing organizations. The City's Office of Housing maintains a list of affordable housing units, search a list at **www.seattle.gov/housing/renters/find-housing**.

Often there are waitlists for affordable housing options. Seattle Housing Authority (SHA) both owns low-income housing units and has a rent subsidy program called 'Housing Choice Vouchers'. You can find out more about SHA at **www.seattlehousing.org**, or you can visit their office location in downtown Seattle at 190 Queen Anne Avenue North. You can call the Community Information Line at 2-1-1 for a list of affordable housing providers over the phone if you don't have access to a computer.





RENTAL REGISTRATION

Since 2014, Seattle's *Rental Registration Inspection Ordinance* (RRIO) requires all rental properties to register with the City. Some exceptions apply to the requirement including owner-occupied homes that rent rooms, housing stock owned by Seattle Housing Authority or licensed facilities such as assisted living homes. Other owner-occupied rental home exemptions are listed below.

Landlords are required to self-certify that their rental unit meets the basic habitability standards described on the registration checklist. Priority is given to health and safety compliance. Inspections are required every 5-10 years and can be completed by a City inspector or by a private housing inspector approved by the City. Registration renewal is required every two years.

You can search the address of a rental unit at www.seattle.gov//rrio to check if it is registered. Failure to register can result in fines and impacts the landlord's ability to serve eviction notices.



Owner-Occupied Exemptions

Generally, landlords sharing their home with tenants or occupying a home on the same property such as an adu/dadu (attached/detached accessory dwelling unit) are exempt from some rental regulations and fair housing laws.

Certain circumstances can impact some exemptions such as using a property management company or having a notice of violation for housing standards.

Be aware of differences to make an informed decision. Most important to note, is owner-occupant landlords have just cause to terminate a month-to-month tenancy with 20 days' advance notice or to not offer a lease renewal.

For more details, see the following regulations that have exemptions for owner-occupant landlords:

- Fair Housing - pg. 11- 12, 17-18
- First in time – pg.16
- Move in costs – pg. 24-25
- Adding roommates – pg. 34-35
- Just Cause - pg. 46-48
- Eviction defenses – pg. 49

Minimum Standards

It's important to know what to look for in a potential home besides your personal preferences. Seattle has minimum safety and maintenance standards for rental housing in the City's Housing and Building Maintenance Code. The following is a basic explanation of those standards.

Space and Occupancy

This category covers the minimum size of housing units and includes dimensions of sleeping rooms. It also covers light and ventilation requirements, like windows, fans, and sanitation. For example, a sleeping room must be at least 70 square feet with an additional 50 square feet for each person in excess of two.

Structural

Elements such as foundations, chimneys, masonry and roofs must be solid and stable. The building needs to be weathertight, damp-free, rodent-proof, and maintained in good repair.

Mechanical

All housing units must have a permanently installed heating source (space heaters alone are not sufficient). Electrical equipment, including wiring, and appliances must be properly installed and safely maintained. The unit must be safely lit and have sufficient electrical outlets.

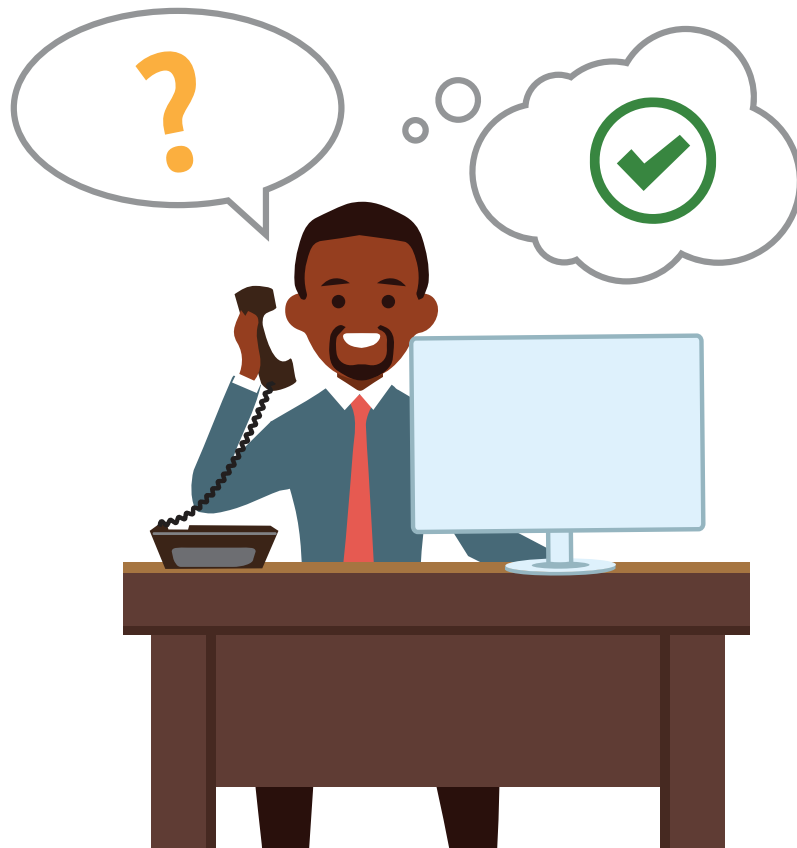


Fire and Safety

Stairs must be safely constructed and have appropriate handrails. Smoke and carbon monoxide detectors are required. An exterior door or properly sized window for emergency exit (known as egress) is required in all rooms used for sleeping. There are lots of additional requirements for larger, multi-unit buildings.

Security

Entry doors must have a deadbolt and have a peep hole or window so you can see who is at the door. Locks must be changed when there is a change of tenancy. Buildings must be secure enough to reasonably prevent criminal actions to residents and their belongings.



Good to Know!

Other general safety things to watch out for in older buildings and homes are the potential hazards of peeling lead paint and asbestos when it is friable (crumbling and not contained). If a unit has bedrooms below ground like basement rooms, are there large/low enough windows or exterior doors for egress? If not, those rooms should not be advertised nor used as bedrooms, as they do not meet safety standards.



Fair Housing Access

Seattle's Fair Housing laws strive to ensure everyone has equal access to housing. You have many protections against discrimination even before you decide to sign a lease. These include source of income; criminal history, exclusionary advertising/steering of potential tenants as well as disability rights to reasonable accommodation/modification.

It is illegal for a housing provider to, intentionally or otherwise, steer certain renters to or from a rental listing. A listing that says 'will suit a quiet couple' is potentially discriminatory because it appears to exclude applicants based on their 'parental status,' for example.

Landlords must include specific information when advertising a unit for rent. Advertisements must:

- Include the criteria that will be used for screening and the minimum standard to move forward in the application process.
- Describe all information and documents the landlord will use in screening.
- Provide information explaining how you can request additional time to complete an application for things like interpretation or a reasonable accommodation for a disability.

Source of Income Protections

Seattle has protections for renters with a source of income other than employment. Housing providers cannot deny you a rental unit or treat you differently because your income comes from social security, alimony, retirement, disability etc. or if you are relying on a rental subsidy program like a Housing Choice Voucher. If your landlord has a rent to income ratio requirement they must subtract any subsidy you receive before making the calculation. See pg. 17 for more on income-to-rent ratio.

Fair Chance Housing

Seattle's *Fair Chance Housing Ordinance* offers protections to address bias and barriers people with criminal backgrounds face when attempting to secure rental housing.

Advertising of rental units cannot ban applicants with a criminal history.

Adult applicants may be screened against the sex offender registry. A landlord could potentially disqualify an applicant on the registry only if:

1. The offense was committed as an adult.
2. A legitimate business reason exists. A connection would need to be demonstrated between the policy/practice and the safety of residents/property.

The following are some of the factors informing a landlord's consideration:

- Nature and severity of the offense
- Number and types of convictions
- Age at time of conviction
- Evidence of good tenant history
- Time since date of conviction
- Supplemental information



Homeowners renting units on the property where they live like an attached apartment or backyard cottage are exempt from these screening restrictions. see pg. 8.

If you see rental housing advertising that does not comply with Fair Chance housing laws, you can call the Helpline at (206) 684-5700 to report it.



Protected Classes

Seattle's Fair Housing Laws are designed to ensure everyone has equal access to housing and are based on protected classes.

- Race
- Color
- Ancestry
- Sex
- Disability
- Creed
- Religion
- Age
- Retaliation
- Alternative sources of income
- National origin
- Caste
- Marital status
- Political ideology
- Parental status
- Sexual orientation
- Gender identity
- Use of a service animal
- Use of a Housing Choice Voucher or other subsidy programs
- Military status or veteran
- Criminal history
- Citizenship and immigration status
- Pregnancy outcomes



READY TO RENT

Renting can be a competitive business, especially for more affordable units. Being prepared in advance can really help.

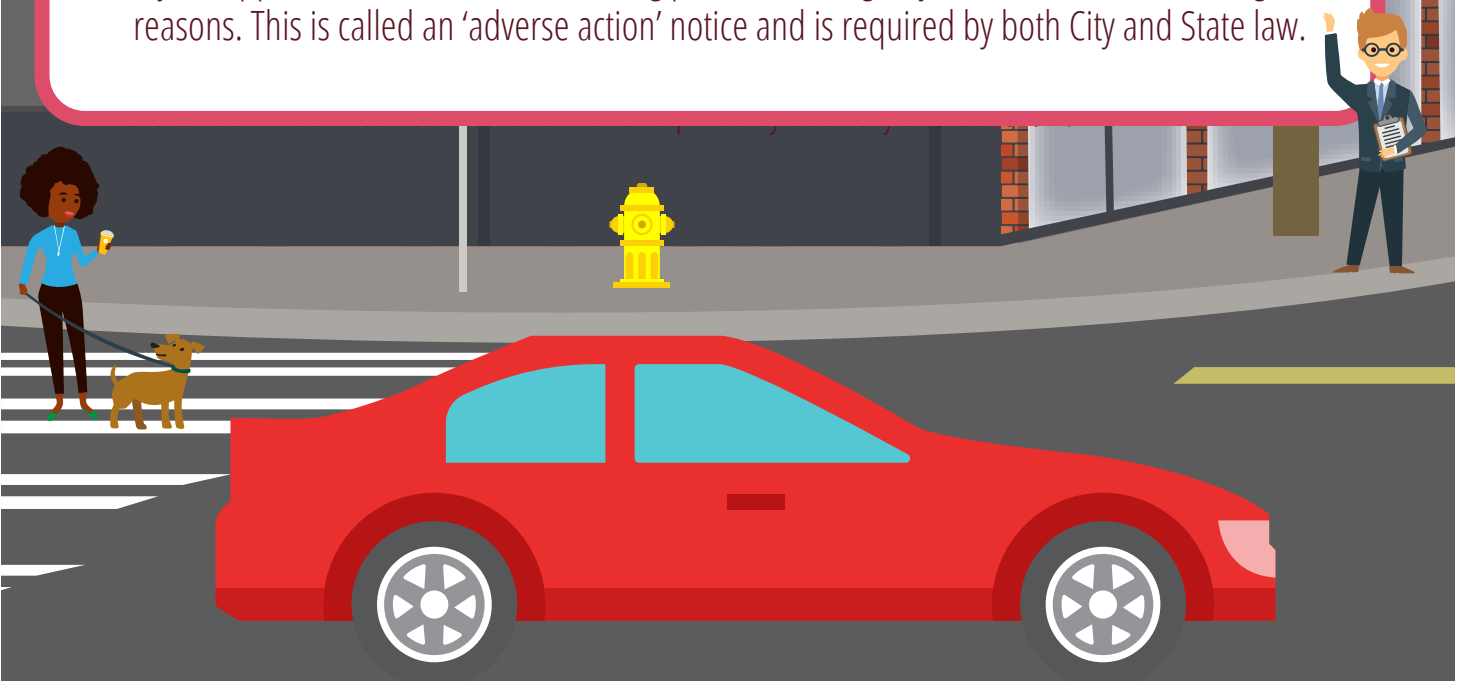
- Know your credit score and any potential issues that might show in a screening report. You can manage that information with your application and explain the circumstances to support your application. You can access your credit report at **www.annualcreditreport.com**
- Know your rights before you submit an application.
- Have the following information ready for your application:
 - Current and previous addresses including landlord information
 - Names and birth dates of all occupants
 - Employment and income verification
 - Vehicle information
 - References, both personal and housing related
 - Pet information

Tenant Screening

Housing providers must make clear in advance the criteria they will use to screen your application and the reasons that would result in denying your application. You are entitled to a copy of the screening report.

You can only be charged the actual cost of the application screening. The customary cost in Seattle is approximately \$25-\$45 per adult.

If your application is denied, the housing provider must give you a written notice stating the reasons. This is called an 'adverse action' notice and is required by both City and State law.



Holding Deposit

When you apply to rent a unit, the housing provider may want to charge you a deposit to hold the unit while screening your application.

The maximum holding deposit a landlord may charge is 25% of one month's rent. A receipt explaining the terms is required.

If you are offered the unit and decide you don't want it, you will likely forfeit your holding deposit. The deposit is fully refundable if your application is not successful or the unit fails a housing inspection connected to a rental subsidy program.

If you sign a rental agreement for the unit, the holding deposit must be applied to the first month's rent or move-in costs (security deposit and pet deposit).





First-in-Time Application

The *First-in-Time Ordinance* requires landlords to offer a rental agreement to the first qualified applicant who submits a complete application. Housing providers must cooperate fully with applicants using a housing subsidy such as completing required paperwork, etc.

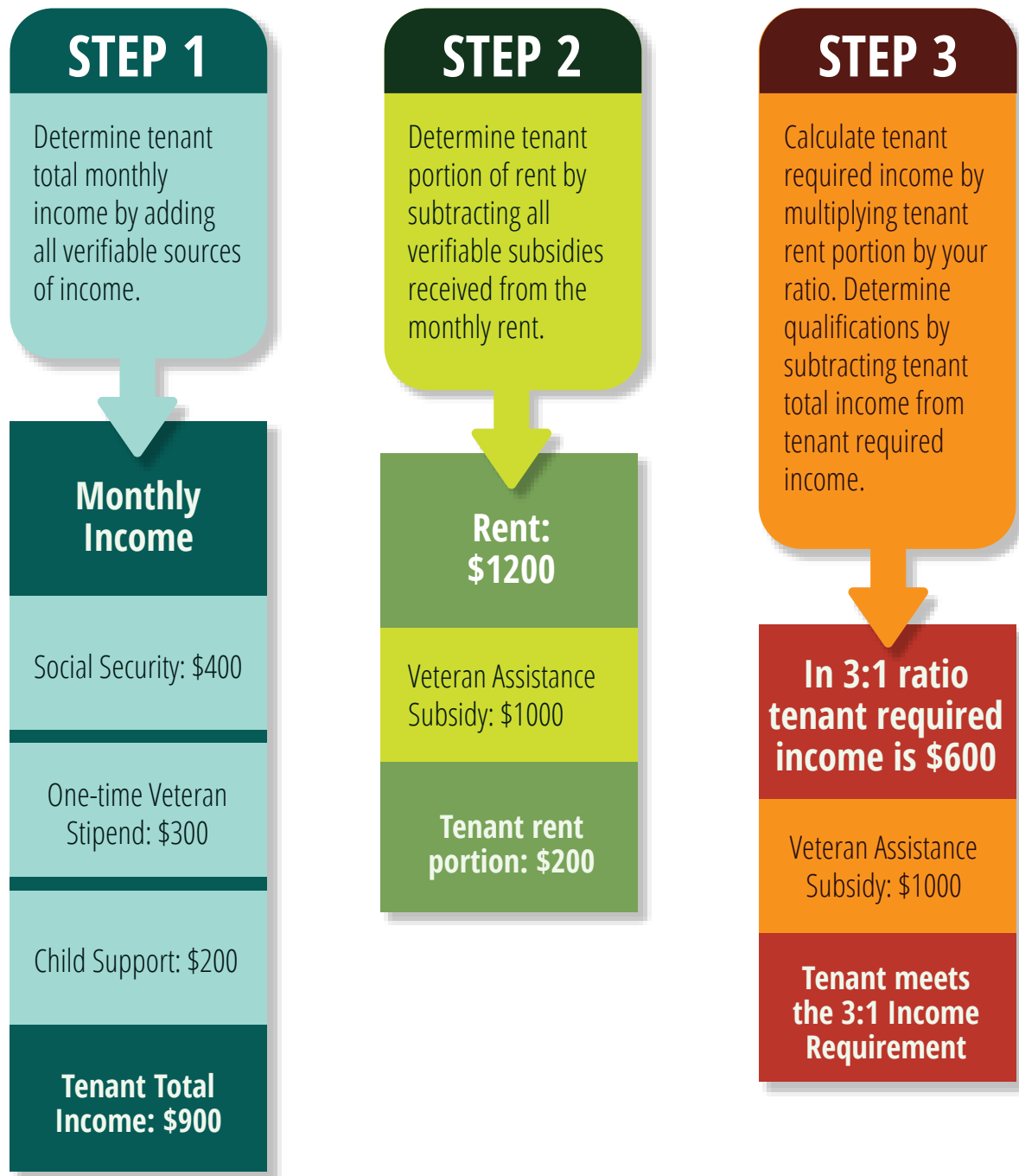
Landlords must:

- Date and time stamp applications in the order received
- Screen applications in chronological order one at a time
- Give applicants a minimum of 72 hours for additional information on an otherwise complete application
- Provide 48 hours for a response to an offer of a rental agreement after which time the landlord can proceed screening the next applicant in line



Income to Rent Ratio

A landlord cannot deny you housing because your income comes from a source or sources other than employment. If part of the eligibility requirement is a rent to income ratio, and your income is from other sources or subsidies, your landlord must follow these steps in making the calculation:

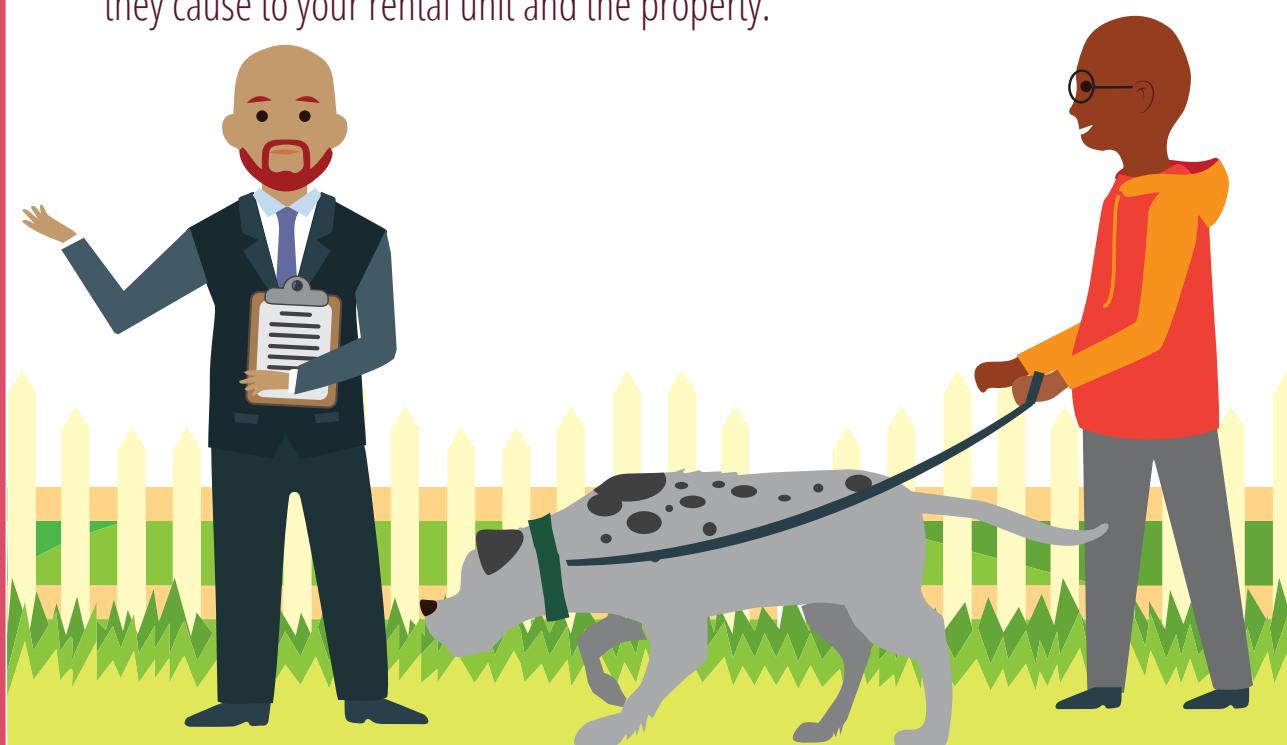


Service Animals



Service animals are broadly defined in Seattle and include emotional support, companion, therapy animals, and more. Fair housing rules require reasonable accommodations for service animals.

- A housing provider can ask for verification of the disability-related need for your service animal, from a qualified third party such as a medical provider or someone qualified to verify the connection.
- Service animals are not considered pets and cannot be prohibited from rental units. 'No Pet' policies do not apply to service animals.
- Training or certification of a service animal is not required.
- A housing provider cannot charge a deposit, fee, or additional rent for a service animal.
- You are responsible for your service animal's behavior and any damage they cause to your rental unit and the property.



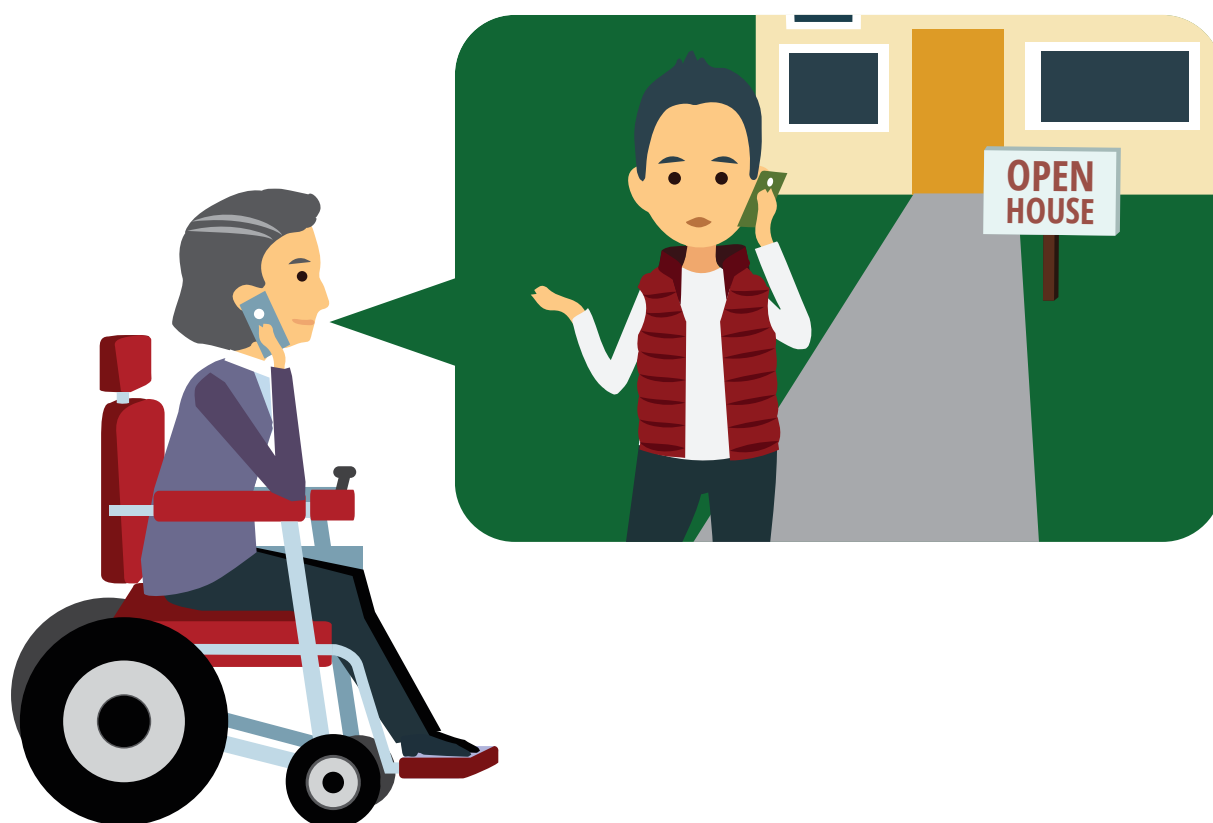
Accessibility

Housing accessibility allows renters with disabilities to live independently. Grab bars, ramps, extra width for wheelchairs, designated parking are some examples. If you have a disability, you can ask for a reasonable accommodation or modification.

An accommodation is a change in rules, policies, practices, or services to allow you the equal opportunity to use and enjoy a rental unit. An example of reasonable accommodation is to make an exception to a parking policy so a person using a wheelchair can have a spot closest to their unit.

A reasonable modification allows you to make physical changes to the property that are necessary to make the rental property accessible. You are responsible for paying for reasonable modifications unless the landlord receives federal funds. An example of a reasonable modification is asking permission to widen the bathroom doorway to accommodate a large scooter.

If you have questions or want to file a complaint, contact the Helpline (206) 684-5700.





MOVING IN

Moving is a busy and often stressful time. Things can easily be overlooked. It is important to be careful and pay attention to the details at this stage as it sets the tone for your entire tenancy.

Move-in Checklist

This is an extremely important part of your rental agreement because it is connected to your security deposit.

- It should accurately describe in detail the current condition of your new home
- Discrepancies should be discussed immediately with your landlord so you are not taking responsibility for damage that happened before you moved in
- It should be signed and dated by you and your landlord. Your landlord must provide you with a copy
- This checklist will be used by your landlord when it's time for you to move out to determine if you have caused any damage to the unit

It is unlawful to collect a security deposit without a signed and dated move-in checklist.



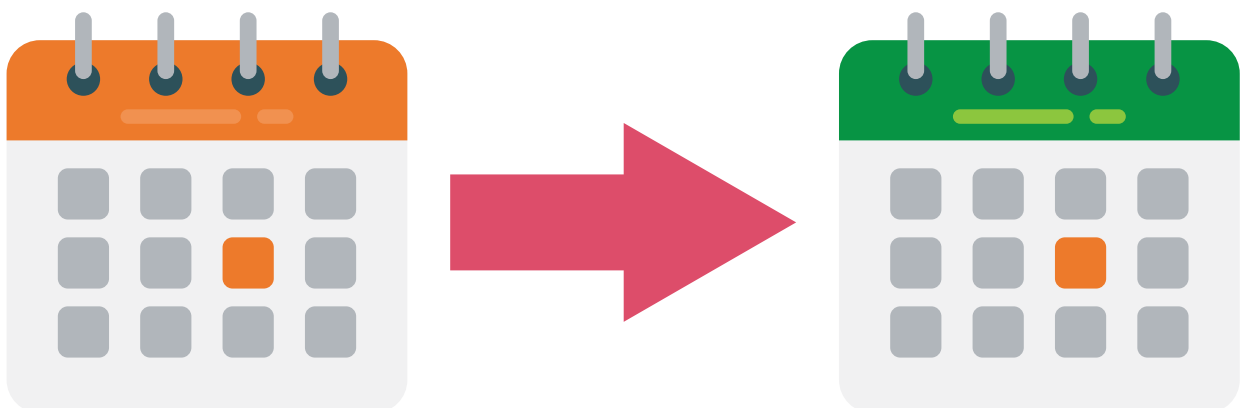
Rental Agreement



Congratulations! Your application for the rental home was successful and now it's time to sign a rental agreement. Review it thoroughly before signing. Remember, it is a legally binding contract.

- Pay attention to what costs you are responsible for in addition to your rent, such as utilities, and how they are billed
- Examine the rules carefully to make sure you understand the policies around guests, pets, parking, etc
- Get help understanding your rental agreement if you need to, especially if English is not your first language

This Renter's Handbook (printed copy) must be provided to you at the time you sign the initial rental agreement. Electronic copies are allowed for subsequent rental agreements; whenever the handbook is updated, or annually for month-to-month renters.



Types of Rental Agreements



All rental agreements in Seattle are regulated by the *Just Cause Eviction Ordinance*. This means a landlord must have a legal reason or 'Just Cause' to terminate a month-to-month rental agreement or not renew an expiring lease. The notice period required depends on the specific just cause reason. Those reasons and the required notice a landlord must give are on pg. 46

Month-to-Month

This type of agreement renews each month. You can terminate the rental agreement with a minimum of 20 days' written notice before the end of the monthly rental period. For example, if you want to move out in February, your landlord would have to receive your written notice no later than February 8. You might appreciate the flexibility of this arrangement but, be aware that the terms of your rental agreement, including the amount of rent, can change with proper notice during a month-to-month agreement.

Term Lease

This type of rental agreement is for a specific period of time. The terms remain fixed for the duration of the lease unless changed by mutual agreement between you and the landlord. The landlord must offer you a lease renewal 60-90 days before your current lease expires unless they have just cause not to do so. See Just Cause pg. 46

Initial term lease converting to month-to-month automatically

This occurs when the rental begins as a term lease and reverts automatically to a month-to-month lease at the end. You have a right to remain after the initial term unless the landlord has a just cause to end the rental agreement.

No rental agreement?

It is never a good idea to move into a rental unit without a written agreement. If you find yourself in that situation, you are considered a month-to-month tenant by verbal agreement and have renter rights. However, the definition of a tenant is someone entitled to occupy a rental unit under a rental agreement. While verbal agreements are not unlawful, it may be difficult to prove you are a tenant without a written rental agreement if a dispute arises.

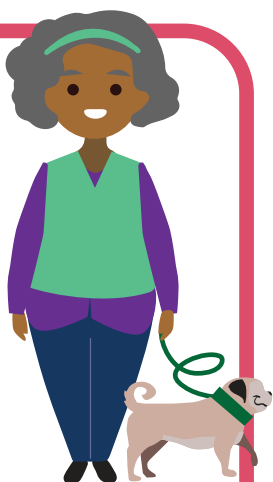
Move-In Cost

In Seattle, there are strict limits to what you can be charged for move-in costs. Move-in charges cover the security deposit, fees, and pet deposit.

- The security deposit and fees combined cannot equal more than one month's rent
- Fees can only be charged for screening (background check when you apply to rent) and/or cleaning
- If fees are charged for cleaning at the beginning of the agreement, you cannot be charged again for cleaning upon move-out
- Total fees cannot exceed 10% of one month's rent
- The maximum you can be charged for a pet deposit is 25% of one month's rent regardless of how many pets

Examples:

Tracy is a single-person household with a dog. The rent for the unit she's moving into is \$1200 per month.



Tracy's landlord can charge:

- \$45 screening fee
- \$75 cleaning fee
- \$1080 security deposit
- \$300 pet deposit

Tracy's total move-in costs can equal up to a maximum of \$1,500.

Hamid and Fatima with their two children are a four-person household. Rent is \$2,200 per month.



Their landlord can charge:

- \$90 (\$45 x 2) screening fee
- \$130 cleaning fee
- \$1980 security deposit

The family's total move-in costs can equal up to a maximum of \$2,200.

Installment Payments

It can be difficult to pay what typically amounts to three months' rent for moving into a new place. In Seattle, you have a right to pay your move-in costs (deposit and fees), last month's rent, and pet deposit in installments.

A landlord cannot refuse to rent to you because you decide to use installment payments. It is important to remember that in addition to your monthly rent, installment payments must be made on time or you risk getting a 14 Day Pay or Vacate Notice. The installment payment schedule is based on the length of your tenancy.

Deposits & Fees

- 30 days - six-month tenancy = four equal consecutive installments of equal duration.
- Month to month = two equal installments
- No installments for deposit/fees if the total does not exceed 25% of one month's rent
- Pet deposit = three equal installments



Last Month's Rent

- Six-month+ tenancy = six equal, consecutive, monthly installments
- 60 days - six-month tenancy = four equal payments of equal duration
- No fees, penalties, interest may be charged for installment payments
- Failure to pay installments as agreed is a breach of the rental agreement and you can receive a 14 Day Pay or Vacate Notice
- Alternatively, you and your landlord can make a payment schedule by mutual agreement. Get it in writing.



Utility Accounts

Seattle City Light

Seattle City Light (SCL) is the City department responsible for electricity accounts. You can open an account in your own name. You are responsible for letting SCL know when you move out. Failure to pay your bill to the utility or the landlord on time can result in a shutoff notice from the utility and/or a *14 Day Notice to Pay or Vacate* by your landlord.

TIP:

SCL also has discount programs and payment assistance for qualified customers. Visit their web site at www.seattle.gov/light/assistance/ or call (206) 684-3000.



Seattle Public Utilities

Seattle Public Utilities (SPU) is the City department responsible for water, sewer, and garbage accounts. Since 2011, new tenants cannot open accounts in their own names. The landlord is responsible for the overall account. You may be responsible for paying the cost of the utility charges if provided in your rental agreement. You should be provided with a copy of the actual bill if the landlord charges you directly. Failure to pay your bill on time can result in a shut-off notice and/or a *14 Day Pay or Vacate Notice* by your landlord as utilities are treated like rent for eviction purposes.

TIP:

Never flush anything besides toilet paper. Avoid getting grease, hair, and large items down the drain. A plumbing clog is expensive to repair and your landlord can charge you the entire cost if you or someone in your household flushes something other than toilet paper. Don't believe the marketing claims on products for 'flushable' wipes, etc.

Good to Know!

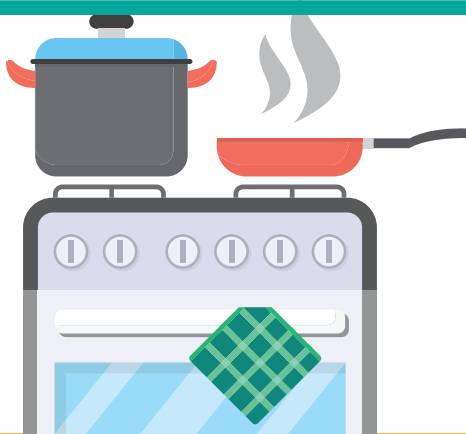
SPU has programs to help with utility discounts and payment assistance for qualified customers. Visit www.seattle.gov/utilities or call (206) 684-3000.

TIP:

Failure to pay your utility bill on time can result in eviction.

TIP:

Food scraps and recyclable items are not allowed in the garbage. All buildings should have separate containers for those items.

**TIP:**

Failure to report leaks, running toilets, and other service issues to the landlord promptly can make you responsible for some or all of the cost.

Puget Sound Energy

Puget Sound Energy (PSE) is the natural gas provider for the city. You can open an account in your own name. PSE has information on their website about programs to assist with bills, visit

www.pse.com or call 1(888) 225-5773.

Utility Billing Protections

The City's *Third Party Billing Ordinance* protects renters who pay a landlord or a billing company for water, sewer, garbage, or electrical services in residential buildings with 3 or more units. If you do not get the required billing information or you think you are charged improperly, you should first talk to your landlord or the billing company.

Complaints of violations are made to the:

**Office of the Hearing Examiner
Seattle Municipal Tower
700 5th Ave
Suite 4000
Seattle, WA 98104**



You can contact the hearing examiner at (206) 684-0521 or e-mail **Hearing.Examiner@seattle.gov**

Learn more about the code:

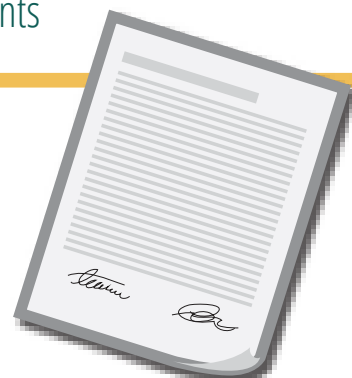
<http://www.seattle.gov/Documents/Departments/HearingExaminer/ResidentialThirdPartyBillingQuestionsandAnswers.pdf>

What should a tenant's utility bill include?

In some rentals, you pay for utilities (such as water) to the landlord or a billing company, rather than directly to the utility. The City's *Third Party Billing Ordinance* protects renters who pay a landlord or a billing company for water, sewer, garbage, or electrical services in residential buildings with 3 or more units.

What should a tenant's utility bill include?

- The name, business address, and telephone number of the landlord or third-party billing agent, whichever one sent the bill to the tenant
- The basis for each separate charge, including service charges and late fees, if any, as a line item, and the total amount of the bill
- If the units are sub-metered (each unit has its own meter), the current and previous meter readings, the current read date, and the amount consumed
- The due date, the date upon which the bill becomes overdue, the amount of any late charges or penalties that may apply, and the date upon which such late charges or penalties may be imposed
- Any past-due dollar amounts
- The name, mailing address, and telephone number for billing inquiries and disputes, the business hours and days of availability, and the process used to resolve disputes related to bills
- When billing separately for utilities, Landlords must: provide an explanation how the bill is calculated and common area utility costs are distributed; notify residents of changes to billing practices; make a copy of the building's utility bill available to tenants



Common Examples of Utility Billing

The way your utilities are billed should be explained in your rental agreement. Here are some common ways tenants pay for utilities.

Renting a single-family home with gas, electric, and water/sewer/garbage accounts not included in rent.

Electric: Tenant has bill in their name, and pays the bill directly to SCL

Gas: Tenant has bill in their name, and pays the bill directly to PSE

Water, Sewer, Garbage: Bill is in property owner's name, but a copy of the bill is sent to the tenant, and the tenant pays the bill directly to SPU



Unit in an apartment building with utilities not included in rent.

Electric: Tenant has the bill in their name and pays the bill directly to SCL

Water, Sewer, Garbage: A third party company uses the information on the building's SPU bill and divides it proportionally to building units based on the number of people on the lease. The tenant pays their portion of the bill to the third party company.



WHILE YOU RENT

Both you and your landlord have rights and responsibilities according to your rental agreement, City regulations and State law. Most of these are common sense things and require all parties to act in good faith. In addition, State law requires that your landlord provide you with information from the Department of Health about mold and information about fire safety. Larger multi-family buildings must have a diagram showing emergency evacuation routes.

TIP: Keep in mind you have a business relationship with your landlord where both of you can be significantly impacted by the actions of the other person. Follow these important guidelines.

- Maintain your important documents such as the rental agreement, move-in checklist, and your Renter's Handbook
- Keep communication clear and respectful
- Document important communications in writing



Landlord Duties



- Maintain the building and its structural components
- Make timely repairs
- Maintain common areas such as lobbies, stairs, and hallways
- Control pests
- Provide operating smoke and carbon monoxide detectors
- Provide secure entry locks and keys
- Provide common garbage, recycle, and food waste containers



Tenant Duties

- Pay rent on time and follow the rules of the rental agreement
- Keep the rental unit clean and sanitary
- Maintain smoke and carbon monoxide detectors
- Prevent illegal or hazardous activity in the rental unit
- Observe quiet hours
- Operate plumbing, electrical, and heating systems properly
- Dispose of garbage, recycle, and food waste properly

Good to Know!

Your landlord must provide an alternative payment method if you can't pay your rent electronically.

TIP:

Remember to get a receipt for your rent it's your right.

Repairs



Your rental agreement should state clearly who you contact for emergencies and repair requests. Reporting needed repairs promptly is important as you could be held financially responsible for the damage caused by delayed repairs you failed to report.

State law requires you make a repair request in writing. It's a good practice to create a record of the repair request which then obliges the landlord to respond. You can also call the landlord if it helps expedite the issue, but make sure there is a written request as well.

The landlord is required to start repairs within:

- 24 hours if you are without water, electricity, or heat during the winter, or if there is a life/safety issue
- 72 hours if your appliances are not working or you have a major plumbing issue with your sink or bathtub
- 10 days for any other repair request

If your landlord does not respond or refuses to make a necessary repair, you can contact the Helpline at (206) 684-5700.

- For emergencies like no power or water, an inspector will try to inspect your unit on the same day or next business day and contact the landlord immediately
- For other issues, an inspector will call to make an appointment with you to inspect your unit for housing violations, usually within five to ten business days
- The inspector will then prepare a notice directing the landlord to make the repairs

While it may seem justified to withhold rent when your landlord is not responsive nor making necessary repairs, it is not advisable. Though the State's Residential Landlord Tenant Act discusses repair and deduct remedies for tenants, it is a very specific process and a big risk to withhold rent because the landlord might choose to evict for non-payment. Make a complaint to the City by calling the Helpline (206) 684-5700 and consult an attorney before exercising any rights that potentially jeopardize your tenancy

Adding Roommates



Seattle housing can be expensive and finding an affordable place to call home can be a real challenge. You can add roommates to your household which may help if you struggle to pay your housing costs.

Be cautious when adding a new roommate, it could prove complicated and difficult removing them if it does not go well. Remember, everyone who pays rent has rights whether they are on the rental agreement or not.

Additionally, your tenancy could be jeopardized if the landlord decides to evict your roommate. It's good practice to work with your landlord when you want to bring in a roommate.

You can add:

- Immediate family
- One additional non-family roommate
- Immediate family of the additional roommate
- Any other roommates that the landlord agrees to
- Not to exceed legal occupancy standards

Immediate family is broadly defined to include:

Spouses, domestic partners, former spouses, former domestic partners, adult persons related by marriage, siblings, persons 16 years of age or older who are presently residing together or who have resided together in the past and who have or have had a dating relationship, and persons who have a parent-child relationship, including parents, stepparents, grandparents, adoptive parents, guardians, foster parents, or custodians of minors.

For purposes of this definition, “dating relationship” means a social relationship of a romantic nature. Factors a court may consider in determining the existence of a dating relationship include: (a) the length of time the relationship has existed; (b) the nature of the relationship; and (c) the frequency of interaction between the parties.

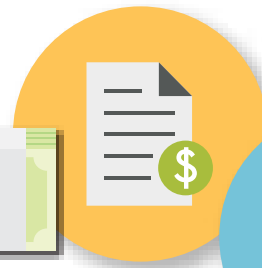
There are important steps and timelines you must follow to add a roommate. You must inform your landlord in writing within 30 days of adding someone to your household. Your landlord can screen the new household member using the same screening criteria originally used for your rental application. ·

- A non-family roommate (a) can be screened and (b) can be denied occupancy based on screening
- Immediate family (a) can be screened and (b) cannot be denied occupancy. Screening charges are allowed in compliance with the *Rental Agreement Regulation Ordinance* (SMC 7.24) and the state landlord tenant act.
- The landlord can require a non-family roommate to join the rental agreement with 30-days written notice.
- If the roommate does not join the rental agreement in 30 days, they must vacate within 15 days. (45 days total)
- Immediate family cannot be required to join a rental agreement nor be denied occupancy.

Except for a screening fee, no other move-in charges can be applied to the added household member. All original terms of the rental agreement remain the same.



Notices from Your Landlord



There are several kinds of notices you can receive from your landlord, some more urgent than others.

- Consider any written notice from the landlord important and worth your immediate attention. Review it right away and take quick action if necessary.
- Notices requiring action usually provide a short window of time to comply. Not responding in time may lead to serious consequences, such as eviction.
- Notices from your landlord must comply with City regulations.
- Notices that impact tenants' rights such as:
 - Notices to terminate, quit, comply and/or vacate
 - Notice to increase housing costs (rent etc.)
- Notices to enter must include the following language:

If you need help understanding this notice or information about your renter rights, call the Renting in Seattle Helpline at (206) 684- 5700 or visit the web site at **www.seattle.gov/rentinginseattle**.

- Notices that attempt to terminate a tenancy such as a 14 Day Pay or Vacate, 10 Day Comply or Vacate etc. must additionally include the following language:

RIGHT TO LEGAL COUNSEL: CITY LAW PROVIDES RENTERS WHO ARE UNABLE TO PAY FOR AN ATTORNEY THE RIGHT TO FREE LEGAL REPRESENTATION IN AN EVICTION LAWSUIT.



SEATTLE MUNICIPAL CODE (SMC 7.24.034)
Fees for notices and late rent

To: Renters and Landlords in the City of Seattle

New rules for all landlord-issued notices as of June 6, 2023

No fees allowed for preparing a notice

No fees allowed for delivering a notice

Late fees for rent cannot exceed \$10 per month

*For information about your renter rights, call the
Renting in Seattle Helpline at (206) 684-5700 or visit
the web site at ***www.seattle.gov/rentinginseattle****

Since June, 2023 your landlord cannot charge you for preparing or delivering a notice and late fees are limited to \$10 a month.

Call the Helpline (206) 684-5700 if you would like assistance reviewing a notice. You can also call 2-1-1 for information about free or low-cost legal services. The next section discuss the most common types of notices.

Notice of a Housing Cost Increase

“Housing costs” include rent and any monthly fees you pay your landlord, like storage or parking. Utility charges based on usage are not included in this type of notice. If you already pay for utilities, but there is a change to a different billing company for example, your landlord is required to provide you with a 30-day notice to change your rental terms.

If you have a lease for a specific term, the landlord cannot change your housing costs for the duration. If your rental agreement gives you the choice to stay as a month-to-month tenant at the end of the term, and the landlord wants to increase your housing costs at that time, the landlord must send you a housing cost increase notice before the term expires.

- All housing cost increases require a minimum of 180 days’ advance notice
- The notice must include required language (see pg. 36) about tenant rights and information
- Call the Helpline (206) 684-5700 to see if the increase notice is valid. Paying the new rent amount may imply you agree to the increase.
- Increases must coincide with the start of a rental period. For example, If your rent is due on the 1st and your landlord gives you a 180 day notice on January 5th, the earliest the increase could take effect would be August 1st.
- No increase is allowed if your rental unit does not meet the *Rental Registration and Inspection Ordinance (RRIO)*. See www.seattle.gov/rrio. You must notify your landlord in writing and contact the Helpline to schedule an inspection before the increase goes into effect.

Economic Displacement Relocation Assistance ordinance (EDRA)

Income-qualified tenant households (at or below 80% AMI adjusted annually) whose housing costs are raised by 10% or more in a year, are eligible for relocation assistance to move.

Household	1	2	3	4	5	6	7	8
Income	\$70,650	\$80,750	\$90,850	\$109,000	\$117,050	\$125,150	\$133,200	\$125,800

- Households that apply must have a notice of housing cost increase dated July 1, 2022 (or later).
- The 10% increase can be a single increase or a combination of increases that take effect within the same 12 month period.
- Relocation assistance is approximately 3x monthly housing cost and is advanced by the City to qualified households.
- To learn more or to apply for EDRA visit www.seattle.gov/rentinginseattle/edra or call the helpline if you do not have access to the internet.

Notice of Changes to the Terms of Your Rental Agreement

If you signed a rental agreement for a fixed term, also known as a lease, the terms cannot change until the lease expires unless both you and your landlord mutually agree otherwise. If you have a month-to-month rental agreement, the landlord can change the terms with a notice 30 days before the start of a new rental period.

Changes might include rules around smoking, guests, or pets to name some examples. Any changes that increase your housing costs must comply with the housing cost increase notice requirements. See pg. 38.



Notice of Intent to Enter

Your rental agreement gives you the right to control access to your home. That means the landlord cannot enter without proper notice unless there is an emergency situation. The landlord has a right to seek access for repairs, inspections, or showing the unit to prospective tenants or contractors. Your landlord needs to give you:

- At least 2 days' notice for agreed upon or necessary repairs or inspections (minimum 48 hours)
- At least 1 days' notice for showing the unit (minimum 24 hours)

Notices to enter must include:

- The date the landlord wants to come in
- The earliest and latest time that they may arrive
- A telephone number you can call in case you need to reschedule

If the date or time does not work for you and you have a valid reason for not wanting to give the landlord access, you should provide dates and times that will work. Valid reasons might be that you have planned a family event in your home at that time or you want to be there during access and need more notice to take time off work.

Your landlord can issue you a 10 Day Notice to Comply if you fail to grant reasonable access.

TIP:

The law requires both parties to be reasonable and act in good faith. You and your landlord should make every effort to have clear, respectful communication. Consider the other person's needs, and find agreement on the reason, time, and manner to enter your home. Make sure you document the communication to show you have been co-operative.

In cases of an emergency, a landlord can enter the tenant's unit without notice. Examples of an emergency may include:

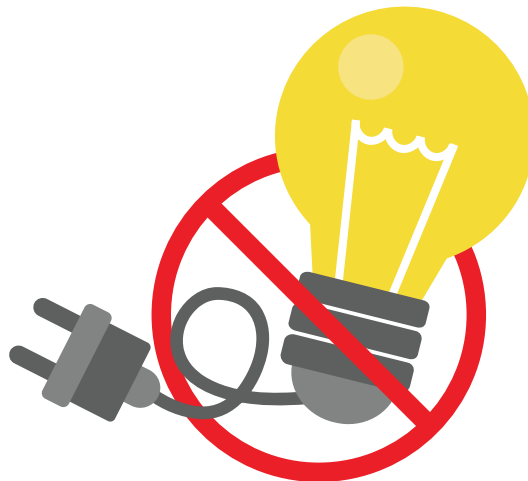
- A major plumbing leak
- A fire
- Police wellness check of the tenant (that requires the landlord to allow officers to enter the unit)



In cases of abandonment, a landlord can enter if they have given notice to enter and received no response after several attempts and evidence exists to reasonably indicate abandonment.

Evidence of abandonment include two or more of the following:

- Your landlord has not received a rent payment
- Your mail has not been collected
- Your utilities have been disconnected for non-payment



Notice to Comply or Vacate (10 Days)

A landlord will use a 10-day notice when you violate the rental agreement. Examples might include:

- Smoking in a non-smoking unit/building
- Keeping a pet when no pets are allowed
- Creating loud noise during quiet hours



The notice needs to state clearly what you have done to violate the rental agreement and what you need to do to comply with the notice. The 10-day period for compliance includes weekends.

- 3 or more 10-day notices within a 12 month period is just cause for termination of a month-to-month tenancy or non-renewal of your lease.

Notice to Pay or Vacate (14 Days)

A landlord will use a 14-day notice when rent, utilities, or installment payments are late. Those are the only charges permitted on this type of notice. It allows a very small window of time to pay what you owe.

- You should do whatever you can to pay within that time.
- If you anticipate not being able to pay your rent on time, it is usually best to let your landlord know beforehand. Your landlord may agree to a payment plan, the worst that can happen is that your landlord says no.
- If you need help with paying your rent, call 2-1-1 for a list of rent help resources. See pledges on pg. 42. If you can secure some financial help from a third party, it may also give you a little extra time.
- 4 or more 14-day notices within a 12 month period is just cause for termination of a month-to-month tenancy or non-renewal of your lease.

Tip:

Pay attention to the date rent is due on your rental agreement. Rent is usually due on the first of the month. It's common to see late fees assessed on the third or fifth day. This does not mean you get a "grace period" which is a common misconception some renters have. It just means you can't be charged a late fee until then. You can receive a 14-day notice any time after midnight of the day the rent is due. See late fee pg. 37

Notice to Quit for Waste Nuisance or Criminal Activity (3 Days)

A landlord will use this 3-day notice in very serious situations, like when criminal activity occurs on the property or severe damage is caused to the rental unit. There is no cure for this notice; the only way to comply is to move out or secure an attorney immediately to defend you in an eviction lawsuit.

Landlords must provide a copy of notices for criminal activity to the Seattle Department of Construction and Inspections. There needs to be clear evidence that this type of notice is appropriate for the circumstances.

Notice to Terminate Tenancy for Just Cause

There are specific just cause reasons a landlord can use to terminate a month-to-month rental agreement in Seattle. The notice period required depends on the specific just cause.

The *Just Cause Eviction Ordinance* is discussed under the 'Moving Out' section pg. 46.



Notice of Intent to Sell

Owners of properties with two or more rented units, with at least one unit rented at 80% AMI (average median income) must notify Seattle Office of Housing of their intent to sell at least 90 days before listing the building.

The City, in partnership with the Seattle Housing Authority and community providers, can use the notification information to evaluate properties and deploy a range of property preservation tools, including incentives and acquisition.

This also provides notice to tenants who may be affected by the sale.

Visit www.seattle.gov/housing/intent-to-sell to learn more.

Pledges of Rent Assistance

If you are behind on rent and receive a 14-day notice to pay or vacate, your landlord must accept a written pledge of payment from a third party. A third party can be a church or a non-profit.

- The pledge must be in writing
- The pledge must be received before the 14-day notice expires
- The source must commit to paying the pledge within 5 days
- The source must not commit the landlord to anything other than providing information for payment
- The payment must be enough to allow you to become current on all costs on its own or in combination with other sources of income or subsidies

Good to Know!

There are additional state laws that require landlords accept pledges of assistance even after a 14- day notice expires right up through the eviction court process. These protections are not enforced by the City. (See RCW 59.18.410)

Domestic Violence Victim Protection

- Tenants experiencing domestic violence cannot be held liable for damages to their rental unit caused by their abuser.
- The tenant must provide documentation to the landlord that they or an occupant was a victim of domestic violence and the perpetrator caused the damage.
- The documentation must be signed by a qualified 3rd party Seattle Police Department, Licensed mental health professionals, domestic violence program advocates, clergy, social service case managers.



MOVING OUT

Most rental agreements will state how you must give notice to your landlord when you want to move out. If you are a month-to-month tenant, you need to inform your landlord in writing a minimum of 20 days before the end of the month you want to leave. For example, if you wanted to move out by July 31, the landlord must be in receipt of your notice not later than July 11.

Remember if you don't provide proper notice, you may be responsible for rent for the next monthly rental period.







If your landlord unexpectedly issues you a notice to terminate your rental agreement, review it right away. Notices given in the Seattle must comply with City regulations. For help to review your notice call the Helpline at (206) 684-5700.

- If you are a month-to-month tenant or you have a lease that automatically converts to a month-to-month agreement your landlord must give you a just cause reason to terminate your tenancy.
- If you have a terminating lease agreement, the landlord must make a reasonable renewal offer 60-90 days prior to the expiration date or give a just cause for non-renewal.

Good to know

landlords that share their home or live on the same property as their tenants have just cause to terminate a month-to-month tenancy with 20 days' notice and can decline to renew a lease when it expires.

Just Cause Eviction Ordinance

Seattle's *Just Cause Eviction Ordinance* prevents arbitrary eviction of renters. It requires landlords to have a legal reason or *just cause* to terminate to your month-to-month rental agreement or decline to renew your lease. Your landlord must give you a written notice commonly called a *Notice to Terminate Tenancy* and state the specific just cause. The amount of advance notice depends on the specific cause. Unless otherwise stated, a minimum of 20 days' notice before the end of the rental period is required. The following are the only just cause reasons your landlord can terminate your month-by-month rental agreement.

- Late rent: you receive a 14-day notice to pay or vacate and fail to comply.
- Habitual failure to pay rent on time. You receive 4 or more 14-day pay or vacate notices in the most recent 12 month period for late rent.
- Violation of your rental agreement: You receive a 10-day notice to comply with the rules of your rental agreement or vacate and you fail to comply.

- Habitual failure to comply with your rental agreement. You have received 3 or more 10-day notices to comply or vacate in the most recent 12-month period for failure to comply with the rules of your rental agreement.
- Your landlord or a member of their immediate family needs to move into your unit. This requires a 90-day notice. Your landlord can be required by the City to certify (sign a sworn declaration) if they use this just cause and you suspect they do not intend to occupy your unit or move a qualified family member in when you move out.
- Your landlord wants to sell the unit you rent. This requires a 90-day notice and only applies to single-family dwelling units, defined by City code as detached structures that contain one dwelling unit. If you live in a condo, apartment, duplex, triplex, or townhome, your landlord cannot use this as a just cause reason to end your rental agreement.
- Your occupancy of a unit depends on being employed on the property and your employment is terminated. This would typically apply to property managers who live on site.
- Your landlord rents a portion of their own home or an accessory dwelling unit to their own home and no longer wishes to share with you.
- Your landlord wants to substantially remodel your unit or the building where you live displacing you permanently. This requires your landlord to apply to the City for a relocation license which is approximately a 6-month process. The license requirements include giving you an information packet and paying you relocation assistance if your income is at or below 50% of the median income for King County.
- Your landlord wants to demolish the property where you live or change the use to non-residential. This requires a relocation license the same as displacement from a substantial remodel. See above.
- Your landlord wants to change the use of the building to non-residential. This requires a relocation license the same as displacement from a substantial remodel. See above.

- Your landlord wants to convert your unit to a condo or a co-op. These conversions require their own procedure under the *Condominium Conversion Ordinance and Co-operative Conversion Ordinance* SMC 22.903.030 and SMC 22.903.035.
- Your landlord receives a notice of violation for housing standards in a permitted accessory dwelling unit and wants to discontinue renting it. The landlord must pay you relocation assistance in the amount of \$2,000 or the equivalent of 2 months' rent two weeks before you move out.
- Your landlord receives a notice of violation for an unauthorized housing unit, commonly called an "illegal unit," and must discontinue renting your unit. The landlord must pay you relocation assistance of either \$2,000 or the equivalent of 2 months' rent 2 weeks before you move out.
- Your landlord must reduce the number of renters in a dwelling unit to comply with the legal limit. This requires a 30-day notice and payment of relocation assistance of \$2,000 or the equivalent of 2 months' rent 2 weeks prior to move out.
- Your landlord is issued an emergency order by the City to vacate and close your housing unit due to hazardous conditions. The notice requirement depends on the specific circumstances of the emergency, but it is always a very short period of time. You may get relocation assistance if the emergency condition is found to be the landlord's responsibility. Relocation assistance is adjusted for cost of living each year.
- Your landlord issues you a *3 Day Notice to Quit* for engaging in criminal activity on the property. The landlord must specify the crime and facts supporting the allegation in the notice of termination and provide a copy to the City.



Good to Know!

Your just cause rights cannot be waived. Any rental agreement that attempts to do so is unenforceable.



It is a violation of the *Just Cause Eviction Ordinance* for a landlord to rely on a just cause reason to end a rental agreement and fail to follow through, whether that means not moving into the unit, not listing it for sale, etc. Fines and penalties will apply, and renters have the right to sue for \$2,000 in damages in Small Claims Court.

Notices to terminate a tenancy must include specific language (see pg. 36) and information. If you receive a notice, contact the Helpline at (206) 684-5700 for help to determine if it is a proper notice.

Defenses to eviction

Winter Eviction

The winter eviction defense ordinance exists to protect vulnerable renters in Seattle from being made homeless during the coldest weather months. Between December 1st and March 1st moderate income households can rely on this defense to eviction except for the following:

- The landlord owns less than four rental units within the City of Seattle.
- The owner or a member of their immediate family needs to occupy the rental unit.
- The owner wishes to sell the rental unit.
- The City requires the owner to discontinue renting the unit (for various reasons). In some cases, displaced tenants are paid relocation assistance
- The owner issues a 3 Day Quit notice for criminal activity, nuisance/waste or for posing an imminent threat to health and safety and filed a copy with the City.

If you need help with rent or move-in assistance, call 2-1-1 for a comprehensive referral list to agencies with funds and other resources.

School Year Eviction

If your household has students (daycare - high school), educators, or educational support staff, you may raise this as a defense to eviction during the Seattle School District calendar year. The following exceptions apply:

- The owner or their immediate family needs to occupy the rental unit
- The City requires the owner to discontinue renting the unit for various reasons (in some cases displaced tenants are paid relocation assistance)
- The City requires an owner to reduce the number of tenants in a unit.
- The owner issues a 3 Day Quit notice for criminal activity, nuisance/waste or for posing an imminent threat to healthy and safety

Covid-19 related economic hardship

* Experienced during the Civil Emergency period

Other Eviction Defenses

Exist in City code typically due to some failure by the landlord, such as failure to register the rental property, or failure to certify a just cause termination, as examples.





Unlawful Detainer

An eviction, or unlawful detainer, is the legal process a landlord must follow to ask a court to restore their possessory right to a rental unit. It is illegal for a landlord to attempt to evict a tenant without going through the unlawful detainer process. Actions like changing the locks, removing tenant's belongings, or disconnecting utilities are all strictly prohibited.

Before the court process can begin, the landlord must first give you a notice. The notice may attempt to end your rental agreement for just cause, collect late rent, or enforce the rules of your rental agreement. See types of notices on pg.36. If you fail to comply with a valid notice, the landlord can then proceed with an unlawful detainer lawsuit which asks the court to restore possession of the rental unit to the owner.

The landlord must attempt to serve you a court document called summons and complaint that explains the just cause reason or reasons they have to evict you. Often it will ask for legal costs in addition to the eviction order.

It is extremely important that you seek advice from a qualified attorney immediately after receiving a summons and complaint. The document will contain a deadline for your response. If you do not respond by that deadline, you could be evicted by default.

The City partners with the Housing Justice Project to provide a right to counsel for any tenant household being evicted that can't afford an attorney.

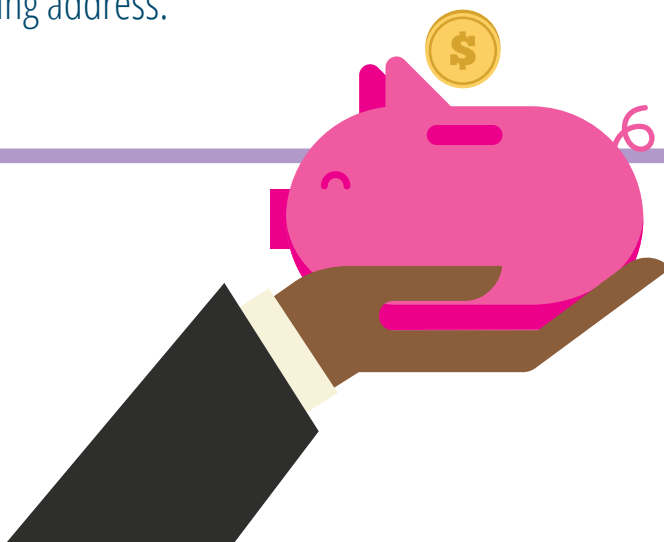
To access your right to counsel, you can contact HJP in four different ways: Complete an online form on www.kcba.org to request legal assistance. Call (206) 580-0762 to leave a message. Email hjpstaff@kcba.org. Visit the walk-in legal clinic M-F, 9am-12pm at the King County Courthouse in Seattle.

Return of Your Security Deposit

When you move out, you must return the rental unit to the same condition as when you rented, except for reasonable wear and tear. Reasonable wear and tear naturally occurs over time through normal usage. Examples are paint fading, scuff marks on linoleum, wear patterns on carpet, etc. Damage, on the other hand, generally occurs suddenly and as a result of negligence, misuse, or by accident. Examples are holes in the wall, broken windows, or burn marks on surfaces.

Your landlord must use the checklist you both signed at the time you moved in to determine if you are responsible for damage to the unit. The landlord is not required to do an exit walk-through with you, but you can ask for one if you think it's useful. It's always a good idea to take pictures of the unit to document the condition you returned it in, including cleanliness. If your landlord charged you for cleaning when you moved in, you cannot be charged for cleaning at move out. If you owe outstanding utility charges, your deposit may be used to cover those.

1. Your landlord has 30 days from your move-out to return your deposit and /or provide you with a statement specifying the basis for retaining any portion of your deposit. Be sure to return all keys to clearly signal that you are restoring possession to the owner.
2. If the landlord needs additional time to get quotes for repair or for a final utility bill to arrive, they must notify you within the 30-day period.
3. Your landlord must consider depreciated value when calculating deductions for damage. For example, the age, condition and useful life remaining of flooring, appliances etc. must be factored into assessing charges for damage.
4. It's your responsibility to provide your landlord a correct mailing address for your deposit refund. If you don't, the landlord must use your last known mailing address.



Final Thoughts

Our homes are fundamental to our sense of security and quality of life. Regulations and fair housing laws exist to protect your right to a safe and healthy environment where you are entitled to the quiet enjoyment of your home.

Having a positive business-like relationship with your landlord contributes to the stability of your rental agreement. Sometimes when conflicts arise, you may have reason to seek information, guidance and even intervention. The Renting in Seattle Helpline (206) 684-5700 is your valuable resource for help whether you are just looking for information or you are ready to make a complaint.

The City protects your ability to exercise your renter rights. Your landlord cannot prevent you from communicating and organizing with other tenants in your building, distributing leaflets or holding meetings. Retaliation by your landlord for exercising your housing rights is strictly prohibited and could result in fines, penalties and/or investigation.

We hope this Renter's Handbook is a useful reference tool. Being informed about your rights and responsibilities is important for the success of your renting experience. Everyone deserves a happy and healthy home.



Renter Resources

2-1-1

Clearinghouse for comprehensive information and referral to financial assistance, legal help, and housing advocacy resources in King County.

Be:Seattle

Provides renter bootcamps and grassroots tenant organizing.

<https://beseattle.org>

206-487-4060

Housing Justice Project King County Bar Association

Provides legal representation for low-income tenants facing eviction.

516 Third Ave Suite W-314, Seattle, WA 98104

<https://housingjusticeproject.org>

206-580-0762

Interim Community Development Association

Provides homeless prevention and housing services for low-income Asian, Pacific-Islanders, immigrant and refugee communities.

601 S King St, Seattle, WA 98104

<https://interimcda.org/>

206-623-5132

Queer Power Alliance

Promoting fair and equitable housing access for LGBTQIA community. Provides tenant education workshops and support.

<https://queerpoweralliance.org/>

1200 12th Ave S Suite 1101, Seattle, WA 98144

206-395-6658

Solid Ground

Solid Ground works to keep people in their current homes through information, advocacy, case management and limited financial support.

1501 N 45th Street, Seattle, WA 98103

<https://www.solid-ground.org/>

206-694-6700



Somali Community Services of Seattle

Non-profit organization that works to improve the quality of life for low-income families and members of the Somali refugee and immigrant community.

8810 Renton Ave S, Seattle, WA 98118

<https://www.somcss.org/>

206-760-1181



Tenant Law Center Catholic Community Services of Western Washington

Provides legal services to low-income tenants facing eviction, subsidy termination and needing reasonable accommodation requests.

100 23rd Ave S, Seattle, WA 98144

<https://ccsww.org/get-help/specialized-services/tenant-law-center/>

206-580-0762

Tenants Union of Washington

Provides tenant counseling services, political advocacy and tenant organizing help.

5425 Rainier Ave S, Suite B, Seattle, WA 98118

<https://tenantsunion.org/>

206-723-0500

United Indians of All Tribes Foundation Homeless Prevention Program

Social service provider, community center, and cultural home for urban Indians.

5011 Bernie Whitebear Way, Seattle, WA 98199 (Discovery Park)

<https://unitedindians.org>

206 285 4425

Villa Comunitaria

Helps Latinx immigrants navigate the complexities of the United States immigration, housing, health, education, and legal system so they can thrive and prosper.

8201 10th Ave South, Suite 8, Seattle, WA 98108

<https://villacomunitaria.org>

206-767-7445

Washington Law Help

Free legal information and self-help court forms written by lawyers to guide you through the court processes of eviction and security deposit disputes

<https://washingtonlawhelp.org/>

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Notes

HELPLINE: (206) 684-5700
www.seattle.gov/rentinginseattle

